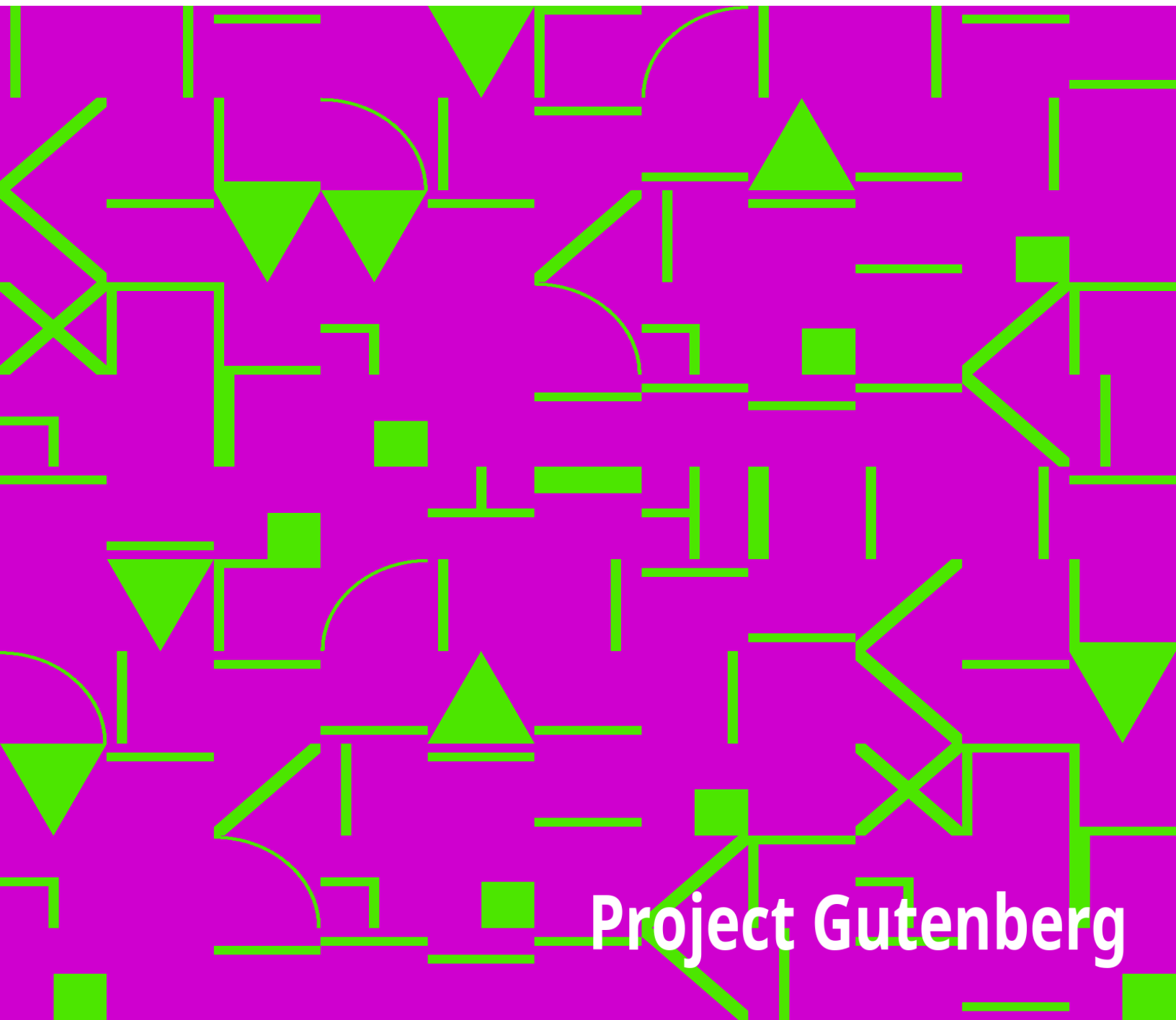


The Southern Literary Messenger, Vol. I., No. 4, December, 1834

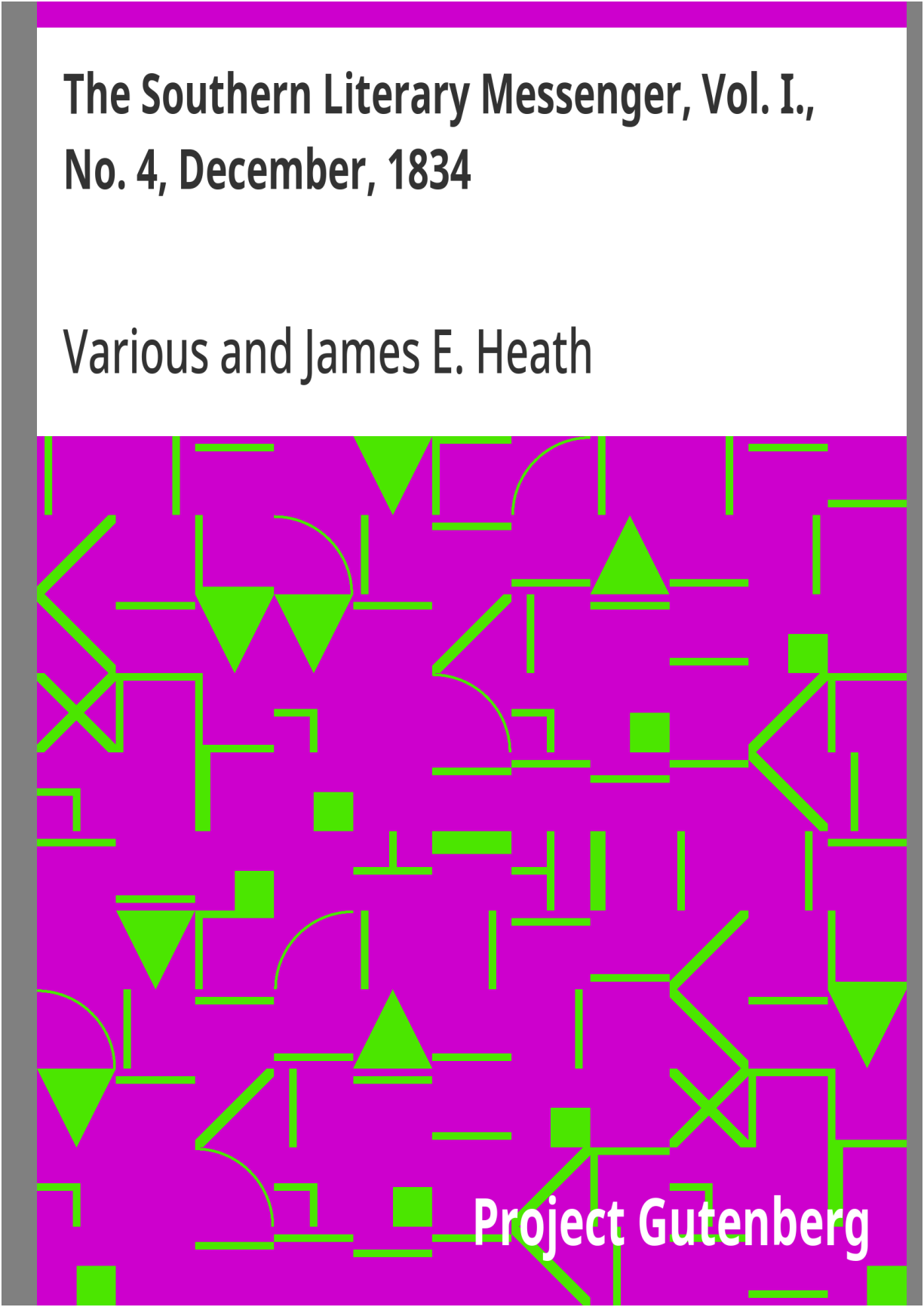
Various and James E. Heath

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**The Southern Literary Messenger, Vol. I.,
No. 4, December, 1834**

Various and James E. Heath



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1834 ***

THE

SOUTHERN LITERARY MESSENGER:

DEVOTED TO

EVERY DEPARTMENT OF LITERATURE

AND

THE FINE ARTS.

Au gré de nos desirs bien plus qu'au gré des vents.

Crebillon's Electre.

As we will, and not as the winds will.

RICHMOND:

T. W. WHITE, PUBLISHER AND PROPRIETOR.

1834-5.

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SOUTHERN LITERARY MESSENGER.

VOL. I.]

RICHMOND, DECEMBER, 1834.

[No. 4.

T. W. WHITE, PRINTER AND PROPRIETOR.

FIVE DOLLARS PER ANNUM.

For the Southern Literary Messenger.

SKETCHES OF THE HISTORY

And Present Condition of Tripoli, with some accounts of the other Barbary States.

No. II.

From the year 1551, when Tripoli was taken by Dragut, to the early part of the eighteenth century, it continued to form a part of the Turkish empire; and as such, but little is known respecting it. However, though governed by a Pasha appointed from Constantinople, and garrisoned exclusively by Turkish troops, it did not entirely lose its nationality, and appears to have been much less dependant on the Sultan, than the other parts of his dominions; for we find upon record, treaties between Tripoli and various European powers concluded within that period, in which no mention whatever is made of the Porte. That with England, was negotiated in 1655 by Blake, immediately after his successful bombardment of Tunis; it proved however of little value, for ten years after, Sir John Narborough was sent with a fleet against Tripoli, on which occasion the celebrated Cloudesley Shovel first distinguished himself, in the destruction of several ships under the guns of the castle.

At length a revolution was effected in the government; the allegiance to the Sultan was thrown off, and his paramount authority was reduced to a mere nominal suzerainty. In the year 1714, Hamet surnamed Caramalli, or the Caramanian, from a province of Asia Minor in which he was born, while in command of the city as Bey or lieutenant during the absence of the Pasha, formed a conspiracy among the Moors, by whose aid, the city was freed from Turkish troops in a single night. Three hundred of them were invited by him to an entertainment at a castle a few miles distant from Tripoli, and were despatched as they successively entered a dark hall or passage in the building; of the others, many were found murdered in the streets next morning, and but a small number escaped to tell the dreadful tale. A Moorish guard was instantly formed, strong enough to repel any attack which could have been expected; and Hamet was proclaimed sovereign, under the title of Pasha. The new prince did not however trust entirely to arms, for the security of his title, but instantly sent a large sum to Constantinople, which being properly distributed, he succeeded in obtaining confirmation, or rather recognition by the Sultan. He moreover solemnly adopted Abdallah the infant son of his predecessor and declared him heir to the throne; but he altered these views, if he had ever entertained them, when his own children grew up, for his eldest son was made Bey or lieutenant at an early age, and afterwards succeeded him; Abdallah, however, lived

through nearly three reigns, as Kiah, or governor of the castle, and was murdered in 1790, by the hand of the late Pasha Yusuf.

Hamet seemed really desirous to advance the true interests of his dominions, and for that purpose endeavored to make friends of the European nations. Within a few years after his accession, he concluded treaties with England, the United Provinces, Austria and Tuscany, one of which alone, contains a vague proviso, respecting the approval of the Sultan. The stipulations of these treaties are principally commercial, or intended to secure the vessels of the foreign power, from capture; no mention is made in them of any payments to Tripoli, but it is generally understood that considerable sums were annually given by the weaker states for the purpose of obtaining such exemption, and by the more powerful in order to encourage the piracies. By these means the commerce of the country was increased; the manufactures of Europe were imported for the use of its inhabitants, and for transportation into the interior, by the caravans; in return, dates, figs, leather, &c. were exported from Tripoli, and cattle from the ports lying east of it. One of the most valuable articles sent to Europe, was salt, brought from the desert and the countries beyond, where it is found in abundance, of the finest quality, either as rock-salt or in sheets resembling ice on the sand. Soda was likewise exported in great quantities, principally to France; but the facility with which it is now obtained from common salt, has much lessened the value of that substance and the quantity of it carried from Tripoli.

This commerce was carried on exclusively in foreign vessels, principally English, Dutch and French; those of Tripoli being all fitted out as cruisers, and engaged in piracy. None of its vessels indeed could venture to leave the place without being armed and manned to an extent which the profits of a trading voyage would not warrant; for in addition to the Spaniards, Venitians, Genoese and other maritime states, with one or other of which the Tripolines were generally at war, they had a constant and inveterate enemy in the Knights of Malta, whose gallies were ever hovering about the port, and who in the treatment of their captives, improved upon the lessons of cruelty taught by their Barbary neighbors.

These cruisers were charged to respect all vessels belonging to powers with which Tripoli had treaties; but such charges were occasionally forgotten, when a richly laden ship was encountered by a Corsair returning perhaps from a fruitless cruise; and the Pasha who was entitled to a large portion of each prize, sometimes shewed less alacrity than was promised by his treaties in causing the damage to be repaired. A mistake of this kind with regard to some French vessels, provoked that government in 1729, when it was at peace with England, to send a squadron to Tripoli, for the purpose of demanding satisfaction. The result of this display was a treaty, the terms of which were dictated by the French Admiral de Gouyon. The Pasha in the most abject manner acknowledged his infractions of the former treaty, and accepted with gratitude, the pardon and peace which the Emperor¹ of France was pleased to grant him—all the French prizes taken were to be restored, or indemnification made for those which were lost or injured—the French captives were to be released, together with twenty other *Catholic* prisoners to be selected by the Admiral—Tripoline cruisers were to be furnished with certificates from the French Consul, who was to take precedence of all other Consuls on public occasions—French vessels with their crews were not to be molested—together with many other provisions, calculated to give to France immunities and advantages, not enjoyed by any other nation. As an additional humiliation, all stipulations made or that might be made with the Porte, were to be observed by Tripoli; and the treaty was to remain in force one hundred years.

¹ The King of France is always styled Emperor in negotiations with the Oriental Powers.

This treaty is one of the many evidences of the want of common sense, which formerly presided over diplomatic negotiations, and rendered their history a record of unjust pretension on the one hand, of duplicity and subterfuge on the other. Exclusive advantages for a period which might as well have been left indefinite, are arrogantly extorted from a petty state, without reflecting, that supposing the utmost desire on its part, they could be observed only until some other strong power should demand the same for itself. The Barbary states have long known the absurdity of this, and have profited by it; to the force of the greater nations, they have merely opposed the *Punica fides*, and when availing resistance cannot be made,

they sign any treaty however humiliating, trusting to Allah for an opportunity to break it profitably.

The inutility of these exclusive stipulations was soon proved; for in 1751 Tripoli became involved in difficulties with Great Britain, from circumstances similar to those which had provoked the ire of France. The quarrel terminated in a similar manner; a fleet was sent, and a treaty dictated, less humiliating in style to the weaker and less arrogant on the part of the stronger, than that with France, but giving to Great Britain in effect, all the exclusive or superior advantages, and to her consul the same precedence of all other consuls, which had already been solemnly guarantied to the French. As a matter of course the latter sent a squadron soon after, to require a renewal of the treaty of 1729 with stipulations still more in their favor, to which of course the Pasha consented. The same plan has been pursued by these two great nations, with regard to the other states of Barbary; and the court of each Bey, Pasha or Emperor, has been a perpetual theatre for the intrigues and struggles for influence of their consuls.

In the early treaties with these states, we see no provision against piracy in general, no protest against the principle;—Tripoline cruisers shall not make prizes of our vessels, nor appear within a certain distance of our coasts—thus much they say; but nothing else appears, from which it might be gathered, that Tripoli was other than a state, respectable itself and complying with those evident duties, which compose the body of national morals. In fact Great Britain and France, each keeping a large naval force in the Mediterranean, which could immediately chastise any offence against its own commerce, not only had no objection to the practice of piracy, but even secretly encouraged it; as the vessels of the weaker states were thus almost excluded from competition in trade. The abandonment of this despicable policy is one among the many triumphs of principle and feeling, which have marked the advance of civilization during the last twenty years, and which authorize us in hoping that a desire to promote the general welfare of mankind, may in future exert an influence in the councils of statesmen.

In addition to his acts of pacific policy, Hamet extended his dominions by force of arms; he conquered Fezzan, a vast tract of desert, sprinkled with *oases* or islands of fertile soil, lying south of Tripoli and which has until lately been held by his successors; this conquest was important from the revenue it yielded, and from the advantages it afforded to caravans to and from the centre of Africa. He also reduced to complete subjection, the intractable inhabitants of the ancient Cyrenaica or part lying beyond the Great Syrtis; and upon the whole displayed so much energy and real good sense in his actions, that viewing the circumstances under which he was placed, he may be considered fairly entitled to the appellation of *Great*, which has been bestowed on him by the people of Tripoli. Sometime before his death, he became totally blind, which affliction was believed by the more devout of his subjects, to have been sent as punishment for an act of tyranny, such as daily practised in those countries. In one of his visits to a mosque in the vicinity of the city, he chanced to see a young girl, the daughter of the Marabout or holy man of the place, whose beauty made such an impression on him, that he ordered the father to send her that evening richly drest to the castle, under penalty of being hacked to pieces, if he should fail to do so. She was accordingly conveyed to the royal apartments, but the Pasha on entering the room, found her a corpse; in order to save herself from violence, she had acceded to the wish of her father and taken a deadly potion. It is needless to relate what were the torments inflicted upon the parent; while writhing under them, he prayed that Allah would strike the destroyer with blindness; and his prayer was granted, it is said, as soon as uttered. However this may have been, a blind sovereign cannot long retain his power in Barbary; and Hamet probably felt that his own authority was less respected; for without any other ostensible reason, he deliberately shot himself in presence of his family in 1745. At least such is the account of his end given to the world.

After the death of Hamet the Great, the usual dissensions as to who should succeed him, for sometime distracted the country; his second son Mohammed at length established his claim, and with singular magnanimity, permitted seven of his brothers to live through his reign, which ended with his life in 1762.

Ali, the son and successor of Mohammed, was not so indulgent, and accordingly his uncles were soon despatched. One of them, a child, was however believed to have escaped, and a man was for many years supported at Tunis, whom the politic sovereign of that country affected to consider as the prince. The pretensions of this person were even favored by the Sultan, who, ever desirous of re-establishing his power over Tripoli, adopted this means of keeping the country in a ferment, and the Pasha in alarm. However, after this first bloody measure, which is considered as a mere act of prudence in the East, Ali passed his reign, not only without any show of cruelty, but actually exhibiting in many cases a degree of culpable kindness. He seems indeed to have been a weak and really amiable man, possessing many negative virtues, and even a few positive; among the latter of which, were constancy and real attachment for his family. He had but one wife, who doubtless merited the devoted respect with which he always treated her; and when we read the details of their family life, as recorded in the agreeable pages of Mrs. Tully,² it is difficult to imagine that such scenes could have taken place within the bloodstained walls of the castle of Tripoli.

² Narrative of a Ten Year's residence in Tripoli, from the Correspondence of the family of the late Richard Tully, British Consul at Tripoli, from 1785 to 1794.

But if Ali received pleasure and consolation from his faithful Lilla Halluma, the mutual hatred of their three sons rendered the greater part of his existence a horrible burden. Hassan, the eldest of the princes, was a man of much energy, together with a considerable share of generosity and good feeling. He was at an early age invested by his father with the title of Bey, which implies an acknowledgement of his right to succeed to the throne, and moreover gives him the command of the forces, the only effectual means of substantiating that right. In this office he soon distinguished himself during many expeditions which he commanded against various refractory tribes; and under his administration, the army and the revenues of the country began to recover from the miserable state in which the supineness of his father had permitted them to languish. Indeed, upon the whole, he gave promise of as much good with as little alloy, as could possibly have been expected in a sovereign of Tripoli.

Hamet, the second son of the Pasha, inherited the weakness of his father, without his better qualities, and exhibited throughout life the utmost want of decision; in prosperity ever stupidly insolent; in adversity the most abject and degraded of beings, the slave of any one who was pleased to employ him. An improper message sent by the Bey to his wife, soon after their marriage, provoked a deadly hatred against his elder brother, which only exhibited itself however in idle vamping threats of vengeance. The distracted parents did all in their power to produce a reconciliation, but in vain; the Bey was haughty, and Hamet implacable; neither trusting himself in the presence of the other, unless armed to the teeth and environed by guards.

Yusuf, the youngest son, was the reverse of Hamet; brave, dashing and impetuous, he had scarcely reached his sixteenth year, before he openly declared his determination to struggle with the Bey for the future possession of the crown, or even to pluck it from the brow of his fond and tottering parent. Hassan at first regarded this as the mere ebullition of boyish feelings, and endeavored to attach him by acts of kindness; but they were thrown away on Yusuf, who apparently siding with Hamet, acquired over him an influence which rendered him a ready tool. The whole country was engaged in the dispute, and daily brawls between the adherents of the opposing parties rendered Tripoli almost uninhabitable.

The report of this state of things produced much effect at Constantinople; the Sultan wished to regain possession of Tripoli, and he had reason to fear lest its distracted state should induce some christian power to attempt its conquest. It was therefore arranged in 1786, that an attack should be made on the place by sea, while the Bey of Tunis should be ready with a force to co-operate by land if necessary. The Capoudan Pasha or Turkish High Admiral, at that time was the famous Hassan, who afterwards distinguished himself in the wars against Russia on the Black Sea, and against the French in the Levant, particularly by the relief of Acre in 1799, while it was besieged by Buonaparte. He was the mortal enemy of Ali, and was moreover excited by the hope of obtaining the sovereignty of the country in case he should succeed in getting a footing. A large armament was therefore prepared; but its destination was changed, and instead of recovering Tripoli, the Capoudan Pasha had orders to proceed to Egypt, and endeavor to restore

that country to its former allegiance; the Mamelukes having succeeded in establishing there an almost independent authority.

The Tripoline Princes had been somewhat united by the news of the projected invasion; but this change in the objects of the Porte, again set the angry feelings of the brothers in commotion, and a severe illness with which their father was seized at the time, gave additional fury to their enmity, by apparently bringing the object of their discord nearer. As the old Pasha's death was expected, the Bey called the troops around him, and every avenue to the castle was defended; Yusuf and Hamet on their parts assembled their followers, and declared their resolution to overthrow Hassan or perish in the attempt, being convinced that his success would be the signal of their own destruction. Their tortured mother prepared to die by her own hands, rather than witness the dreadful scenes which would ensue on the decease of her husband. Ali however recovered, and things remained in the same unsettled state for three years longer; the mutual animosity of the Princes increasing, and the dread of invasion causing every sail which appeared, to be regarded with anxiety and suspicion.

Yusuf had now reached his twentieth year, and had acquired complete influence over the mind of his father; a quarrel about a servant had raised a deadly feud between him and Hamet, and the Bey feeling more confidence from the success of several expeditions, was rendered less cautious than he should have been. Lilla Halluma made every effort to produce unity of feeling among them, and at length prevailed upon Hassan to meet his youngest brother in her apartments. The Bey came armed only with his sword, and even that defence he was induced to lay aside, by the representations of his mother. Yusuf appeared also unarmed, but attended by some of his most devoted black followers; he embraced his brother, and declaring himself satisfied, called for a Koran on which to attest the honesty of his purpose. But that was a signal which his blacks understood, and instead of the sacred volume, two pistols were placed in his hands; he instantly fired at the luckless Bey, who was seated next their mother; the ball took effect—the victim staggered towards his sword—but ere he could reach it, another shot stretched him on the floor; he turned his dying eyes towards Lilla Halluma, and erroneously conceiving that she had betrayed him, exclaimed, "Mother, is this the present you have reserved for your

eldest son!" The infuriated blacks despatched him by an hundred stabs, in the presence not only of his mother, but also of his wife, whom the reports of the pistols had brought to the room. Yusuf made his way out of the castle, offering up as a second victim the venerable Kiah Abdallah, whom he met with on his passage; he then celebrated the successful issue of his morning's achievement by a feast. This happened about the end of July, 1790.

Hamet was absent when the murder took place, and on his return was proclaimed Bey, but not until the consent of Yusuf had been obtained, which the miserable Pasha had been weak enough to require. The two brothers then swore eternal friendship, accompanying the oath with the ceremonies considered most solemn on such occasions. But oaths could have but little weight with men of their respective characters; they could give no security to Hamet, nor act as restraints upon Yusuf. In a short time the brothers disagreed; the Bey fortified himself in the castle, while Yusuf established his quarters in the Messeah, or plain which lies on one side of the City, and raised the standard of revolt. A number of discontented Moors and Arabs were soon assembled in his cause, and he formed a partial siege of the place.

Meanwhile the Sultan was again at leisure to carry into effect the long projected plan against the country. A squadron was prepared, and one Ali-ben-Zool, a notorious pirate, was placed in command, and furnished with a *firman* or commission as Pasha. This squadron entered the harbor of Tripoli on the night of the 29th of July, 1793, and during the confusion that ensued, the Turks having got possession of the gates, were in a short time masters of the town. The *firman* was then read, and the Pasha was summoned to deliver the castle to the representative of his sovereign. The poor old man was struck almost senseless with the news; his wife and family finding that resistance was impossible escaped, carrying the Pasha more dead than alive out of the city, where they at first were protected by an Arab tribe. Yusuf seeing when too late the misery which he had brought on his family, at length begged forgiveness from his father, and the Princes uniting their forces, endeavored by an assault on the town to retrieve their fortunes; but it proved unsuccessful; the Pasha's party was betrayed, and the Turkish power was for a time established. Every species of cruelty was then committed by Ali-ben-Zool, for the purpose of extorting money from the wretched

inhabitants, and scenes were acted, which it would be shocking to relate. The unfortunate Lilla Halluma soon died of grief; her husband and sons retired to Tunis, where they were received and generously assisted by the Bey.

The Porte at length was induced by the cruelties of its agent, to withdraw its support, and leave was given to the Caramalli family to regain their dominions. Ten thousand troops accordingly marched from Tunis in the spring of 1795, under the command of Hamet and Yusuf; ere they reached Tripoli, Ali-ben-Zool had evacuated the place, and retired to Egypt. This ruffian was afterwards made Governor of Alexandria in 1803, subsequently to the expulsion of the French, where he pursued the same course of cruelty and extortion as at Tripoli, until he was at length murdered by his guards.

It is not to be supposed that Yusuf took all these pains merely to establish his brother quietly in Tripoli; the rude soldiery who decide matters of that kind in Barbary, could not but see a difference between him and Hamet, which was by no means in favor of the latter. Of this disposition Yusuf took full advantage, and so ingratiated himself with the troops, that when at length the news of old Ali's death reached the city, he was unanimously proclaimed Pasha; his brother, who was absent at the time, on returning, found the gates closed against him, and received an order from the new sovereign to retire to the distant province of Derne, and remain there as Bey. Hamet having no other resource, went to his place of banishment, and remained there for some time; but finding that his brother was daily making attempts to destroy him, he at length in 1797 retired to Tunis, where he was supported by the Bey.

The earliest act of Yusuf with regard to foreign intercourse, was the conclusion of a treaty with the United States, which was signed on the 4th of November, 1796, Joel Barlow then American Consul at Algiers and Colonel David Humphries, being the agents of the latter party. Its terms are generally reciprocal; passports are to be given to vessels of each country by which they are to be known—"As the Government of the United States is not in any sense founded on the christian religion, and has in itself no character of enmity against the laws, religion or tranquillity of Mussulmen, no pretext arising from religious opinions shall ever produce an interruption

of the harmony between the two countries"—the Pasha acknowledges the receipt of money and presents, "in consideration for this treaty of perpetual peace and friendship, and no pretence of any periodical tribute or farther payment is ever to be made by either party." Finally, the observance of the treaty is "guarantied by the most potent Dey and Regency of Algiers, and in case of dispute, no appeal shall be made to arms, but an amicable reference shall be made to the mutual friend of both parties, the Dey of Algiers, the parties hereby engaging to abide by his decision."

To the terms of this treaty it would be difficult to offer any objection; the United States were anxious that their commerce in the Mediterranean should be undisturbed; their naval force was inadequate to its protection, and it was then considered inexpedient to increase that force. Presents were given in compliance with a custom generally if not always observed, and it was certainly the more manly course to have the fact openly stated in the treaty, with the proviso annexed, that none others were to be expected. The treaty between the United States and Algiers was on terms less equal, as it contained a stipulation on the part of the former to pay an annual value of twenty-one thousand dollars in military stores.

Thus secured from interruption, the American commerce in the Mediterranean rapidly increased, and the Tripoline corsairs were daily tantalized by the sight of large vessels laden with valuable cargoes, which were to be passed untouched, for no other reason than because they sailed under the striped flag and carried a piece of parchment covered with unintelligible characters. This must have been the more vexatious to the corsairs as they never met with ships of war belonging to the nation which they were thus required to respect.

Reports of this nature did not fail to produce their effect upon Yusuf; his cupidity was excited, and he doubtless feared that his popularity might suffer, if his subjects were longer prevented from pursuing what had always been considered a lawful and honorable calling in Barbary. He had collected a small maritime force, estimated in 1800 at eleven vessels of various sizes, mounting one hundred and three guns, and thus considered himself strong enough to give up the further observance of a treaty with a power which appeared so incapable of enforcing it. In this idea he was encouraged by his

naval officers. The chief of these was a Scotch renegade, who had been tempted to exchange the kirk for the mosque, and his homely name of Peter Lyle, with his humble employment of mate to a trading vessel, for the more sounding title of Morat Rais, and the substantial appointment of High Admiral of Tripoli. Rais Peter is represented by all who knew him as destitute of real talent, but possessing in its stead much of that pliability of disposition which is supposed to form an essential characteristic of his countrymen; however that may have been, he for some time enjoyed great credit with the Pasha, and employed it as far as he could against the interests of the United States. Whether this arose from any particular enmity, or from the hope of enjoying a share of the anticipated spoil, is uncertain; but to his influence was mainly ascribed the proceedings which led to a rupture of the peace. Another abettor of the war was the Vice Admiral Rais Amor Shelly, a desperate ruffian, who was most anxious to be engaged where there was such evident promise of gain. Hamet Rais, the minister of marine, was of the same opinion, and probably of all his councillors, Yusuf placed the greatest confidence in him; he is represented as a man of great sagacity and energy—such indeed, that Lord Nelson thought proper in 1798, to send a ship of the line, with a most overbearing letter, demanding his exile, which the Pasha promised, but after the departure of the ship thought no more about it. The only friend of the United States in the regency, was the Prime Minister Mahomet d'Ghies, whom every account represents as an honorable and enlightened gentleman.

Thus fortified by the assurances of his counsellors, and farther induced by his success in bringing Sweden to his terms, Yusuf commenced his proceedings against the United States in 1799, by making requisitions of their consul; these were resisted, and to a proposal from Mr. Cathcart (the consul) that reference should be made to the Dey of Algiers, as provided in such cases by the treaty, the Pasha replied that he no longer regarded the stipulations of that convention. His intentions became more clearly defined in the ensuing year, when Rais Shelly returned from a cruise, with an American brig, which he had brought in under pretence of irregularity in her papers; she was indeed restored, but not until after long delay and the commission of numberless acts of petty extortion, accompanied by hints that such lenity would not be again displayed. Considerable time having elapsed without any answer from the United States, the consul was

informed that the treaty with his country was at an end; that the Pasha demanded two hundred and fifty thousand dollars as the price of a new one; and that it must contain an engagement on the part of the United States, to pay an annual tribute of twenty-five thousand dollars for its continuance. No reply having been made to this, war was formally declared by Tripoli on the 11th of May, 1801, the American flag staff was cut down by the Pasha's orders on the 14th, and Mr. Cathcart left the place a few days after.

A swarm of cruisers instantly issued from the port of Tripoli, and spread themselves over every part of the Mediterranean; two of them under Morat Rais arrived at Gibraltar, with the intention of even braving the perils of the unknown Atlantic, in search of American vessels. In the course of a few weeks five prizes were taken by the corsairs; but the consul of the United States had long foreseen the danger, and given timely warning, so that interruption of their commerce was almost the only evil afterwards suffered.

As soon as the news of these exactions arrived in Washington, President Jefferson caused a squadron, composed of three frigates and a sloop of war, to be fitted out and despatched to the Mediterranean, under Commodore Dale; it entered that sea about the end of June, 1801, and was probably the first American armed force seen in its waters. This squadron was sent with the hope that its display would be alone sufficient to bring the Pasha back to the observance of the treaty; the Commodore was therefore instructed to act with great caution, so as to repress rather than provoke hostilities; and he was made the bearer of letters to each of the Barbary sovereigns, couched in the most amicable terms and disclaiming all warlike intentions. The squadron touched first at Tunis, where its appearance somewhat softened the Bey, who had begun the same system of exactions from the American consul; it then sailed for Tripoli, before which it appeared on the 24th of July.

The sight of such a force was very disquieting to Yusuf, who sent a messenger on board to learn what were its objects. The Commodore replied by asking what were the Pasha's views in declaring war, and on what principles he expected to make peace? To this Yusuf endeavored to evade giving a direct answer, and he hinted that his principal cause of complaint was the dependence on Algiers implied by the terms of the first and the last

articles of the treaty, which he considered humiliating. The American commander not being empowered to negotiate, remained for some days blockading the harbor, until having learnt that several cruisers were out, he thought proper to go in search of them. One only was encountered, a ship of fourteen guns, commanded by Rais Mahomet Sous, which after an action of three hours, on the 1st of August, with the schooner Enterprize, struck her colours; the Americans lost not a man, the Tripolines had nearly half their crew killed or wounded. As orders had been given to make no prizes, the cruiser was dismantled, and her captain directed to inform the Pasha, that such "was the only tribute he would receive from the United States." Notwithstanding the desperate valor displayed in this action by the Tripolines, Yusuf thought proper to ascribe the result to cowardice on the part of the commander; and poor Mahomet Sous, after having been paraded through the streets of the city on an ass, exposed to the insults of the mob, received five hundred strokes of the bastinado. This piece of injustice and cruelty however, produced an effect the reverse of that which was intended; for after it, no captain could be induced to put to sea, and those who were out already, on learning the treatment experienced by their comrade, took refuge from the Americans and the Pasha, for the most part among the islands of the Archipelago. The two largest vessels which had been arrested at Gibraltar on their way to the Atlantic, by the appearance of the United States' squadron, were laid up at that place, their crews passing over into Morocco.

The American commerce being thus for the time secured from interruption, a portion of the squadron returned to the United States; the remainder passed the winter in the Mediterranean, and were joined in the ensuing spring (1802) by other ships. Nothing however was attempted towards a conclusion of the difficulties with Tripoli by any decisive blow; the American agents in the other Barbary states were instructed to procure peace if possible, on condition of paying an annual tribute; and partial negotiations were carried on, principally through the mediation of the Bey of Tunis. They however proved ineffectual, as Yusuf demanded an amount far beyond that which the American government proposed. The operations of the squadron were limited to mere demonstrations; a simple display of force being considered preferable to active measures. On one occasion however, the Constellation frigate, while cruising off the harbor of Tripoli,

was suddenly becalmed, and in this defenceless situation, was attacked by a number of Tripoline gun-boats; their fires would soon have reduced her to a wreck, had not a breeze fortunately sprung up, which enabled her to choose her position; several of the gun-boats having been then quickly destroyed, the remainder were forced to retreat into port.

The system of caution and forbearance by which the foreign policy of the American government was then regulated, renders the history of its transactions in the Mediterranean during the first four years of this century by no means flattering to the national pride. There was a disposition to negotiate and to purchase peace, rather than boldly to enforce it, which must have been most galling to the brave spirits who were thus obliged to remain inactive; and it certainly encouraged the Barbary governments in the opinion that the Americans were disposed to accept the more humiliating of the two alternatives, paying or fighting, which they offered to all other nations. It would not perhaps be just at present to censure this patient policy; the institutions of the country were then by no means firmly established, and the utmost circumspection was necessary in the management and disposition of its resources. There was also great reason to apprehend that a decided attack on one of the Barbary powers, would produce a coalition of the whole, aided by Turkey, which might have given a blow, severe and perhaps fatal, to the commerce of the United States in the Mediterranean. The Americans may however at least rejoice, that a more dignified system can now with assurance be pursued, in the conduct of all their affairs with foreign nations.

The length of this article renders its conclusion in the present number inconvenient; the remainder will appear in our next.

REVIEW

of Governor Tazewell's Report to the Legislature of Virginia, on the Deaf and Dumb Asylum.

The late Chief Magistrate of Virginia, Governor Floyd, in his message of December, 1833, called the attention of the Legislature to the condition of that unfortunate race of beings for whom it has been reserved, under Providence, to the present age, to provide a suitable system of instruction, by which they should be elevated to the condition of moral and accountable creatures. The Governor says: "The deaf, and dumb, and the blind, are objects of sympathy with all classes of society, and from which no family can claim exemption. An asylum for these unfortunate beings is suggested, where proper attention and instruction can be given at public expense—where they can be taught to read and write, and learn something of the useful arts; where even the blind can be taught something to alleviate the long and wearisome night which is allotted to them. I appeal to you in their behalf with the more confidence, as it is a subject which stands wholly unconnected with the business of life, from which they are excluded; and without voice, like the eloquence of the spheres, applies to the heart of all, from which they will not be spurned by the good and the just."

These humane and benevolent suggestions were referred, by special resolution, to the Committee of Schools and Colleges, by which committee a very able report was made on the subject to the House of Delegates, concluding with a resolution, "that it was expedient and highly important to provide immediately for the establishment and endowment of an asylum for the deaf and dumb of the state of Virginia."

At the same session of the Legislature, it appears that a memorial was presented by the trustees of the deaf and dumb asylum at Staunton, an association incorporated in March 1833, setting forth that sufficient funds had been provided to purchase a suitable site for a building—and praying that the Legislature would make an annual appropriation in aid of their benevolent purposes. This memorial is written with ability, and presents in a strong light the necessity of some legislative action on the subject. The

Legislature, it seems however, was not prepared to act definitively, even with all the lights before them; but as if unwilling that an object so vastly important, and involving so many high considerations, should entirely be lost sight of,—the House of Delegates, a few days before the close of the session, adopted a resolution requesting the Governor "to communicate to the General Assembly at its next session such facts and views as he might deem pertinent and useful, relative to the best plan, the appropriate extent, the most suitable organization, and the probable cost of an institution for the instruction of the deaf and dumb, to be located in some healthy and convenient situation in this state; and that he be further requested to accompany his communication by such information as he might be able to impart relative to similar institutions in other states, together with an estimate of the probable number of the deaf and dumb who would repair to such an institution, to be located within the limits of this Commonwealth."

In compliance with this resolution, Governor Tazewell, whose term of office commenced on the 31st of March last, made a report to the Legislature at its present session—a report which we regret to say is entirely at variance with all the views heretofore entertained on this interesting subject—a report which, so far as such high authority can wield an influence, is calculated to repress the efforts of the friends of humanity in the prosecution of so noble a cause. We shall examine this document with the respect which is due to the high character and eminent talents of its author—at the same time with that freedom which belongs to the right of discussion—especially when we believe that the interests of humanity are deeply concerned in the issue.

The report, after a few preliminary remarks, sets out as follows: "In differing from those who may be in favor of establishing within this state a seminary for the education of the deaf and dumb *at this time*, I hope I shall not be considered by any as being opposed to the accomplishment of an object so truly benevolent in its character. The very reverse of this is the fact. It is only because I ardently desire to see this laudable object attained by the best means practicable, that I do not concur with those who may desire to effect it by the creation of such an institution within this Commonwealth *at this time*." Now with great deference to his Excellency, we humbly conceive that all the reasons which he assigns against the

establishment or endowment of an asylum *at this time*, apply with equal force to any *other time*. If there be any force in his arguments, they will continue to operate, at least in a very essential degree, *for a long period of years*. What are his reasons?

"Schools for the instruction of the deaf and dumb differ from all other seminaries of education in this particular—that they can never prosper, except by means which may suffice to bring together, at one point, a sufficient number of pupils to commune with each other in their own peculiar mode, and to concentrate the interest necessary to be felt, and the efforts necessary to be used by those engaged in their instruction. No expense can accomplish the desired object, unless by the attainment of these means. Then, the question seems to be resolved into this: Can the Legislature of Virginia reasonably promise itself, that by the employment of any means which it ought to use, it may concentrate at any point within this state, sufficient inducements to draw thither the proper number of such pupils and of such instructors? I do not think this can be done."

We shall forbear answering this part of his Excellency's report, which we think is very easily done, until we spread still more of his reasons before the reader.

"The whole number of white persons in Virginia, of all ages, who were deaf and dumb, is shown by the last census to have been then four hundred and twenty-two only. The annual increase of such unfortunates (as shown by the calculations made upon the population of other countries less favorably situated in this respect than Virginia,) does not amount to more than about fifteen in a million—a number approaching so nearly to the annual decrease by natural causes, that the annual augmentation here must be very small indeed. Of the whole number of deaf and dumb in any state, even in those where the most liberal means have been employed to attract to their long established asylums all of that class who might be induced to resort thither, the proportion does not exceed one fifteenth. Thus in Connecticut, where the number of mutes, as shewn by the last census, was two hundred and ninety-five, there were not at their asylum, according to the last report of that institution which I have seen, more than eighteen persons of that number; and this after a period of sixteen years had elapsed since the

commencement of this establishment. Yet in Connecticut the population is dense, and the inducements held out to send all their deaf and dumb to this asylum are very great indeed. So too in Pennsylvania, where the last census shews the whole number of mutes to have been seven hundred and twelve, the number of these at their excellent asylum, according to the last report, was only forty-eight, after this seminary had been opened fourteen years.

"If then," continues the Governor, "in Connecticut, where there are two hundred and ninety-five mutes, there cannot be collected at such an institution, after sixteen years, more than eighteen of that number; and if in Pennsylvania, where the number of mutes is seven hundred and twelve, only forty-eight of that number can be induced to avail themselves of the advantages held out by its admirable institution, after —— years; it is unreasonable to suppose that the sparse population of Virginia could supply a sufficient number of pupils to attain the great object had in view by the establishment of a seminary here like that proposed. For it must not be overlooked, that the supply of pupils to every school will bear some proportion to the expense of maintaining them while there, and that in older institutions, this expense will be necessarily much less than in those of more recent origin."

The Governor would have shed much more light upon this branch of the subject, if he had expressed his opinion as to the precise number of pupils which it was necessary to bring together, in order that they might "commune with each other in their own peculiar mode;" and which, according to his view of the subject, is necessary to the existence and prosperity of all such institutions. That opinion however he has not indicated; but has left us to infer that as not more than one in fifteen has ever been induced, according to the experience of other institutions, to resort to them for instruction, even by the employment of the most liberal means,—that proportion of the whole number of free white deaf mutes in Virginia, would not be sufficient to justify the commencement of such an establishment here. One fifteenth of the whole number in Virginia, at the last census, would be twenty-eight. That number, however, will not suffice, and we must wait longer. How long, it is impossible to tell—inasmuch as from his Excellency's reasoning, the increase must be very inconsiderable—being not more than at the rate of sixteen annually for every million of

inhabitants; and from this must be deducted the decrease from natural causes. Let us suppose then that the annual increase in Virginia is sixteen, and that the annual decrease is twelve, leaving a yearly increment of four to the whole number in the state. Now as, according to Governor Tazewell's views, not more than one in fifteen of the whole number can be induced to attend a school of instruction, it requires not the aid of Cocker to demonstrate that several years must elapse before even an additional pupil can be added to the twenty-eight above stated. Candor compels us therefore to declare that we think this part of his Excellency's report very unsound in its reasoning. He seems to have founded his argument upon the supposition that the deaf and dumb pupils to be educated at the proposed asylum in Virginia, are to be maintained from their own resources, or the private liberality of their friends; whereas, the very object of applying for Legislative aid, is to enable many of these indigent children of misfortune to obtain instruction at the public expense. If this was not the ground of the Governor's reasoning, why does he suppose that not more than one-fifteenth of the whole number of deaf mutes could be induced to resort to a seminary for instruction? Does he mean that a larger proportion could not be obtained if the public expense were proffered for their education and subsistence? If he does, then we humbly think that his Excellency is most egregiously mistaken.

Strange as it may seem however, whilst the Governor in the part of his report which we have quoted, seems to reason upon the idea that Legislative aid is desired for the sole purpose of endowing an asylum at the commencement, and that the annual cost of supporting and educating the pupils is to be drawn from private sources,—he nevertheless suggests as the preferable mode, that the Legislature should annually appropriate a sufficient sum for the maintenance of a given number of pupils at the institutions of Connecticut or Pennsylvania. Let him speak in his own language:

"If the benevolent purpose of instructing the deaf and dumb be the great object of those who desire the establishment of a seminary of this kind in Virginia at this time, the principal question must be, by what means can such an object be best attained? The considerations I have mentioned will probably suffice to shew, that much proficiency cannot reasonably be

expected from a school of this kind created here now, nor for many years yet to come, except at a cost to the public very far exceeding any public benefit that could possibly be derived from it. The benevolence of the object might perhaps justify such an expenditure for its accomplishment, if no other means existed. But when other means are open, by which the same benevolent purpose may be attained, even better, and at much less expense, it seems difficult to assign any reason why the better and cheaper mode should not be preferred. This better mode seems to me to be, to appropriate a portion of the sum it must require to create and to perpetuate such an establishment here, to the advancement of the same object in some other seminary already established in one of the other states. All the eastern states (except Rhode Island, I believe,) have pursued this course in regard to the seminary at Hartford, in Connecticut; and I understand that New Jersey, Delaware and Maryland have adopted the same plan with respect to the seminary in Pennsylvania."

In what way, let us ask, is this annual appropriation which the Governor recommends, to be expended? Upon the indigent of course—upon those to whose intellectual night the providence of God has superadded the gloom of poverty; and these objects of public sympathy and bounty are to be selected we presume from various parts of the commonwealth, according to some equitable rule hereafter to be established. Now we humbly think, that whatever inducements could prevail upon the friends of these unfortunates, to send them from three to five hundred miles abroad, in order to partake of the state's charity, would operate with much greater force if the place of their destination were somewhere within our own limits. Of this fact we presume there can be no question. The father or guardian of an indigent deaf mute in one of the border counties of this commonwealth, would vastly prefer Richmond, Staunton or Charlottesville as the place of his education, to either of the cities of Philadelphia or Hartford. There are, moreover, many strong and obvious reasons why a *state institution* should be patronized, in preference to any other. The public funds would be expended on our own soil, and among our own population. The state would be even richer, by the introduction among us of that peculiar science, which reveals the mysterious intercourse of human minds deprived of the usual inlets to the understanding. The Governor himself seems to be aware that the encouragement of every good thing among ourselves, rather than to be

dependent upon others for their enjoyment, is an honest, natural and patriotic prejudice; and accordingly he takes some pains to encounter and overthrow it. Hear him.

"Although I will not admit that there is a single citizen within the limits of Virginia more desirous than I am to domesticate here every thing needful to the well being of the state, yet I neither consider many of what are called modern improvements as coming within this description, nor do I regard it as wise to attempt such domestication prematurely. It is among the wise dispensations of Providence, that all things really necessary to man are placed within the grasp of every community composed of men, and that much of what is not necessary, but convenient only, is of easy acquisition in every civilized society. But when you ascend higher in the scale, and seek to teach or to learn all the sublime and long hidden truths of modern science, it is perhaps fortunate for our race that there are not many any where who feel the inclination to become scholars, and very few indeed who are qualified to teach such lessons. Such science may truly say she is of no country; for no single country on the habitable globe could fill the chairs of the instructors, or the forms of the pupils. Accident generally lays the foundation of such seminaries, and the contributions of the civilized world are required to erect and preserve the edifice. Does any country grudge to pay her quota to the common stock, or seek to pluck from the wing of science the particular feather which such country may claim as her own?—each will do so in its turn—and the bird which might have soared to a sightless height, when stripped of its plumage, will but flutter on the surface, unable to wing her way on high."

Now we confess that we do not understand to our entire satisfaction this extract from the report. The figure of the bird with the plucked plumage, neither strikes us as in very good taste nor very intelligible; but as we have more to do with his Excellency's arguments than his rhetoric, we shall leave the latter to those who are better skilled than we are in following "the mazes of metaphorical confusion." The governor proceeds:

"If this is the case with science, in what may now be considered its higher departments, how much stronger is the appeal humanity makes in favor of benevolence and christian charity. These are of no country, certainly. They

but sojourn on earth, teaching frail man to do his duty to his maker, in providing for the wants of his unfortunate fellows, so far as is practicable. To them it must be of little consequence indeed, whether the mute by nature is made a rational being by arts employed in his education, either in one place or another. So far as regards the unfortunate mute, the only inquiry is, where can he be best taught? The only inquiry of the benevolent ought to be, where can he be so taught at the least cost? This last is an inquiry suggested not less by benevolence than the former; for as the means of even charity are necessarily limited, that application of them is best which promises to do the greatest good with the least expenditure.

"To all this let me add, that if there is any thing better calculated than any other to cement our union, and to keep bright the chain which I trust will bind these states together while time lasts, it will be found in the contributions of each to the advancement of objects approved by all, without any jealous regard to the actual spot at which such a general good may commence. If a generous spirit of this sort is but once manifested, its effects will be soon seen and felt by all. Acts of kindness will not fail to induce forbearance and to generate sympathy. When each state shall feel, that for the aid it requires to accomplish any object of general utility, it may rely confidently on its co-states, there will be no more applications to the federal government to pervert the language of the constitution, in order to accomplish the unholy scheme of robbing a minority to enrich a majority. Then, those who contend but for the spoils of the vanquished, may be safely left to the contempt which such a motive cannot fail to inspire with all the generous and the good. It would have been worthy of Virginia to set such an example: it is worthy of her to imitate that which others have already taught."

It is in these passages that we think lurks the fallacy, and we might add, the mischief of the Governor's views. He sets out first by deprecating all legislative interference on the subject. "Let us alone" is his cardinal maxim, and the maxim of the school of political economists to which he belongs.—Let individuals take care of themselves and of each other, but let not government presume to thrust its paternal care upon the community. In the next place, however, if the State, according to his Excellency's notions, will officiously obtrude into these private matters—why then let the funds of the

Commonwealth go abroad and enrich some sister State.—These kind offices will brighten the chain of union which binds the States together. They will teach us all to rely more upon each other, and less upon the general government. This is the sum and substance of the Governor's reasoning; and dangerous and fallacious as we believe it to be, we feel the stronger obligation, coming from the high quarter it does, to resist and refute it if we can. It may be justly asked, if there be any thing sound in this specious appeal to the generous feelings of the States, why have not the States carried out the doctrine themselves? Why has North Carolina for example, proverbially styled the Rip Van Winkle of the South, been so blind to her own interests and duty, as not to send her deaf and dumb children to Hartford, instead of erecting an asylum at home? Why have Ohio and Kentucky been guilty of the similar folly of founding institutions themselves? We think we can answer these questions in the only way in which they can be answered, and that is, that these younger States—these (for the most part) daughters of the Old Dominion, are wiser in their generation than their venerable mother. They have discerned their true interests, in fostering their own establishments. Did any one ever dream that Kentucky had given cause of offence to her sister States, by erecting an asylum for the poor mutes? We apprehend not. The truth is, that his Excellency the Governor, is entirely mistaken in his views upon this subject. State pride,—State sovereignty,—State independence,—jealousy of the federal government,—whatever you please to call it, is best preserved by each individual State taking care of its own resources, and building up its own establishments. What a ridiculous business it would be, if twenty-four families in the same neighborhood, were to act upon the principle that each was to take care of all the rest in preference to itself? How will the twenty-four States ever be strong, unless each State will attend particularly to the developement of its own latent powers and capacities—unless each will apply its own energies for its own benefit? Pursue the Governor's doctrine to all its remote consequences, and see to what absurdities we are driven. The University of Virginia was a most palpable violation of the courtesy and good feeling due to our sister States. Besides, according to his Excellency, would it not have been *cheaper* to send our sons as usual to Cambridge, and Princeton, and Yale, rather than incur the enormous expense of erecting a splendid establishment from the State Treasury? The University, by the way, furnishes a very strong case, favoring, in many of

the views in which it may be regarded, the positions and doctrines of Governor Tazewell; yet what Virginian regrets even the lavish expenditure by which that institution has been endowed?—Who does not rather rejoice, that in his native State, at the base of Monticello, the domes of science have been reared, to scatter its light to the present and future generations?

The truth is, and most melancholy is the truth, that many of our leading men in Virginia, perhaps the far greater number, are inclined to acquiesce in this fatal doctrine of State apathy—this most paralyzing policy of passive inertness,—whilst the world at large, and many other portions of the Union, are marching in advance of us, with a celerity which defies calculation. Governor Tazewell might well have applied his figure of the bird despoiled of its plumage, to our poor, old and venerable mother. Her daughters, and sisters, and brothers—almost the whole family—no doubt with the best intentions in the world—are practising, in one way or other, on the old lady's kind feelings and generous principles. Our worthy and excellent friends East of the Hudson, send us their notions—their long provender, their vegetables and brooms, and beg us, by all means, to buy them, because it is *cheaper* to do so, than to divert our labor from our valuable staples. They send us also their excellent cottons, and other fabrics of their looms, which we take liberally, although we have a good deal of surplus labor, and the finest water power in the Union.—Our near neighbor and almost twin sister Maryland, is pushing, with a degree of enterprise which does her credit, her internal improvements into the heart of our own territory—and we—we have too much grace and politeness to say to her, that it is rather an intrusion. Our most filial and amiable daughters to the West, send to us their hogs, horses and cattle—and we pay them, at least so says the buyer, most tremendous prices. All these drains from our prosperity, and many more which might be enumerated, we submit to, with a degree of patience and composed resignation that even Job might have envied. Our Eagle is indeed stripped of its plumage, to adorn others more fearless and adventurous on the wing.

But to return to the Report. The Governor thinking it probable that the Legislature might not concur in his views, either to give the whole subject of a deaf and dumb asylum the go-by, or to adopt the alternative of sending the indigent pupils into other States, presents various views touching the

management of such institutions—the general correctness of which we are not disposed to question. At one thing, however, we are somewhat surprised, and that is, that his Excellency seems not to have been aware of the existence within this State, of an incorporated asylum, prepared to go into operation whensoever the public shall extend its patronage. The Report seems to have been founded upon a voluminous mass of documents, which are deposited in the public library, for the use of the Legislature. Not having access to them, we shall content ourselves with a reference to such others as lay within our reach, in order to present, in a few strong lights, the importance and necessity of such an institution in Virginia.

At the session of 1825-'6, Governor Pleasants communicated to the Legislature the first annual report of the trustees of the Kentucky institution, and also the ninth annual report of the Hartford Asylum. The first mentioned document is particularly important, inasmuch as it exhibits at once the success which attended a *first experiment*, under circumstances extremely disadvantageous. The report of the trustees made to the Kentucky Legislature was referred to a joint committee of the two Houses,—who visited the asylum at Danville, and who, among other things, stated, on their return, "that they were greatly gratified in witnessing the progress made by the pupils, whose facility and correctness in comprehending the signs made by the teacher, and expressing their ideas, exceeded any thing that could have been anticipated by the most sanguine friends of the institution." They further state the following extraordinary facts, which ought at once to dispel all prejudice, and unite all hearts in support of a system of instruction, attended by such beneficent results. "All those who had been instructed in the asylum for FOUR MONTHS, wrote good hands, spelled correctly, and answered promptly and correctly, numerous questions that were proposed to them by the teacher and members of the committee." It also appears that the whole number of pupils, at the end of the first year, was only twenty-one—a number, which, according to Governor Tazewell's theory, is not sufficient for the purpose of mutual communion, in their peculiar mode—but which, in the instance before us, would seem to establish the very reverse of that proposition.

The report from the Hartford Asylum, which is dated in 1825, is particularly interesting, as furnishing extraordinary proofs of the progress of the pupils,

both in moral and intellectual attainments. We think, if Governor Tazewell had been so fortunate as to light upon this document, he would scarcely have urged as a reason for *postponing* an asylum in Virginia, that the science of instructing the deaf mute was continually advancing, and was likely to be more perfect some years hence than at present. Doubtless this peculiar and valuable art will improve, and so will many other branches of knowledge which are even now in a highly advanced state. Natural history, chemistry, and the physical sciences generally, are constantly enlarging their boundaries, and extending their acquisitions—but shall we, on that account, remain in ignorance of what they *now* teach, in the vain hope that by and by they will reach the maximum of perfection? Strange doctrine truly!

We have already referred to the memorial of the trustees of the Staunton institution, and the report of the committee of schools and colleges—both of which interesting papers will be found among the printed legislative documents of last winter, and ought to be reprinted for distribution among the members of that body, now in session. We hope that the Legislature will take the subject into its speedy and earnest consideration, and that, in the language of the Kentucky report, they will hearken to the "claims of those whom God, in the mysterious dispensations of his providence, has deprived of the faculty of hearing and of speech; of whom an eloquent divine has said, 'silence like theirs is eloquence.'"

COLONIAL MANNERS.

A picture of the House of Burgesses of Maryland in 1766.

We have been politely favored with the sight of a letter from *an illustrious philosopher and statesman*, written at Annapolis on the 25th May, 1766, to

his friend in Virginia, from which we make the subjoined curious extract. It is no less instructive than amusing to trace the progress of society from its rude and simple beginnings, to that more perfect form produced by civilization and refinement. It may be doubted however, whether the degree of decorum prevailing in the legislative body of a country, furnishes more than an imperfect index to the state of public manners. We will venture to assert that in 1766, the very year when the Burgesses of Maryland are represented as no better than a "mob," the Colonial Assembly of Virginia exhibited as fine a picture of gravity and dignity as could be well conceived; and yet we have no reason to believe that the people of Maryland at that day were less civilized than their brethren south of the Potomac. Perfectly aware as we are of the faults of our countrymen, we have nevertheless always contended that the Virginians are the most remarkable people in the world for the observance of a certain peculiar affability towards each other, not only in their public bodies, but in private intercourse. We mean Virginians of the genuine old stock—not the new race who have sprung up among us like mushrooms, and are trying to introduce an awkward imitation of European customs. These latter are some of them weak enough to think that the sudden acquisition of fortune, without merit on their part, or a voyage or two to London or Paris, are of themselves sufficient to constitute a finished gentleman. Real refinement is founded upon good sense, and upon kindness and good will towards our fellow man, and never can co-exist with purse-proud arrogance or conceited vanity.

In reference to our public assemblies, it is a common remark, and we have no doubt a just one, that there is more order, decorum and dignity in the Virginia Legislature, than in the House of Representatives of the United States. In the latter body the members sit with their hats on, write letters and read newspapers, whilst one of their members is addressing the chair, or the speaker is putting the question. Such disorder is rarely seen in the Capitol of the Old Dominion.

—"I will now give you some account of what I have seen in this metropolis. The Assembly happens to be sitting at this time; their upper and lower house as they call them, sit in different houses. I went into the lower, sitting in an old courthouse, which judging from its form and appearance, was built in the year one. I was surprised on approaching it, to hear as great a noise and hubbub as you will usually observe at a public meeting of the planters in Virginia.

The first object which struck me after my entrance, was the figure of a little old man, dressed but indifferently, with a yellow queue wig on, and mounted in the judge's chair. This, the gentleman who walked with me, informed me was the speaker, a man of a very fair character, but who, by the by, has very little the air of a speaker. At one end of the justices' bench stood a man whom in another place I should, from his dress and phiz, have taken for Goodall the lawyer in Williamsburg, reading a bill then before the house with a schoolboy tone, and an abrupt pause at every half dozen words. This I found to be the clerk of the Assembly. The mob (for such was their appearance) sat covered on the justices' and lawyers' benches, and were divided into little clubs, amusing themselves in the common chitchat way. I was surprised to see them address the speaker without rising from their seats, and three, four and five at a time, without being checked. When a motion was made, the speaker, instead of putting the question in the usual form, only asked the gentlemen whether they chose that such or such a thing should be done, and was answered by a yes sir, or no sir; and though the voices appeared frequently to be divided, they never would go to the trouble of dividing the house; but the clerk entered the resolutions, I supposed, as he thought proper. In short, every thing seems to be carried without the house in general knowing what was proposed."

For the Southern Literary Messenger.

WESTERN SCENERY.

EXTRACT OF A LETTER FROM A WESTERN TRAVELLER.

We had rode about a mile, when my guide said, that if I was willing to go a hundred yards out of the way, he could show me something worth seeing. I no sooner assented to this, than he cast around him his keen woodsman's glance, and then, turning his horse in a direction slightly diverging from the road, struck into the woods. I followed, and presently observed that we were pursuing a course nearly parallel to what seemed to be a precipice, beyond the verge of which I caught glimpses of a vast extent of country.

Without allowing me time to see any thing distinctly, my guide pushed on, and, spurring to the top of an Indian barrow, placed himself and me at the desired point of view.

We were on the spot that overlooks the confluence of Salt River with the Mississippi. Having once travelled an hundred miles to see the Natural Bridge, and having heard from Mr. Jefferson that that sight was worthy of a voyage across the Atlantic, I certainly did not grudge the price I had paid for the view that opened on me.

The confluence of the rivers is nearly at right angles. The hill descends with equal abruptness towards each, and, at first glance, the apex seems to overhang the water of each. But this is not so. The descent, perhaps, wants two or three degrees of perpendicularity, and, at the bottom, there is a narrow border of low-ground, fringing the banks with lofty trees. The appearance of these trees gave the only measure of the height of the hill. To the eye they might be bushes. My guide assured me they were of the tallest growth.

To the East, across the Mississippi, lay what is called *Howard's bottom*. This is, as its name imports, a body of low ground. Its width is said to be, in some places, not less than six miles, and to be nearly uniform for a distance of sixty. Of this I could not judge. It seemed that it might be so. I was nearly opposite the middle of it, and overlooking the whole. Next the water was a border of the most luxuriant forest, apparently some half a mile in width, and beyond this, a Prairie reaching to the foot of the hills, interspersed with masses of forest, and groves, and stumps, and single trees, among which, here and there, were glittering glimpses of the *Chenille ecartee*, which traverses the whole length of it. You, who know the vesture in which nature clothes these fertile plains, need not be told how rich and soft was the beautiful picture thus spread beneath my feet. Its *setting* was not less remarkable. This was a perpendicular wall of limestone, two or three hundred feet high, which bounds the valley on the East. An occasional gap, affording an outlet to the country beyond, alone broke the continuity of this barrier. To the North, lay the extensive plain through which Salt River winds. I have no idea of its extent. It is a vast amphitheatre, surrounded by

lofty and richly-wooded hills. The plain itself is of wood and Prairie interspersed, and so blended, that every tree seems placed for effect.

You are not to suppose, because I do not launch out in florid declamation about the beauty, and grandeur, and magnificence, and all that, of this scene, that it was less striking than you would naturally suppose it must be. You know that I have neither talent nor taste for *fine writing*, so you must take the picture as I give it, and draw on your own imagination for the garniture. I have said nothing of the rivers, but to tell you they were there, and flowing through a landscape of many hundred thousand acres of the richest land on earth, with the most beautifully variegated surface, all spread out under my feet. I felt that the scene was sublime; and it is well for your patience, that I have learned that sublime things are best described in fewest words. It is certainly the finest I ever saw. There may be others equal to it, but the earth does not afford *room* for *many* such. What will it be, when it becomes "a living landscape of groves and corn-fields, and the abodes of men?" As it is, if the warrior, on whose tomb I stood, could raise his head, he would see it in nothing changed from what it was when his last sun set upon it.

THOM'S GROUP OF STATUARY,

FROM BURNS'S TAM O'SHANTER.

These remarkable specimens of sculpture, have been recently exhibited in this city, and have attracted, we believe, universal admiration. The artist is a native of Ayrshire, Scotland,—which also gave birth to the Immortal Bard, whose conceptions are so happily illustrated by the genius of the sculptor. Not pretending ourselves to any of those mysterious capabilities, which are claimed by *connoisseurs* and *amateurs*, to judge of the productions of art; we

rely upon our simple perceptions of what is both true and excellent, in their design and execution. The following is the passage from Burns, which the artist has chosen in order to give visible and tangible form to the poet's fancy:

Ae market night,
Tam had got planted unco right,
Fast by an ingle, bleezing finely,
Wi' reaming swats, that drank divinely;
And at his elbow Souter Johnny,
His ancient trusty, drouthy crony:
Tam lo'ed him like a vera brither;
They had been fou for weeks thegither.
The night drave on wi' sangs and clatter,
And aye the ale was growin' better:
The landlady and Tam grew gracious,
Wi' favours, secret, sweet, and precious:
The Souter tauld his queerest stories,
The landlord's laugh was ready chorus:
The storm without might rair and rustle,
Tam did na mind the storm a whistle.

Never perhaps, as is well observed by a political journal in this city, was the genius of art so truly impressed upon stone, as in the present instance,—to represent human bodies in a state of petrification. A reader of Romance, would almost imagine that the wand of enchantment had passed over the merry group, and had frozen the currents of life—without disturbing the mirth, enlivened feature, the arch and humorous look,—or the easy and careless attitudes of nature. We admire the productions of the great masters of modern times, or, of classical antiquity—but, whilst we gaze, we never once even *imagine* that the promethean spark might have animated the marble. Belonging, as most of them do, to the *ideal* schools of sculpture—imbodifying all that is fair and beautiful, in the artist's conception; rather than what is absolutely true in the visible forms of nature,—they do not strike us with the same irresistible force, or so instantly seize upon our feelings—as does the rude, simple, but faithful sculpture of this unlettered and inexperienced Scottish stone-cutter. Considering that Mr. Thom was entirely

ignorant of the rules of his art,—that he had not even the advantage of first modelling his productions in clay,—that the group from Tam O'Shanter is among his first efforts, and that each of these fine pieces, was hewn at once out of the shapeless stone, without the power of correcting the mistakes of his chisel as he proceeded,—the mind is lost in wonder at the vigor and originality of his genius. Such a man is worthy the birthplace of Robert Burns,—who little thought whilst he was sketching the hilarities of the ale-house, that one of his countrymen would so soon arise to present in the forms and models of a sister art, so fine a representation of the scene. The following detailed account of the artist, and of his singularly successful labors, is extracted from an Edinburg journal. We copy it from "*The People's Magazine*." It will be highly interesting to most of our readers:

James Thom, the sculptor of these wonderful figures, is a native of Ayrshire, and of respectable parentage near Tarbolton. Although, like those of his countryman and inspirer, his relatives were all engaged in agricultural pursuits, (his brothers, we understand, possess large farms,) the young man himself preferred the occupation of a mason, and was, accordingly, apprenticed to a craftsman in Kilmarnock. This profession was probably selected as offering the nearest approach to the undefined workings and predilections of his own inexperienced mind, since he was not, as in the instance of several sculptors of eminence, thrown first into the trade of a stone mason by the force of circumstances. This would appear from his showing little attachment to the drudgery of the art: accordingly, his first master is understood to have pronounced him rather a dull apprentice. From the beginning, he seems to have looked forward to the ornamental part of his calling; and in a country town where there was little or no opportunity of employment in that line, to those more immediately concerned, he might appear less useful than a less aspiring workman. The evidences of young Thom's diligence and talent at this time, however, still remain in numerous specimens of carving in stone, which he himself still considers, we are told, as superior to any thing he has yet done.

His term of apprenticeship being expired, Mr. Thom repaired to Glasgow in pursuit of better employment. Here his merits were immediately perceived, and so well rewarded, that his wages were considerably higher than the ordinary rate.

In his present profession, Mr. Thom's career may be dated from the commencement of the winter of 1827. Being employed at this time in the immediate neighborhood, he applied to Mr. Auld, of Ayr, who afterwards proved his steady and judicious friend, for permission to take a sketch from a portrait of Burns, with the intention of executing a bust of the poet. This is a

good copy of the original picture by Mr. Nasmyth, and is suspended in the very elegant and classical monument, from a design by Mr. Hamilton, erected to the memory of the bard, on the banks of the Doon, near "Allowa's auld haunted kirk." The permission was kindly granted; doubts, however, being at the same time expressed, how far the attempt was likely to prove successful, Mr. Thom not being then known in Ayr. These doubts seemed to be confirmed, on the latter returning with a very imperfect sketch, taken by placing transparent paper on the picture. These occurrences happened on the Wednesday, consequently nothing could be done till Thursday, when materials were to be procured, and other arrangements made, before the work was absolutely begun. The surprise then may be conceived, on the artist returning on the Monday following with the finished bust. In this work, though somewhat defective as a likeness, the execution, the mechanical details, and the general effect, were wonderful, especially when viewed in connexion with the shortness of the time and the disadvantage of being finished almost from memory—the very imperfect outline, already mentioned, being the only *external* guide. It was this general excellence that encouraged the proposal of a full length figure—a proposal to which the artist gave his ready assent, stating that he had wished to undertake something of the kind, but did not consider it prudent, without any prospect of remuneration, to hazard the expense both of the block of stone and the loss of time. On this Mr. Auld offered to procure any stone from the neighboring quarries which the artist might judge fit for his purpose. Several days elapsed in this search; in the meantime, the matter was rather laughed at than encouraged; and some apprehensions of failure, and exposure to consequent comments, being expressed, "Perhaps," said the artist, endeavoring to re-assure his friends, "I had just better try my *hand* at a *head*, as a specimen o' Tam." This being agreed to, he returned to Crosby church-yard, where he was then employed upon a grave-stone. The day following happened to be one of continued rain; and, finding that the water filled up his lines; probably, too, thinking more on "glorious Tam," than on the *memento mori* he was attempting to engrave, our artist resolved to take time by the forelock, and to set about the "specimen head" directly. Accordingly, pulling from the ruins of the church of Crosby a rabat of the doorway, as a proper material for his purpose, he sat himself down among the long rank grass covering the graves, and in that situation actually finished the head before rising. Nay, more, although the day has been described to us "as a downright pour," so total was his absorption in the work—so complete his insensibility to every thing else, that he declares himself to have been unconscious of the "rattling showers," from the moment he commenced. Such is the power of genuine and natural enthusiasm in a favorite pursuit. This head, which contained perhaps, more expression than even that of the present figure, decided the matter. Next day, the block requisite for a full-length of Tam o' Shanter, was brought into Ayr, a load for four stout horses, and placed in a proper workshop, within Cromwell's fort.

It may be interesting to mention a few particulars of the manner in which these figures have been composed and finished.—"Tam" was selected by the artist as a subject for his chisel. The figure is understood to bear a strong traditional resemblance to the well-known Douglass Graham, some forty years ago a renowned specimen of a Carrick farmer, and who, residing at Shanter, furnished to Burns the prototype of his hero.

—— Souter Johnnie,
His antient, trusty, drouthie cronie——

is said to be a striking likeness of a living wight—a cobbler near Maybole; not that this individual sat for his portraiture, but that the artist appears to have wrought from the reminiscences of two interviews with which he was favored, after twice travelling 'some lang Scotch miles,' in order to persuade the said "souter" to transfer his body, by means of his pair of soles, from his own to the artist's studio. The bribe of two guineas a-week, exclusive of "half-mutchkins withouten score," proved, however, unavailing, and the cobbler remained firm to the *last*. By this refusal, "the birkie" has only become poorer by the said couple of guineas, and certain "half-mutchkins drouthier," for so true has the eye of the sculptor proved, that every one is said instantly to recognise the cobbler's phiz and person. A strange perverseness, indeed, or fatality, or what you will, seems to have seized upon all the favored few selected as fitting archetypes for these admirable figures. For, Tam's "nether man" occasioning some anxiety in the perfecting of its sturdy symmetry, a carter, we believe, was laid hold of, and the *gamashins*, being pulled on for half-an-hour, Tam's *right leg* was finished in rivalry of the said gentleman's *supporter*. It appears to have been agreed upon that he should return at a fitting opportunity, having thus left Tam "hirpling:" but, in the interval, the story of the sitting unfortunately taking *air*, and the soubriquet of "Tam o' Shanter" threatening to attach to the lawful and Christian appellations of the man of carts, no inducement could again bring him within the unhallowed precincts of our sculptor's work-room. In like manner, though at a somewhat later period, while the artist was engaged upon the figure of the landlady, no persuasion could prevail upon one of the many "bonny lasses" who have given such celebrity to Ayr, to exhibit even the "fitting of their pearlins" to Mr. Thom's gaze. One sonsy damsel, on being hard pressed to grant a sitting, replied, "Na, na, I've nae mind to be nickinamed 'landlady;' and, as for gudewife, twa speerings maun gang to that name."

It will, doubtless, excite the admiration of every one in the slightest degree conversant with the Arts, that these figures, so full of life, ease and character, were thus actually executed without model, or drawing, or palpable archetype whatsoever. The artist, indeed, knows nothing of modelling; and so little of drawing, that we question if he would not find difficulty in making

even a tolerable sketch of his own work. The chisel is his modelling tool—his pencil—the only instrument of his art, in short, with which he is acquainted, but which he handles in a manner, we may say, almost unprecedented in the history of sculpture.—This, however, is the minor part; for we think, nay, are sure, we discover in this dexterity of hand, in this unerring precision of eye, in this strong, though still untutored, conception of form and character—the native elements of the highest art. These primordial attributes of genius, by proper culture, may do honor to the country and to their possessor. At all events, instruction will refine and improve attempts in the present walk of art, even should study be unable to elevate attainment to a higher. Now, however, it would be not only premature, but unjust, to criticise these statues as regular labors of sculpture. They are to be regarded as wonderful, nay, almost miraculous, efforts of native, unaided, unlearned talent—as an approach to truth almost in spite of nature and of science; but they do not hold with respect to legitimate sculpture—the high-souled, the noblest, the severest of all arts—the same rank as, in painting, the works of the Dutch masters do as compared with the lofty spirits of the Romans—precisely for this reason, that while similar subjects are not only fit, but often felicitous, subjects for the pencil, they are altogether improper objects of sculptural representation.

Though, from the circumstance of being the principals in the composition, and from the intrinsic excellence of their conception, these two figures have chiefly occupied the public attention, they ought not to induce forgetfulness of the artist's other labors. These, besides the Landlord and his mate, consist of several¹ copies, in various sizes, of this original group, and of numerous sculptures, of different character and purpose, from a "head-stane" upwards, executed by Mr. Thom, since his residence in Ayr as a professional stone-cutter. Here his studio is the resort of all intelligent strangers who visit this ancient and beautiful burgh; while his modest manners, and moral worth have conciliated the respect of every one. The character of the Landlady is well sustained, as the buxom bustling head of a well frequented "change-house." Her lord and master, on the other hand, is represented as one who has little to say in his own house, and better qualified to drink, than to earn his pint. The former seems by no means disinclined to reciprocate glances with Tam; while the latter is so convulsed with laughter at the Souter's stories, as to be hardly capable of maintaining the equipoise of the foaming tankard in his hand. Neither, however, is equal in graphic truth and humor to their two companions. A more gigantic, but by no means so happy a work, is the statue of the Scottish patriot, lately placed in the niche of the New Tower, just erected in Ayr, on the site of the ancient "Wallace Tower" of Burns. In fact, we regard this figure as nearly a failure. It possesses neither the truth of nature, nor the dignity of ideal representation. Omitting others of less moment, we shall pass to the most perfect of all Mr. Thom's works—the figure of "Old Mortality." This, though only a model, and not yet, we believe, even commissioned in stone,

offers by far the most striking evidence of genius in its author.² The costume, attitude, and expression of the old man, as he is represented sitting upon a grave-stone, which he has been occupied in cleaning, are most admirable; and perhaps no artist ever more completely realized the exquisite conception of the original mind. The history of this composition supplies a striking instance of the power of genius over spirits of a congenial stamp, and of the singular coincidences which sometimes take place in its manner of conceiving the same sentiment. During a voyage to London, in a Leith steam packet, Mr. Thom one day found in the cabin, Sir Walter's delightful tale of *Old Mortality*, which he had never read. Taking it up, he quickly became entirely engrossed in the narrative. The description of the old man, to whom posterity is indebted for many a record, else lost, of our single-minded sufferers for conscience' sake—so fixed itself upon the artist's imagination, that he instantly conceived the idea of representing it in sculpture. By way of concentrating his thoughts, he sketched a figure in the imagined attitude, on one of the boards of the book he had been reading. Pleased with his idea, he transferred it to his pocket-book. A few days after his arrival in London, he was introduced to our celebrated countryman, Wilkie, who, with his accustomed kindness, showed him his portfolios. Mr. Thom's surprise may be imagined, when in one of these he found a sketch of *Old Mortality*, almost identical with his own, executed by Wilkie several years before. The same thought had struck both, and almost in the same manner.

¹ There are now five sets; three of which are the size of life, and two, four and twenty inches high. One set is, or is to be deposited at the temple called the tomb of Burns, in Ayrshire.—Another belongs to Lord Cassili. The third is in this country.

² Since the above has been published, Thom has nearly finished his *Old Mortality* in a block too small for his conception, and which will oblige him to execute an entirely new figure.

[We extract the following affecting story from the "*Western Monthly Magazine*." Though written in the form of romantic narrative, it presents one of the strongest cases we recollect to have seen, in which innocence is overborne by powerful but false appearances of guilt. It is certainly a strong illustration of the danger of convicting a fellow creature, upon what is technically called *presumptive evidence*, a topic upon which the gentlemen of the bar are furnished with as wide a field for the display of professional ingenuity, as upon any other in

the whole compass of jurisprudence. That it is often safe, and indispensably necessary however to rely upon such kind of evidence, is so obvious in itself—and so well established as a legal maxim—that the danger of sometimes convicting, upon a train of specious but deceptive circumstances, is less than the evil of acquittal in the absence of positive, conclusive, and infallible testimony.]

CIRCUMSTANTIAL EVIDENCE.

A TALE FOUNDED ON FACT.

The circumstances which I am about to relate, are familiar to many now living. In some particulars I have varied from the truth; but if in the relation of an event which excited intense interest, at the time of its occurrence, I shall succeed in impressing upon any one, the delusive character of circumstantial evidence, my object will be attained.

Beneath the magnificent sycamores which bordered a lovely stream in the southwest part of Kentucky, a company of emigrants had pitched their encampment, for the night. The tents were set up, the night-fire threw its gleam upon the water, the weary horses were feeding, the evening repast was over, and preparations were made for repose. The party consisted of three brothers, with their families, who were wending their way to the new lands of the distant Missouri. On their visages, where the ague had left the sallow traces of its touch, few of the nobler traits of the human character were visible. Accustomed to reside upon the outskirts of society, little versed in its forms, and as little accustomed to the restraints of law, or the duties of morality, they were the fit pioneers of civilization, because their frames were prepared for the utmost endurance of fatigue, and society was purified by their removal. Theirs were not the fearless independence, and frank demeanor which marks the honest backwoodsman of our country; but the untamed license, and the wiley deportment of violent men, who loved not the salutary influence of the law, nor mingled of choice with the virtuous of their own species.

As they stirred the expiring fires, the column of light, mingled with the smoke and cinder, that rose towards the clear sky of the mild May night, revealed two travellers of a different appearance, who had encamped on the margin of the same stream. One was a man of thirty. Several years passed in the laborious practice of medicine, in a southern climate, had destroyed his constitution, and he had come to breathe the bracing air of a higher latitude. The wing of health had fanned into new vigor the waning fires of life, and he was now returning to the home of his adoption with a renovated frame. The young man who sat by him, was a friend, to whom he had paid a visit, and who was now attending him, a short distance, on his journey. They had missed their way, and reluctantly accepted a sullen permission of the emigrants to share their coarse fare, rather than wander in the dark, through unknown forests. Hamilton, the younger of the two, was, perhaps, twenty-seven years of age—and was a young gentleman of prepossessing appearance, of cultivated mind, and of a chivalrous and sensitive disposition. His parents were indigent, and he had, by the energy of his own talents and industry, redeemed them from poverty, and placed them in easy circumstances. In one of his commercial expeditions down the Mississippi, he had met with Saunders, the physician. An intimacy ensued, which though brief, had already ripened into mature friendship.

'Affection knoweth nought of time,
It riseth like the vernal flowers;
The heart pulse is its only chime,
And feelings are its hours.'

Together they had hunted over the flowery barrens, and through the majestic forests of their native state—had scaled the precipice, and swam the torrent—had explored the cavern, and visited whatever was wonderful or curious in the region around them; and both looked forward, with painful feelings, to the termination of an intercourse which had been pleasing and instructive.—As they were to separate in the morning, the evening was spent in conversation—in that copious and involuntary flow of kindness and confidence which the heart pours out at the moment when friends are about to sever, when the past is recalled and the future anticipated, and friendship no longer silent, nor motionless, displays itself like the beauty of the ocean wave, which is most obvious at the moment of its dissolution.

Early in the morning, the two friends prepared to pursue their journey. As they were about to depart, one of the emigrants advanced towards them, and remarked:

'I reckon, strangers, you allow to encamp at Scottville to-night?'

'Yes,' said Saunders, 'I do.'

'Well, then, I can tell you a chute, that's a heap shorter than the road you talk of taking—and at the forks of Rushing river, there's a smart chance of blue clay, that's miry like, and it's right scary crossing at times.'

Supposing they had found a nearer and better road, and one by which a dangerous ford would be avoided, they thanked their informant, and proceeded on their journey.

In some previous conversations, Saunders had learned, that his friend had recently experienced some heavy losses, and was at this time much pressed for money, and wishing to offer him assistance, had from time to time deferred it, from the difficulty of approaching so delicate a subject. As the time of parting approached, however, he drew the conversation to that point, and was informed that the sum of five hundred dollars, would relieve his friend from embarrassment. Having a large sum in his possession, he generously tendered him the amount required, and Hamilton, after some hesitation, accepted the loan, and proposed to give his note for its repayment, which Saunders declined, under the plea that the whole transaction was a matter of friendship, and that no such formality was requisite. When they were about to part, Hamilton unclasped his breast-pin, and presented it to his friend. 'Let this,' said he, 'remind you sometimes of Kentucky—I trust, that when I visit you next year, I shall not see it adorning the person of some favored fair one.' 'I have not so much confidence in you,' laughingly returned the other; and, handing him a silver-hafted penknife curiously embossed, 'I am told that knives and scissors are not acceptable presents to the fair, as they are supposed to cut love, so I have no fear that Almira will get this—and I know that no other human being would cause you to forget your friend.' They then parted.

As Hamilton was riding slowly homeward, engaged in thought, and holding his bridle loosely, a deer sprang suddenly from a thicket, and fell in the road, before his horse, who started and threw him to the ground. In examining the deer, which had been mortally wounded, and was still struggling, some of the blood was sprinkled on his dress, which had been otherwise soiled by his fall. Paying little attention to these circumstances, he returned home.

Though his absence had been brief, many hands grasped his in cordial welcome, many eyes met his own in love, for few of the young men of the county were so universally beloved, and so much respected as Hamilton. But to none was his return so acceptable as to Almira ——. She had been his playmate in infancy, his schoolmate in childhood, in maturer years their intimacy had ripened into love, and they were soon to be united in the holiest and dearest of ties. But the visions of hope were soon to pass from before them, as the *mirage* of the desert, that mocks the eye of the thirsty traveller, and then leaves him a death-devoted wanderer on the arid waste.

A vague report was brought to the village, that the body of a murdered man was found near Scottville. It was first mentioned by a traveller, in a company where Hamilton was present; and he instantly exclaimed, 'no doubt it is Saunders—how unfortunate that I left him!' and then retired under great excitement. His manner and expressions awakened suspicion, which was unhappily corroborated by a variety of circumstances, that were cautiously whispered by those, who dared not openly arraign a person whose whole conduct through life had been honest, frank, and manly. He had ridden away with Saunders, who was known to have been in possession of a large sum of money. Since his return, he had paid off debts to a considerable amount. The penknife of Saunders was recognized in his hands—yet none were willing, on mere surmise, to hazard a direct accusation.

The effect of the intelligence upon Hamilton was marked. The sudden death of a dear friend is hard to be supported—but when one who is loved and esteemed, is cut off by the dastardly hand of the assassin, the pang of bereavement becomes doubly great, and in this instance, the feelings of deep gratitude which Hamilton felt towards his benefactor, caused him to

mourn over the catastrophe, with a melancholy anguish. He would sit for hours in a state of abstraction, from which even the smile of love could not awaken him.

The elections were at hand; and Hamilton was a candidate for the legislature. In the progress of the canvass, the foul charge was openly made, and propagated with the remorseless spirit of party animosity. Yet he heard it not, until one evening as he sat with Almira, in her father's house. They were conversing in low accents, when the sound of an approaching footstep interrupted them, and the father of Almira entered the room. 'Mr. Hamilton,' said he, 'I am a frank man—I consented to your union with my daughter, believing your character to be unstained—but I regret to hear that a charge has been made against you, which, if true, must render you amenable to the laws of your country. I believe it to be a fabrication of your enemies—but, until it shall be disproved, and your character as a man of honor, placed above suspicion, you must be sensible that the proposed union cannot take place, and that your visits to my house must be discontinued.'

'What does my father mean?' inquired the young lady, anxiously, as her indignant parent retired.

'I do not know,' replied the lover, 'it is some electioneering story, no doubt, which I can easily explain. I only regret that it should give him, or you, a moment's uneasiness.'

'It shall cause me none,' replied the confiding girl: 'I cannot believe any evil of you.'

He retired—sought out the nature of the charge, and to his inexpressible astonishment and horror, learned that he was accused of the murder and robbery of his friend! In a state little short of distraction, he retired to his room, recalled with painful minuteness all the circumstances connected with the melancholy catastrophe, and for the first time, saw the dangerous ground on which he stood. But proud in conscious innocence, he felt that to withdraw at that stage of the canvass, might be construed into a confession of guilt. He remained a candidate, and was beaten. Now, for the first time, did he feel the wretchedness of a condemned and degraded man. The tribunal of public opinion had pronounced against him the sentence of

conviction; and even his friends, as the excitement of the party struggle subsided, became cold in his defence, and wavering in their belief of his innocence. Conscious that the eye of suspicion was open, and satisfied that nothing short of a public investigation could restore him to honor, the unhappy young man surrendered himself to the civil authority, and demanded a trial. Ah! little did he know the malignity of man, or the fatal energy of popular delusion! He reflected not that when the public mind is imbued with prejudice, even truth itself ceases to be mighty. Many believed him guilty, and those who, during the canvass, had industriously circulated the report, now labored with untiring diligence to collect and accumulate the evidence which should sustain their previous assertions. But arrayed in the panoply of innocence, he stood firm, and confident of acquittal. The best counsel had been engaged—and on the day of trial, Hamilton stood before the assembled county—an arraigned culprit in the presence of those before whom he had walked in honor from childhood.

As the trial proceeded, the confidence of his friends diminished, and those who had doubted, became confirmed in the belief of the prisoner's guilt. Trifles light as air became confirmations strong as proofs of Holy Writ to the jealous minds of the audience, and one fact was linked to another in curious coincidence, until the chain of corroborating circumstances seemed irresistibly conclusive. His recent intimacy with the deceased, and even the attentions which friendship and hospitality had dictated, were ingeniously insisted upon as evidences of a deliberate plan of wickedness—long formed and gradually developed. The facts, that he had accompanied the deceased on his way—that he had lost the path in a country with which he was supposed to be familiar—his conduct on hearing of the death of his friend—the money—the knife—caused the most incredulous to tremble for his fate. But when the breast-pin of Hamilton, found near the body of the murdered man, was produced—and a pistol, known to have been that of the prisoner, was proved to have been picked up near the same spot—but little room was left, even for charity to indulge a benevolent doubt. Nor was this all—the prosecution had still another witness—the pale girl who sat by him, clasping his hand in hers, was unexpectedly called upon to rise and give testimony. She shrunk from the unfeeling call, and buried her face in her brother's bosom. That blow was not anticipated—for none but the cunning myrmidons of party vengeance, who had even violated the

sanctuary of family confidence, in search of evidence, dreamed that any criminating circumstance was in the possession of this young lady. At the mandate of the court, she arose, laid aside her veil, and disclosed a face haggard with anxiety and terror. In low tremulous accents, broken with sobs, she reluctantly deposed, that the clothes worn by her brother, on his return from that fatal journey, were torn, soiled with earth, and bloody! An audible murmur ran through the crowd, who were listening in breathless silence—the prisoner bowed his head in mute despair—the witness was borne away insensible—the argument proceeded, and after an eloquent, but vain defence, the jury brought in a verdict of *guilty*! The sentence of *death* was passed.

* * * * *

The summer had passed away. The hand of autumn had begun to tinge with mellow hues the magnificent scenery of the forest. It was evening, and the clear moonbeams were shining through the grates of the prisoner's cell. The unhappy man, haggard, attenuated, and heart-broken, was lying upon his wretched pallet, reflecting alternately upon the early wreck of his bright hopes, the hour of ignominy that was just approaching, and the dread futurity into which he should soon be plunged. It was the season at which his marriage with Almira was to have been solemnized. With what pride and joy had he looked forward to this hour! And now, instead of the wedding festivities, the lovely bride, and the train of congratulating friends, so often pictured in fancy, he realized fetters, a dungeon, and a disgraceful death! The well-known tread of the jailer interrupted the bitter train of thought. The door opened, and as the light streamed from a lantern across the cell, he saw a female form timidly approaching. In a moment Almira had sunk on her knees beside him, and their hands were silently clasped together. There are occasions when the heart spurns all constraint, and acts up to its own dictates, careless of public opinion, or prescribed forms—when love becomes the absorbing and overruling passion—and when that which under other circumstances would be mere unlicensed impulse, becomes a hallowed and imperious duty. That noble-hearted girl had believed to the last, that her lover would be honorably acquitted. The intelligence of his condemnation, while it blighted her hopes, and withered her health, never disturbed for one moment her conviction of his innocence.

There is an union of hearts which is indestructible, which marriage may sanction, and nourish, and hallow, but which separation cannot destroy—a love that endures while life remains, or until its object shall prove faithless or unworthy. Such was the affection of Almira; and she held her promise to love and honor him, whose fidelity to her was unspotted, and whose character she considered honorable, to be as sacred, as if they had been united in marriage. When all others forsook, she resolved never to forsake him. She had come to visit him in his desolation, and to risk all, to save one who was dear and innocent in her estimation, though guilty in the eyes of the world.

The jailer, a blunt, though humane man, briefly disclosed a plan, which he, with Almira, had devised, for the escape of Hamilton. He had consented to allow the prisoner to escape, in female dress, while she was to remain in his stead, so that the whole contrivance should seem to be her own. 'I am a plain man,' concluded the jailer, 'but I know what's right. It 'aint fair to hang no man on suspicion—and more than that, I am not agoing to stand in no man's way—especially a friend who has done me favors, as you have. I go in for giving every fellow a fair chance. The track's clear, Mr. Hamilton, and the quicker you put out, the better.'

To his surprise, the prisoner peremptorily refused the offer.

'I am innocent,' said he; 'but I would suffer a thousand deaths rather than injure the fair fame of this confiding girl.'

'Go, Dudley—my dear Dudley,' she sobbed: 'for my sake, for the sake of your broken-hearted father and sister—'

'Do not tempt me—my dear Almira. I will not do that which would expose you to disgrace.'

'Oh, who would blame me?'

'The world—the uncharitable world—they who believe me a murderer, and have tortured the most innocent actions into proofs of deliberate villainy, will not hesitate to brand you as the victim of a cold-blooded felon. And

why should I fly? to live a wretched wanderer, with the brand of Cain on my forehead, and a character stamped with infamy?'—

He would have said more—but the form, that during this brief dialogue, had sunk into his arms, was lying lifeless on his bosom. He kissed her cold lips, and passionately repeated her name—but she heard him not—her pure spirit had gently disengaged itself, and was flown forever. Her heart was broken. She had watched, and wept, and prayed, in hopeless grief, until the physical energies of a delicate frame were exhausted: and the excitement of the last scene had snapped the attenuated thread of life.

Hamilton did not survive her long. His health was already shattered by long confinement, and the chaffing of a proud spirit. Almira had died for him—and his own mother—oh! how cautiously did they whisper the sad truth, when he asked why *she* who loved him better than her own life, had forsaken him in the hour of affliction—she, too, had sunk under the dreadful blow. His father lived a withered, melancholy man, crushed in spirit; and as his sister hung like a guardian angel over his death-bed, and he gazed at her pale, emaciated, sorrow-stricken countenance, he saw that she, too, would soon be numbered among the victims of this melancholy persecution. When, with his last breath, he suggested that they would soon meet, she replied: 'I trust that God will spare me to see your innocence established, and then will I die contented.' And her confidence was rewarded—for God does not disappoint those who put their trust in him. About a year afterwards, a wretch, who was executed at Natchez, and who was one of the three persons named in the commencement of this narrative, confessed that he had murdered Saunders, with a pistol which he had found at the place where the two friends had slept. 'I knew it would be so,'—was the only reply of the fast declining sister—and soon after she was buried by the side of Dudley and Almira.—Reader, this is not fiction—nor are the decisions of God unjust—but his ways are above our comprehension.

EMILLION.



LAW LECTURE AT WILLIAM AND MARY.

A Lecture on the Study of the Law; being an Introduction to a course of lectures on that subject, in the College of William and Mary, by Beverley Tucker, Professor of Law.—Richmond: T. W. White. Nov. 1834.

It is impossible for a Virginian not to feel an interest in old William and Mary. Recollecting the many able men who have been nurtured within its walls, and signalized as lawyers, legislators and statesmen, we cannot but feel gratified at every effort in its behalf that promises to be of use. From the time of Judge Semple's last appointment as Judge of the General Court, until the month of July, the law chair had remained vacant. A vacancy in so important a department continuing for so long a period, could not fail to be prejudicial to the institution. It was in vain that the other professorships were ably filled. The circumstance of the lectures in the law department being suspended, made many fear that the other professorships would one by one share the same fate—that this vacancy was but a precursor to others—that a failure to fill this would be followed by like failures hereafter—and that in a few years the doors of this venerable pile would be closed. These inferences are strengthened by the fact, that a very important professorship (the professorship of mathematics) had formerly been permitted to remain vacant for even a longer period than that which is the subject of these brief reflections. With such anticipations, it is no wonder that every class has latterly been characterized by the smallness of its numbers.

The Board of Visitors, at their meeting in July, resolved that the vacancy should continue no longer, and conferred the appointment of law professor upon Beverley Tucker. Mr. Tucker is well known as a writer upon constitutional questions, and his appointment to the bench of another state, after a short residence in it, affords evidence of the estimation in which his legal attainments were there held. The same professorship to which *he* is now appointed, was filled many years ago by his father *St. George Tucker*, whose edition of Blackstone's Commentaries, and subsequent appointment first in the state and then in the federal judiciary, have given him a reputation with members of the bar throughout the Union.

The letter and answer which precede the introductory lecture of Professor Tucker, sufficiently explain the circumstances under which that lecture is published.

Williamsburg, October 27, 1834.

Dear Sir:—The students of William and Mary, highly gratified by your able and eloquent address, delivered before them this day, have held a special meeting, and by unanimous vote adopted the following resolution:

Resolved, (At a meeting of the students in the large lecture room on the 27th inst.) That a committee be appointed to address a note to Professor Tucker, for the purpose of expressing their admiration of the able and interesting lecture which he has this day delivered, introductory to his course on law, and to solicit the same for publication.

We hope for your assent to this request, and in performing this agreeable duty, we tender you our sentiments of respect and esteem.

JNO. W. DEW, CHAS. H. KENNEDY,
WM. T. FRENCH, JOHN MURDAUGH,

Committee.

Professor Tucker.

Williamsburg, October 28, 1834.

Gentlemen:—I acknowledge the receipt of your polite note, and am happy to comply with the request which it conveys. Identified with the College of William and Mary by the early recollections and warm affections of youth, I have nothing so much at heart as a desire to be found worthy to aid in restoring that venerable institution to all its former prosperity and usefulness. Your approbation is dear to me, as encouraging a hope that my efforts may not be unavailing. If I shall be so fortunate as to send out into the world but one more, to be added to the list of illustrious men, who are every where found upholding, with generous, devoted and enlightened zeal, the free institutions inherited from our fathers, in their true spirit, I shall have my reward. If I can succeed in impressing on my class the conviction, that freedom has its duties, as well as its rights, and can only be preserved by the faithful discharge of those duties, I shall have my reward. If I can do no more than to furnish to the profession members devoted

to its duties, and qualified to sustain its high character for intelligence and integrity, by diligence and fidelity even in its humblest walks, I shall still have my reward. In either case I shall have rendered valuable service, to you, to this venerable institution, to this scene of my earliest, happiest and best days, and to Virginia—my mother—the only country to which my heart has ever owned allegiance. Far as my feet have wandered from her soil, my affections have always cleaved to her, and as the faithful mussulman, in every clime, worships with his face towards the tomb of his prophet, so has my heart ever turned to her, alive to all her interests, jealous of her honor, resentful of her wrongs, partaking in all her struggles, exulting in her triumphs, and mourning her defeats. May she again erect herself to her former proud attitude and walk before the children of liberty in the pathless desert where they now wander, as a "cloud by day, and a pillar of fire by night."

For yourselves, gentlemen, and those whom you represent, be pleased to accept my acknowledgments for the compliment implied in your application. I would ask you to accept the expression of another sentiment, if I knew how to express it. Returning to Williamsburg after an absence commencing in early life, the long and dreary interval seems obliterated. I find myself remitted at once to the scenes and to the feelings of youth. It would seem more natural to me to come among you as a companion than as an instructor. But this may not be much amiss. My business is with your *heads*, but the road to them is through the *heart*, and if I can only bring you to understand and reciprocate my feelings, there will be nothing wanting to facilitate the communication of any instruction I may be capable of bestowing.

I remain, gentlemen, with high regard, your friend and obedient servant,

B. TUCKER.

To Messrs. J. W. Dew, John Murdaugh, Wm. T. French, and Chs. H. Kennedy.

YOUNG GENTLEMEN:

I gladly avail myself of an established custom, to offer some remarks on the mutual relation into which we have just entered, and the studies which will occupy our attention during the ensuing course.

This day is to you the commencement of the most important æra of life. You have heretofore been engaged in studies, for the most part useful, but

sometimes merely ornamental or amusing. The mind, it is true, can hardly fail to improve, by the exertion necessary to the acquisition of knowledge of any kind, even as the athletic sports of the boy harden and prepare the body for the labors of the man. But, in many particulars, what you have heretofore learned may be of little practical value in the business of life; and your past neglects may perhaps be attended with no loss of prosperity or respectability in future. Some of you are probably acquainted with sciences of which others are ignorant; but are not for that reason any better prepared for the new course of studies on which you are about to enter. Nor will such knowledge necessarily afford its possessors any advantage at the bar, or in the senate, or on any of the arenas, where the interests of individuals and nations are discussed, and the strifes of men decided. But the time is now past with you, young gentlemen, when you can lose a moment, or neglect an opportunity of improvement, without a lasting and irreparable detriment to yourselves. You this day put on the *toga virilis*, and enter on the *business of life*. This day you commence those studies on which independence, prosperity, respectability, and the comfort and happiness of those who will be dearest to you, must depend. For, trust me, these things mainly depend on excellence in the profession or occupation, whatever it may be, which a man chooses as the business of his life. The humblest mechanic will derive more of all these good things from diligence and proficiency in his trade, than he possibly can from any knowledge unconnected with it.

This, which is true of all occupations, is most emphatically true of that which you have chosen. To be eminent in *our* profession is to hold a place among the great ones of the earth; and they, who devote themselves to it, have the rare advantage of treading the path which leads to the highest objects of honorable ambition, even while walking the round of daily duties, and providing for the daily wants of private life. The history of our country is full of proof that the bar is the road to eminence; and I beg you to remark how few of its members have attained to this eminence in public life, without having been first distinguished in the profession. To win *its* honors, and to wear them worthily, is to attain an elevation from which all other honors are accessible: but to turn aside disgusted with its labors, is to lose this vantage ground, and to sink again to the dead level of the common mass. You should therefore learn to look on the profession of your choice, as the source from whence are to flow all the comforts, the honors, and the

happiness of life. Let it be as a talisman, in which, under God, you put your trust, assuring yourselves that whatever you seek by means of it you will receive.

I have the more naturally fallen into these remarks, as they are in some sort suggested, and are certainly justified by the history of this institution. If you trace back the lives of the men, who at this moment occupy the most enviable pre-eminence in your native state, you will find that they received the rudiments of their professional and political education at this venerable but decayed seminary. There are certainly distinguished members of the profession, and illustrious men out of the profession, to whom this remark does not apply. But when Virginia (*Magna Parens Virum*,) is called on to show her jewels, to whom does she more proudly point than to men who once occupied those very seats; who here received the first impulse in their career; who here commenced that generous strife for superiority which has placed them all so high.

The subject of our researches, young gentlemen, will be the municipal law of Virginia. The text book which will be placed in your hands is the American edition of Blackstone's Commentaries, published thirty years ago by one of my predecessors in this chair. You will readily believe that it would be my pride to walk, with filial reverence by the lights which he has given us, and that, in doing so, I should feel secure of escaping any harsh animadversion from those to whom I am responsible, and who still cherish so favorable a recollection of his services. I shall certainly endeavor to avail myself of this privilege; though it may be occasionally necessary to assume a more perilous responsibility. A brief sketch of the plan which I propose to myself, will show you how far I shall follow, and wherein, and why, I shall deviate from the path which he has traced.

Municipal law is defined by Mr. Blackstone, "to be a rule of civil conduct prescribed by the supreme power of the state." By Justinian it is said, "*Id quod quisque populus sibi jus constituit, vocatur jus civile*:" which has been well rendered thus: "It is the system of rules of civil conduct which any state has ordained for itself."

Whatever definition we adopt, we shall find that municipal law is distinguishable into four grand divisions, which may be properly designated

by the following description:

1. That which regulates the nature and form of the body politic; which establishes the relation that each individual bears to it, and the rights and duties growing out of that relation, which determines the principles on which it exercises authority over him; and settles a system of jurisprudence by which it operates to protect and enforce right, and to redress and punish wrong.
2. That which determines the relations of individual members of society to each other; which defines the rights growing out of that relation; and regulates the right of property, and such personal rights as must subsist even in a state of nature.
3. That which defines the wrongs that may be done by one individual member of society to another, in prejudice of his rights, whether of person or property, and provides means for preventing or redressing such wrongs.
4. That which defines and denounces the wrongs which may be done by any individual member of society, in violation of the duties growing out of his relation to the body politic, and provides means for preventing and punishing such violation.

The first of these divisions is treated by Mr. Blackstone in his first book, under the comprehensive head of "The Rights of Persons." Under the same head he includes so much of the second division as relates to such personal rights as must have belonged to man in a state of nature, and such as grow out of his relation to other individual members of society. Such are the *relative* rights of husband and wife, parent and child, guardian and ward, and master and servant—and the *absolute* rights, of personal liberty, and of security to life, limb and reputation. These rights are obviously not the creatures of civil society, however they may be regulated and modified by municipal law. They in no wise depend on "the nature or form of the body politic;" nor on "the relations which individuals bear to it;" nor on "the rights and duties growing out of that relation;" nor on "the principles on which it exercises authority over individuals;" nor on "the system of jurisprudence."

As little indeed do they depend on "the rights of property," but they have much in common with them. Together with them, they collectively form the mass of "individual rights," as contradistinguished from "political rights." Neither class derives its existence from civil society, although both are alike liable to be regulated by it, and the two together form the subject of almost all controversies between man and man. Now with rights in actual and peaceable enjoyment, law has nothing to do. It is controversy which calls it into action; and as both this class of personal rights, and the rights of property, have the same common origin—both subsisting by titles paramount to the constitutions of civil society; as both are the ordinary subjects of controversy between individuals; and as these controversies are all conducted according to similar forms, decided by the same tribunals, and adjusted by the like means,—it is found convenient to arrange them together in a course of instruction. Such I believe has always been the practice in this institution. Proposing to conform to it, I have thought it best, in the outset, to intimate this slight difference between this practice and Mr. Blackstone's arrangement.

There is another particular in which Mr. Blackstone's order of instruction has been advantageously changed at this place. His is certainly the true *philosophical* arrangement of the subject. When we are told that "municipal law is a rule of civil conduct prescribed by the supreme power in the state," it is obvious to ask, "what is that supreme power, and whence comes its supremacy?" When we are told that it is "the system of rules of civil conduct, which the state has ordained for itself," the first inquiry is, "what is the state?" Thus whatever definition of municipal law we adopt, the subject of inquiry that meets us at the threshold is the *Lex Legum*; the law which endues the municipal law itself with authority.

If the individual to be instructed were one who had heretofore lived apart from law and government, yet capable (if such a thing were possible) of understanding the subject, it is here we ought to commence. To him it would be indispensable to explain, in the first instance, the structure of the body politic; to specify the rights surrendered by individuals; and to set before him the equivalent privileges received in exchange. We too might be supposed to require a like exposition before we would be prepared to submit to the severe restraints and harsh penalties of *criminal* law. But in

regard to controversies between individuals we feel no such jealousies. In these, the law, acting but as an arbiter, indifferent between the parties, no question concerning its authority occurs to the mind. The readiness with which we acquiesce in its decisions, is strikingly manifested in the fact, that the whole of England, Ireland and the United States are, for the most part, governed by a law which has no voucher for its authority but this acquiescence. The same thing may be said of the authority of the civil law on the continent of Europe. It thus appears that the mind does not always require to be informed of the origin of the law which regulates and enforces, or protects individual rights, before it will condescend to inquire what are its behests. *Prima facie* it should be so; but being, in point of fact, born in the midst of law, habituated to it from our infancy, and accustomed to witness uniform obedience to its authority on the part of those whom we were taught to obey, we learn to regard it as a thing *in rerum natura*, rather than of human invention; a sort of moral atmosphere, which, like that we breathe, seems a very condition of our existence.

There is therefore no inconvenience to be apprehended from taking up the subject in an inverted order, treating first of individual rights, and reserving those that grow out of the relation of the citizen to the body politic, and the correlative duties of that relation, for future inquiry.

While there is nothing to be objected to this arrangement, there is much in favor of it. It is important that they who engage in the study of political law, should come to the task with minds prepared for it; well stored with analogous information, and sobered and subdued by the discipline of severe investigation. There is a simplicity in some views of government which is apt to betray the student into a premature belief that he understands it thoroughly; and then, measuring the value of his imagined acquirements, not by the labor that they have cost him, but by the dignity and importance of the subject, he becomes inflated, self-satisfied and unteachable; resting in undoubting assurance on the accuracy and sufficiency of such bare outline as his instructor may have thought proper to place before him. But in those countries where the authority of government rests on a questionable title, they who are entrusted with the education of youth, may naturally wish to keep them from looking into it too narrowly. Hence it may be a measure of policy with them, to introduce the student, in the first place, to the study of

political law, in the hope of making on his raw and unpractised mind, such an impression, as may secure his approbation of the existing order of things. The faculty of investigating legal questions, and forming legal opinions, may almost be regarded as an acquired faculty; so that, in the earlier part of his researches, the student necessarily acquiesces in the doctrines which are pronounced *ex cathedra* by his teacher. At this time he readily receives opinions on trust; and if it be his interest to cherish them, or if he is never called on in after life to reexamine them, he is apt to carry them with him to the grave. This is perhaps as it should be in England and other countries of Europe. Having no part in the government, it may be well enough that he should learn to sit down contented with this sort of enlightened ignorance.

But with us the case is different. The authority of our governments is derived by a title that fears no investigation. We feel sure, that, the better it is understood, the more it will be approved. It rests too on a charter conferring regulated and limited powers; and the well being of the country requires that the limitations and regulations be strictly observed. Now every man among us has his "place in the commonwealth." It is on the one hand, the duty of every man to aid in giving full effect to all legitimate acts of government; and on the other, to bear his part in restraining the exercise of all powers forbidden or not granted. Every man therefore owes it to his country to acquire a certain proficiency in constitutional law, so as to act understandingly, when called on to decide between an alleged violation of the constitution, and an imputed opposition to lawful authority. Such occasions are of daily occurrence. Scarcely a day has passed, since the adoption of the federal constitution, when some question of this sort has not been before the public. Such is the effect of that impatience of restraint natural to man. So prompt are the people to become restive under laws of questionable authority, and so apt are rulers to strain at the curb of constitutional limitations, that one or the other, or both of these spectacles, is almost always before us.

When you come then, young gentlemen, to the study of political and constitutional law, you will find it no small advantage to have been engaged for some months before in studies of a similar character. The opinions you will then form will be properly your own. I may not be so successful as I might wish, in impressing you with those I entertain; but I shall be more

gratified to find you prepared to "give a reason for the faith that is in you," whatever that faith may be, than to hear you rehearse, by rote, any political catechism that I could devise. I shall accordingly postpone any remarks on constitutional and political law, until your minds have been exercised and hardened by the severe training they will undergo in the study of the private rights of individuals, of wrongs done in prejudice of such rights, and of the remedies for such wrongs. All these topics are embraced in the second and third division of municipal law, that I have laid before you.

To these belong the most intricate and difficult questions in the science of law. In introducing you to the study of these, let me say, in the language of one from whom I am proud to quote, that, "I cannot flatter you with the assurance that 'your yoke is easy and your burden light.' I will not tell you that your path leads over gentle ascents and through flowery meads, where every new object entices us forward, and stimulates to perseverance. By no means! The task you have undertaken is one of the most arduous; the profession you have chosen one of the most laborious; the study you are about to pursue, one of the most difficult that can be conceived. But you have made your election. You have severed yourselves from the common herd of youth, who shrink from every thing that demands exertion and perseverance. You have chosen between the allurements of pleasure and the honors which await the disciples of wisdom. You yield to others to keep the noiseless tenor of their way in inglorious ease. You have elected for yourselves the path that philosophers and moralists represent as leading, up a rugged ascent, to the temple of fame. It may be the lot of some of you to elevate yourselves by talents and unabating zeal, in the pursuit you have selected. But these distinguished honors are not to be borne away by the slothful and inert. *Nulla palma sine pulvere*. He who would win the laurel, must encounter the sweat and toil of the *arena*. Nor will it suffice that he *occasionally* presses on to the goal. If he slackens in his efforts he must lose ground. We roll a Sisyphean stone to an exalted eminence. He who gives back loses what his strength had gained; and sinking under the toil his own indolence increases, will at length give up his unsteady efforts in despair."—1. T. C. Introduction, p. vi.

I can add nothing to these striking remarks but my testimony to their truth. There is, perhaps, no study that tasks the powers of the mind more severely

than that of law. In it, as in the study of mathematics, nothing is learned at all that is not learned perfectly; and a careless perusal of Euclid's elements would not be more unprofitable, than that of a treatise on the laws of property. Nor will a mere effort of memory be of more avail in the one case than in the other. Both must be remembered by being understood; by being through the exercise of intense thought, incorporated as it were into the very texture of the mind. To this end its powers must be fully and faithfully exerted. As, in lifting at a weight, you do but throw away your labor, until you man yourself to the exertion of the full measure of strength necessary to raise it; so, in this study, you may assure yourselves that all you have done is of no avail, if you pass from any topic without thoroughly understanding it. And let no man persuade you that genius can supply the place of this exertion. Genius does not so manifest itself. The secret of its wonderful achievements is in the energy which it inspires. It is because its prompting sting, like the sharp goad of necessity, urges to herculean effort, that it is seen to accomplish herculean tasks. He is deceived who fancies himself a favored child of genius, unless he finds his highest enjoyment in intellectual exercise. He should go to the toil of thought like the champion to the lists, seeking in the very *certaminis gaudia* the rich reward of all his labors.

There may be something startling, I fear, in this exhibition of the difficulties that lie before you, and it is proper to encourage you by the assurance that by strenuous effort they may be certainly overcome. Remember too that this effort will be painful only in the outset. The mind, like the body, soon inures itself to toil, and wears off the soreness consequent on its first labors. When this is done, the task becomes interesting in proportion to its difficulty, and subjects which are understood without effort, and which do not excite the mind to thought, seem flat and insipid.

But lest the student should falter and give back in his earlier struggles, it is the duty of the teacher to afford him such aids as he can. This is mainly to be done by means of such an analysis and arrangement of the subject as may prevent confusion, and consequent perplexity and discouragement.

There are two sorts of analysis, each proper in its place. The one *philosophical*, by which the different parts of a subject are so arranged, as to exhibit in distinct groups those things that depend on the same or like

principles, and such as are marked by characteristic points of resemblance; giving a sort of honorary precedence to the most important. The other sort of analysis may be termed *logical*. It is that method by which different propositions are so arranged, as that no one of them shall ever be brought under consideration, until all others which may be necessary to the right understanding of that one, have been established and explained. Of this last description sire Euclid's elements, in which it is interesting to observe that no one proposition could with propriety be made to change its place; each one depending for its demonstration, directly or indirectly, upon all that have gone before.

Blackstone's Commentaries may be cited as an example of *philosophical* analysis. He has indeed been careful to avoid perplexing his reader, through the want of a strictly *logical* arrangement, by dealing chiefly in generalities, and never descending to such particulars as might be unintelligible for want of a knowledge of matters not yet treated of. This I take to be the reason why his work has been characterized as being "less an institute of law, than a methodical guide or elementary work adapted to the commencement of a course of study. He treats most subjects in a manner too general and cursory to give the student an adequate knowledge of them. After having pursued his beautiful arrangement, he is obliged to seek elsewhere for farther details. After having learnt the advantage of system, he is almost at the threshold of the science, turned back without a guide, to grope among the mazy volumes of our crowded libraries. This cannot be right. If system is of advantage at all, it is of advantage throughout. Were it practicable, it would be better for the student to have a single work, which embracing the whole subject, should properly arrange every principle and every case essential to be known preparatory to his stepping on the *arena*. Much, very much indeed, would still be left to be explored in the course of his professional career, independent of the *apices juris*, which the most vigorous and persevering alone can hope to attain."—Tucker's Commentary, Introduction, p. 4.

The justice of these remarks none can deny. It might be thought unbecoming in me to say how much the writer from whom I quote them has done to supply such a work as he describes. Yet I cannot suffer any feeling of delicacy to restrain me from the duty of recommending that work to your

attentive perusal. I shall eagerly, too, avail myself of his permission to make frequent use of it, as I know of no book which so well supplies the necessary details to parts of the subject of which Mr. Blackstone has given only loose and unprofitable sketches. It is to be lamented that in doing this he has so strictly bound himself to the arrangement of that writer. That arrangement, as I have remarked, imposed on Mr. Blackstone the necessity of being occasionally loose and superficial. For want of one more strictly logical, the Virginia Commentator often finds it impossible to go into the necessary detail, without anticipating matters which properly belong to subsequent parts of his treatise; and too often, where this is impracticable, topics and terms are introduced, the explanation of which is, perhaps, deferred to the next volume.

An instance will illustrate my meaning:—Mr. Blackstone classes remedies for private wrongs, thus: "first, that which is obtained by the *mere act* of the parties themselves; secondly, that which is effected by the *mere act* and operation of *law*; and thirdly, that which arises from *suit* or *action* in courts." Now, it probably occurred to him, that he could not go into details on the two first of these three heads, without presenting ideas which would be unintelligible to any who had not already studied the third. In striving to avoid this, he has touched so lightly upon the other two, that his remarks on the important subjects of distress and accords, which come under the first head, leave the student nearly as ignorant as they found him. For this there was no real necessity, as a knowledge of the two first heads is by no means necessary, or indeed at all conducive to the right understanding of the third. Had the pride of philosophical analysis, and symmetry of arrangement, been sacrificed to the laws of logic and reason, there was nothing to forbid the introduction of treatises on these important topics, as copious and elaborate as those supplied by the diligence and research of the Virginia Commentator. The manner in which this has been done, has made it manifest how unfavorable the arrangement of Mr. Blackstone sometimes is to amplification and minuteness. The essays of the President of the Court of Appeals on distresses and accords, leave nothing to be desired. Yet no one can read them profitably without having first studied the law of remedies by suit or action.

These, and some other instances of the same sort, have led me to this determination. Wishing to avail myself of the labors of the Virginia Commentator, without losing the benefit of Mr. Blackstone's analysis, I propose to preserve the latter, but to make occasional changes in his arrangement, substituting one more logical, though perhaps less philosophical. This, and the postponement of the study of political law, are the only liberties I propose to take. The fourth division, which relates to crimes and punishments, will be the last considered. This will be done not only in a spirit of conformity to Mr. Blackstone's plan, but also because one of the most important branches of criminal law has reference to an offence of which no just idea can be formed without a previous and diligent study of the Constitution and of the science of government.

This last mentioned subject, young gentlemen, I should perhaps pass over but lightly, were I free to do so, contenting myself with a passing allusion to its connexion with the study of the law, and the encouragement you should derive from the honorable rewards that await distinguished merit in our profession. But this is not a mere school of professional education, and it is made my duty, by the statutes of the College, to lecture especially on the constitution of this state and of the United States. In the discharge of this duty it may be necessary to present views more important to the statesman, than to the mere practitioner. When I think of the difficulty and high responsibility attending this part of my task, I would gladly escape from it; but considerations of its importance and of the benefit to the best interests of our country which has heretofore resulted from its faithful execution, come in aid of a sense of duty, and determine me to meet it firmly and perform it zealously.

The mind of the student of law is the ground in which correct constitutional opinions and sound maxims of political law should be implanted. The study of the common law involves the study of all the rights which belong to man in a state of society. The history of the common law is a history of the occasional invasions of these rights, of the struggles in which such invasions have been repelled, and of the securities provided to guard against their recurrence. A mind thoroughly acquainted with the nature and importance of the writ of *habeas corpus*, and the trial by jury, and rightly understanding the indestructible character of the right of private property,

will hardly fail to be awake to any attack which may be aimed at liberty from any quarter. Hence liberty finds in the students of the law a sort of body guard. Their professional apprenticeship serves as a civil polytechnic school, where they are taught the use of weapons to be wielded in her defence. The history of our country from the first dawning of the revolution is full of proofs and examples of this. The clear view of the rights of the colonies which led to the Declaration of Independence, was one which hardly any but lawyers could have taken, and of the accuracy of which none but lawyers could have been sure. It was from them the ball of the revolution received its first impulse, and under their guidance it was conducted to the goal. Some few others were placed forward by circumstances; but they soon fell back, or found their proper place of service in the field; leaving the great cause to be managed by those whose studies qualified them to know where to insist, and where to concede; when to ward, and when to strike. The state papers emanating from the first congress will, accordingly, be found worthy to be compared with the ablest productions of the kind recorded in history; displaying an ability, temper, and address, which prepares the reader to be told that a large majority of the members of that body were lawyers.

In Mr. Blackstone's introductory lecture are some remarks on the importance of the study of the law to English gentlemen, strictly applicable to this view of the subject. "It is," says he, "perfectly amazing, that there should be no other state of life, no other occupation, art, or science, in which some method of instruction is not looked upon as necessary, except only the science of legislation, the noblest and most difficult of any. Apprenticeships are held necessary to almost every art, commercial or mechanical: a long course of reading and study must form the divine, the physician, and the practical professor of the laws: but every man of superior fortune thinks himself *born* a legislator. Yet Tully was of a different opinion: 'it is necessary,' says he, 'for a senator to be thoroughly acquainted with the constitution; and this,' he declares, 'is a knowledge of the most extensive nature; a matter of science, of diligence, of reflection; without which no senator can possibly be fit for his office.'"

If the part in the government allotted to the people of England renders this admonition important to them, how much more important must it be to us,

who are in theory and in fact *our own rulers*. Not only is every office accessible to each one of us; but each, even in private life, as soon as he puts on manhood, assumes a "place in the commonwealth." In practice, as in theory, the SOVEREIGNTY OF THE STATE is in us. *Born to the purple*, the duties of that high destiny attach upon us at our birth; and unless we qualify ourselves to discharge them, we must cease to reproach the ignorance and folly, the passion and presumption, which so often disgrace the sovereigns of the old world, and heap wretchedness and ruin on their subjects. The same causes will have the like effects here as there. Power does not imply wisdom or justice, whether in the hands of the few or the many: and it is only by the diligent study of our duties in this important station that we can qualify ourselves so to administer its functions, as to save the free institutions inherited from our fathers, from the same reproach which the testimony of history fixes upon all other governments.

Not only is this true in reference to us as well as to the kings of the earth, but it is more emphatically true of us than of them. Whatever be their theory of sovereignty, and however they may prate about *divine right*, they all know, and feel, that, after all, they are but *kings by sufferance*. They may talk of absolute sovereignty, and claim for government that sort of *omnipotence* which is said to reside in the British parliament. But, after all, they know and feel, that there is much they cannot do, because there is much they dare not do. The course of events now passing in England is full of proof of this. We have just seen that same omnipotent parliament, new-modelling itself to suit the wishes of the people. This act indeed, was itself an exertion of this pretended omnipotence, but wisely and discreetly exercised, in surrendering power. It was certainly done with a very bad grace; and at this moment we see that body anxiously watching the temper of the multitude, and adapting its measures, not to the views of its members, not even to the views of the constituent body, but to the real or supposed interests of the great unrepresented mass. Such is the check, which in spite of all positive institutions, the physical force of numbers, however degraded, and, professedly, disregarded, must exercise over their rulers; and in this check, they find a motive to justice, forbearance, and circumspection, which, in a measure, restrains the abuse of power.

But may not we, the sovereign citizens of these states, abuse power too? When men are numerous and "strong enough to set their duties at defiance, do they cease to be duties any longer?" Does that which would be unjust as the act of ninety-nine, become just, as being the act of an hundred? Is it in the power of numbers to alter the nature of things, and to justify oppression, though it should fall on the head of only one victim? It would be easy to point to instances in which we all believe that majorities have done great wrong; and that under such wrongs we have suffered and are still suffering we all know. But where is the check on such abuse of power? Constitutional authority and physical force are both on the same side, and if the *wisdom* and *justice* of those who wield both does not freely afford redress, there are no means of enforcing it. "There is no sanction to any contract against the will of prevalent power."

The justice of these ideas is recognized in the forms of all our governments. The limitations on the powers of congress and the state legislatures, are all predicated on the certain truth "that majorities may find or imagine an interest in doing wrong." Hence there are many things which cannot be lawfully done by a bare majority; and many more, which no majority, however great, is authorised to do. Two-thirds of the senate must concur in a sentence of impeachment. The life and property of an individual cannot be taken away but by the unanimous voice of his triers; and all the branches of all our governments collectively cannot lawfully enact a bill of attainder, or an *ex post facto* statute.

But though such acts are forbidden by the constitution, they may nevertheless be passed, and judges may be found to enforce them, if those holding legislative and judicial offices shall be so minded. The constituents, too, of a majority of the legislature may approve and demand such acts. Where then is the security that such things will not be done? Where can it be but in the enlightened sense of justice and right in the constituent body?

I am not sure that such restraints on the powers of public functionaries are not even more necessary in a republican government than in any other. A king can scarcely have a personal interest in ruining one portion of his dominions for the benefit of the rest, and he would not dare to ruin the whole, while a spark of intelligence and spirit remained among the people.

But in a republic, whenever the inclination and the power to do such a wrong concur, the very nature of the case secures the rulers from all fear of personal consequences. The majority is with them. Their own constituents are with them. To these is their first duty; and shall they hesitate to do that which is to benefit their constituents, out of tenderness to those who are not their constituents? We know how such questions are answered, when the occasion is one where a *fixed majority* have a *fixed interest* in the proposed wrong. Is not this the reason why legislative encroachment so much disposes men to acquiesce in executive usurpation? Is it not this, which, when the barriers of constitutional restraint are seen to fall, drives minorities, *as by a sort of fatal instinct*, to seek shelter under the arm of a *common master*, from the all pervading tyranny of majorities exercising the power of *universal legislation*? The wrongs of America were the act of the parliament of England, goaded on by the people. It was they who claimed a right to legislate in all things for the colonies. It was they who demanded a revenue from America; and the colonies, eagerly looking to the crown for protection, maintained an unshaken loyalty, until the king was seen to take part with their oppressors. The wrongs of Ireland are the act of the people of England. Ireland is the rival of England in agriculture, manufactures and commerce; and every concession to the former, seems to the multitude to be something taken from the prosperity of the latter. But the representation of Ireland in parliament is to that of England as one to five; and when the Irish people cry to parliament for redress, they are answered *as all appeals from minorities are answered by the representatives of majorities*. But how would they be answered if the representative and constituent bodies were both thoroughly instructed in the sacred character and paramount authority and importance of the *duties* which belong to the high function of sovereignty? We justly deny and deride the divine right of kings; and we assert and maintain *the divine right of the people to self government*. And it is a divine right. It is a corollary from the right and duty to fulfil the purposes of our being, which accompany each one of us into the world. The right and the duty both come from the author of that being. He imposes the one when he gives the other, and thus fixes on us a responsibility which clings to us through life. We deceive ourselves if we think to get rid of any portion of this responsibility by entering into partnership with others, each one of whom brings into the concern the same rights, the same duties, and the same responsibilities;—neither more nor less than ourselves. We do but

multiply, and divide again by the same number. Each receives, by way of dividend, the same amount of right, duty, and responsibility that he carried into the common stock. Of so high a nature are these, and so vast are the interests with which they are connected, that it has been truly said, that, whether we mount the hustings or go to the polls, we may well tremble to give or to receive the power which is there conferred.

Gentlemen; if these ideas be just, how important is the duty imposed on me by that statute of the college which requires me to lecture on constitutional law! How desirable is it that there should be every where schools, in which the youth of our country should be thoroughly imbued with correct opinions and just sentiments on this subject! It was Agesilaus, I think, who said that "the business of education was to prepare the boy for the duties of the man." How pre-eminently important, then, must be that branch of education which is to qualify him to perform this highest of all social duties, and to bear worthily his part in that relation which has been characterized as "a partnership in all science, in all art, in every virtue, and in all perfection; a partnership, not only between those who are living, but between those who are living, those who are dead, and those who are yet to be born."

These striking words, which are from the pen of the celebrated Edmund Burke, call to mind the high testimony which he has borne in favor of the study of the law, as a school of political rights. After having acted an important part in procuring the repeal of the stamp act, he made his last effort in favor of the rights of the colonies, in March, 1775. On that occasion, laboring to dissuade the British parliament from pushing America to extremities, he descanted on the love of freedom, which he pronounced to be the predominating feature in the character of our fathers. The prevalence of this passion he ascribed to a variety of causes, none more powerful than the number of lawyers, and the familiarity of the people with the principles of the common law. His ideas I will give you in his own words, for it is only in his own words that his ideas ever can be fittingly expressed.

He says, "In no country perhaps in the world is the law so general a study. The profession itself is numerous and powerful; and in most provinces it takes the lead. The greater number of the deputies sent to the congress were

lawyers. But all who read, and most do read, endeavor to obtain some smattering in that science.... This study renders men *acute, inquisitive, dexterous, prompt in attack, ready in defence, full of resources*. In other countries, the people, more simple, and of a less mercurial cast, judge of an ill principle in government only by an actual grievance; *here they anticipate the evil, and judge of the pressure of the grievance by the badness of the principle. They augur misgovernment at a distance, and snuff the approach of tyranny in every tainted breeze.*"

Such, young gentlemen, is the important and useful influence which the study of our profession enables its members to exert. But if, instead of preparing their minds by this study, the very men to whom the people look up for light, do but provide themselves with a few set phrases contrived to flatter and cajole them, what but evil can come of it?

"The people can do no wrong." Why! this if but what all sovereigns hear from their flatterers. In one sense, it is indeed true of both, for there is no human tribunal before which either king or people can be arraigned. But neither can make right and wrong change places and natures.

"*Vox populi, vox Dei.*" "It is the voice of God." So said the Jews of the impious Herod. But the judgments of the insulted Deity showed how mere a worm he was; and *his* judgments are not limited to kings, nor withheld by numbers. We may preserve all the outward forms of freedom, the checks and balances of the constitution may remain to all appearance undisturbed, and yet he who can "curse our blessings" may give us over to all the evils of despotism, if we do not "lay to heart" the high duties of that freedom wherewith he has made us free.

I am sensible, young gentlemen, that, to many, these ideas will not be acceptable. And for an obvious reason. "Men like well enough," it is said, "to hear of their power, but have an extreme disrelish to be told of their duties." Yet in a government of equal rights, these are strictly correlative. The rights of each individual are the exact measure of the duties which others owe to him, and of course, of those he owes to others. This is so obviously true, that it needs but be stated, to be recognized at once as a man recognizes his face in the glass. But *he* "goeth his way, and straightway forgetteth what manner of man he was." Let not us do likewise.

But there is another reason why many will hear with impatience of the difficulties attendant on the proper discharge of duties, which are too often made the low sport of a holiday revel. None can deny the truth and justice of the remarks already quoted from Mr. Blackstone; but few, I fear, are willing to bring them home, and to acknowledge the necessity of such severe preparation to qualify themselves to exercise the franchises of a citizen. Let me hope, young gentlemen, that you will view the matter in a different light, and go to your task with the more cheerfulness, from the assurance that you will thus be qualified to derive a blessing to yourselves and to your country, from the discreet and conscientious exercise of a privilege, which others, from a want of correct information and just sentiments, so often pervert to the injury of both.

Before I conclude, give me leave to offer a few remarks on a subject in which every member of the faculty has an equal and common interest. If there be any thing by which the University of William and Mary has been advantageously distinguished, it is the liberal and magnanimous character of its discipline. It has been the study of its professors to cultivate at the same time, the intellect, the principles, and the deportment of the student, laboring with equal diligence to infuse the spirit of the scholar and the spirit of the gentleman. He comes to us as a gentleman. As such we receive and treat him, and resolutely refuse to know him in any other character. He is not harassed with petty regulations; he is not insulted and annoyed by impertinent *surveillance*. Spies and informers have no countenance among us. We receive no accusation but from the conscience of the accused. His honor is the only witness to which we appeal; and should he be even capable of prevarication or falsehood, we admit no proof of the fact. But I beg you to observe, that in this cautious and forbearing spirit of our legislation, you have not only proof that we have no disposition to harass you with unreasonable requirements; but a pledge that such regulations as we have found it necessary to make, *will be enforced*. If we did not mean to execute our laws, it might do little harm to have them minute and much in detail on paper. It is because we *do* mean to enforce them that we are cautious to require nothing which may not be exacted without tyranny or oppression, without degrading ourselves or dishonoring you.

The effect of this system, in inspiring a high and scrupulous sense of honor, and a scorn of all disingenuous artifice, has been ascertained by long experience, and redounds to the praise of its authors. That it has not secured a regular discharge of all academical duties, or prevented the disorders which characterize the wildness of youth, is known and lamented. But we believe and know, that he who cannot be held to his duty, but by base and slavish motives, can never do honor to his instructors; while we are equally sure that such a system as keeps up a sense of responsibility to society at large, is most conducive to high excellence. We think it right, therefore, to adapt our discipline to those from whom excellence may be expected, rather than to those from whom mediocrity may barely be hoped. Such a system is valuable too, as forming a sort of middle term between the restraints of pupilage and the perfect freedom and independence of manhood. Experience shows that there is a time of life, when the new born spirit of independence, and the prurience of incipient manhood will not be repressed. They will break out in the *airs* or in the *graces* of manhood. Between these we have to choose. The youth of eighteen treated as a *boy*, exhibits the *former*. Treated as a *man*, he lays aside these forever, and displays the *latter*. This system is thus believed to afford the best security against such offences as stain the name of the perpetrator. Of such our records bear no trace; nor is there, perhaps, a single individual of all who have matriculated here, that would blush to meet any of his old associates in this school of honor.

May we not hope then, young gentlemen, when so much is trusted to your magnanimity, that the dependence will not fail us? May we not hope, when we are seen anxious to make our relation, not only a source of profit, but of satisfaction to you, that you will not wantonly make it a source of uneasiness and vexation to us? I persuade myself that you, at least, commence your studies with such dispositions as we desire. If this be so, there is one short rule by which you may surely carry them into effect. "*Give diligent attention to your studies.*" This is the best security against all unpleasant collision with your teachers, and against that weariness of spirit which seeks relief in excess or mischief. It carries with it the present happiness, which arises from a consciousness of well doing; it supplies that knowledge which encourages to farther researches, and renders study a pleasure; it establishes habits of application, the value of which will be felt

in all the future business of life; and lays the foundation of that intellectual superiority by which you hope to prosper in the world, and to be distinguished from the ignoble multitude who live but to die and be forgotten.

Williamsburg, October 27, 1834.

For the Southern Literary Messenger.

THE MARCH OF MIND.

"Tempora Mutantur."

The present is emphatically the age of useful invention and scientific discovery; and it is the peculiar good fortune of the present generation, that the indefatigable labors of a few gigantic minds have opened to it new and expanded sources of enjoyment, by the development of principles which have long eluded the grasp of philosophy, and by their practical application to the most ordinary affairs of life. Men are not now bewildered by the imposing mysteries in which scientific truth has been so long enveloped; nor are they deterred from a bold investigation into the solidity of theories and hypotheses, by the studied ambiguity of phrase in which the votaries of learning have veiled them. They have learned properly to appreciate the fallacy of those abstruse speculations and metaphysical researches, into which so many thousands, in pursuit of some vain chimera, have been inextricably involved—and have erected the standard of *utility* as that alone by which all the lucubrations of moonstruck enthusiasts, and all the experiments of visionary projectors are to be rigidly scanned and tested. The practical benefits which have resulted from the rapid march of mind, are to be seen in the application of steam to the propulsion of boats, and in the innumerable rail roads, canals, and other stupendous improvements, which have developed the resources of this extensive country, and multiplied the blessings so bounteously bestowed upon it by providence. But in the first glow of astonishment and exultation which these have excited in the minds of men, numerous beneficial changes of minor importance have followed the march of intellect, which from their comparative insignificance, have almost escaped observation.

Formerly, the professors of the complex sciences of law, medicine, and divinity, were regarded as exalted by their attainments, to an immeasurable height of superiority over the mass of mankind, because they shrouded the truths and principles of science from the vulgar eye, by a veil of unintelligible jargon and grandiloquent technicalities, entirely above the ordinary powers of comprehension. Years of laborious and incessant toil were requisite to master the hidden complexities of those venerated and "time-honored" professions; and he, who with martyr-like resolution and unwearied perseverance, devoted his time and talents to their attainment, was regarded by the "*vulgus ignobile*" with sentiments of respect and admiration, nearly approaching to the idolatrous reverence of a Hindoo, for the fabled virtues of his bloody Juggernaut. But the illusion has at last been dispelled by the refulgent light of truth, and those illustrious individuals, the Luthers of the age, who have stripped these hoary errors of the veil which concealed their enormity, may with merited exultation and triumph exclaim, "*Nous avons changé toute cela!*" The art of economising time has been simplified, and subjected to the grasp of the most obtuse intellect; so that a science which formerly required years of intense and unremitted study, united with long experience and observation, is now thoroughly understood and mastered in a fortnight! So rapid indeed has been the march of intellect, sweeping from its path obstacles heretofore deemed insurmountable, and scaling the most impregnable fortifications of philosophy, with a force no less astonishing than irresistible, that many of our most profound adepts in the "glorious science" of the law, are (*mirabile dictu!*) at once initiated into all its mysteries by a single perusal of "Blackstone's Commentaries" and the "Revised Code!" instead of toiling his way up the steep ascent of fame by consuming the midnight oil, by exploring the dark and forbidding chambers of the temple of law, dragging forth truth from the musty volumes of antiquity, and searching the origin of long established principles. Among the feudal customs of our Saxon progenitors, a man may now become "like Mansfield wise, and Old Forster just," by one month's attendance at the bar of a county court! At the expiration of that period, he can rivet an admiring audience in fixed attention, by the strains of Demosthenian eloquence, in which he asks if "the court will hear a motion on a delivery bond?" And will astound some illiterate ignoramus, by the consequential pomposity with which he prates of "contingent remainders," "executory devises," and all the labyrinthian subtleties of nisi prius! No one will then contest his right to

perambulate the streets, with all the ostentatious dignity of a man "learned in the law," and to parade before the eyes of the admiring rabble, his colored bag of most formidable dimensions,—albeit, it may be filled with cheese and crackers to stay his stomach in the intervals of business.

But the inappreciable benefits which the "March of Intellect" has showered upon mankind, are easily discovered by referring to the stupendous revolutions it has achieved, not only in the science of law but in divinity, medicine, education, manners, and morals. Men do not now venerate the ancient fathers of the church for the profound erudition and wonderful acquirements displayed in those ponderous tomes which now and then greet the eyes of the bibliopole, exciting the same degree of astonishment as the appearance of a comet illumining the immensity of space with its brilliant scintillations, or some *lusus naturæ* like the Siamese twins. Far from it. Modern philosophers have discovered the inutility and absurdity of wading through the voluminous discussions of controversial theologians, and tracing the origin of some religious dogma or doctrinal schism, which has for ages furnished these pugnacious wiseacres with food for inquiry and research. Instead of wasting the time necessarily consumed in these ridiculous studies, men who formerly might have dragged out their lives in the vulgar vocation of a tailor, a butcher, or a hatter, spring forth in a single week armed cap-a-pie to defend their religion from the unhallowed assaults of infidels, and amply qualified to expound the sacred texts, and deal out damnation with the indiscriminate prodigality of a spendthrift, for the first time cursed with the means of gratifying his extravagant propensities.

Formerly too, the most attentive and patient observation of the progressive development of the mental faculties of a child were necessary to enable a parent to adapt his education to the sphere of life in which nature had destined him to move. Innumerable obstacles were to be encountered in tutoring his mind to the comprehension of the profession for which he was intended; and, perhaps, after years of incessant toil and intense parental anxiety, the young stripling blasted all the hopes of his kindred, by either becoming the hero of a racefield or the magnus apollo of a grog shop, or distinguished his manhood by the puerile follies of youth, or the incurable stupidity of an idiot. But the "March of Mind" has obviated or removed all these difficulties, by the discovery of the renowned science of phrenology.

A parent, in this blessed age of intellectual illuminism, may by an examination of certain craniological protuberances, ascertain with mathematical exactness, whether his child is a hero or a coward, a philosopher or a—fool; and may regulate his education in conformity to the result. The safety and well being of society, too, is thus encompassed with additional safeguards, which will effectually protect it from those evils which have heretofore been only partially suppressed by legislation. If any ill favored monster of the human species happens to have the organ of destructiveness largely "developed," (*ut verbum est*) and not counteracted by any antagonist organ,—all the murders, rapes and thefts which he is morally certain to perpetrate,—with their attendant train of want, calamity and ruin, may be at once prevented by hanging the scoundrel in terrorem, as a kind of scarecrow to all evil doers. A desideratum in political economy will thus be also attained. The accounts of those "caterpillars of the commonwealth," clerks, sheriffs, lawyers, *et id omne genus*, who swarm around the treasury in verification of the old maxim of Plautus, "*ubi mel, ibi apes*,"—(Anglice—Where there is money, *there* are lawyers,) are balanced without the payment of a cent; for it is obvious that there is no necessity for all the tedious formalities of a trial at law, the guilt of the murderer being already ascertained and summarily punished by this *preventive* justice, and the commonwealth of course exempted from the expense of a prosecution.

It would require a volume to enumerate all the advantages which have resulted from the discovery of this science. But even these are about to be quadrupled by the successful experiments recently made in the immortal and euphoniously titled science of phrenodontology, by which a man's *grinders* are regarded as the unerring indices of his habits, manners and propensities; and should these last be of an evil nature, they can be entirely eradicated by the extraction of such of the *incissores* as indicate their existence. There is no necessity whatever of inculcating self denial, regular habits, fortitude and virtue, to correct the depravity and vice of any individual. Only knock out his teeth, (or as that method is somewhat too summary,) have them extracted *secundum artem* by a dentist, and you instantly metamorphose him into a paragon of moral purity!

But one of the principal benefits of the "March of Mind," is the salutary reformation effected in the opinions of mankind, in relation to numerous

important subjects. All those low and grovelling ideas which once tenanted the crania of our honest yeomanry as to the education of their children, have now evaporated into thin air. Instead of tying their sons to a vulgar plough, bronzing their visages to the complexion of an Indian, as was formerly the absurd practice, they are now transplanted into the genial hothouse of a town life, where they are soon installed in all the fashionable paraphernalia of tights, dickey, and safety chain; and astonish their honest old dads by the dexterity with which they flourish a yardstick, and by the surprising volubility with which they can chatter nonsense, *a la mode du bon ton*. I have often been enraptured with the incontrovertible evidence of the "March of Mind," when I saw one of these praiseworthy youngsters, with his crural appendages, cased in a pair of eelskin inexpressibles, and his nasal adjunct inflamed to that rubicund complexion which Shakspeare has immortalized in the jovial Bardolph, quiz a country greenhorn, and *cul*, in the genuine Brummel style, some vulgar, lowborn, mechanic acquaintance, who insolently aspired to the honor of a nod! The improvement too, in the education of our young ladies, is "confirmation strong as proof of holy writ," of the rapid and resistless march of science and intellect. With a precocity of talent which would have absolutely dumbfounded a belle of the olden time, they now arrive at full maturity at the age of thirteen; when

"My dukedom to a beggarly denier,"

they can out-manoeuvre the most consummate coquette of fifty! They perfect their education with almost the rapidity of light; and prattle most bewitchingly in French or Italian, before their pretty mouths have been sullied by their vulgar vernacular. The odious and despicable practice of knitting stockings and baking pies, fit only for a race of Goths in an age of Vandalism, has been inscribed with "*Ilium fuit*," and is now patronised only by the rustic *canaille*, who still adhere to the horrid custom of rising at the dawn of day and attending to household business. Their proficiency too, in the science of diacousticks, or the doctrine of sounds, is truly amazing—and the whole *posse comitatus* of foreign fiddlers, jugglers, and mountebanks who kindly condescend to instruct them in music, (as they facetiously term it) are often thrown into raptures by the ease with which they produce every variety of noise on a piano, from the deafening roar of a northwester to the

objurgatory grunt of a Virginia porker, unceremoniously ousted from his luxurious ottoman of mud!

But, as Byron says, greater "than this, than these, than all," are the wonderful phenomena which have occurred in the science of medicine. The physicians of modern times, have snatched the imperishable laurels from the brows of Galen and Hippocrates, and have compelled Old Esculapius himself, to "hide his diminished head!" It had long been a source of the most poignant regret to the philanthropic observer of the ills and afflictions incident to human nature, that the benign system of medical jurisprudence, designed originally for the alleviation of human suffering, had been so dilatory and uncertain in its operation, and so fatally ill adapted to the eradication of numerous diseases from the human frame, as to effect only a partial accomplishment of its beneficent purpose. This radical disadvantage in that system of medical science, might reasonably have been attributed to the want of a proper firmness and adventurous temerity in its practitioners;—probably, also, it might have resulted from their lamentable ignorance of the structure and conformation of the human frame. This system, as was to have been expected, had met with numerous advocates, principally in consequence of their perfect personal indemnity from the frequently fatal result of their ignorance or mismanagement; it being well known that under this system a practitioner might, if he so chose, administer a deadly poison to his patient, who would naturally "shuffle off this mortal coil," while his afflicted relatives would piously attribute his decease to a dispensation of Providence; and the physician, composedly pocketing his fees, would have the satisfaction of seeing himself eulogised in his patient's obituary, as a man of "science and skill." It is obvious that under this system the patient's life was but

"A vapour eddying in the whirl of chance,"

and the distressing frequency with which we were called on to attend the remains of a fellow being to the gloomy prisons of the dead, imperatively demanded a radical and extensive reform.

But fortunately for the human species, the "March of Mind" has led to medical discoveries which have chained up the monster Death in impotence, and rendered him a plaything to "the faculty." The long and

pompous pageants of M. D.'s diplomas, &c &c. have ceased to overawe the eager aspirant for medical celebrity, and he now steps forward in the path of fame at the age of nineteen, *maximus in magnis*, greatest among the great! Diseases that formerly baffled the utmost skill of science, and preyed upon their victims for years, are now thoroughly extirpated in an hour! The long catalogue of noxious medicines with which the pharmacopia was crammed, and which served no other purpose than to swell

"The beggarly account of empty boxes,"

which the shelves of a rascally apothecary presented to view, are now discarded; and their places are supplied by medicines so simple and so efficacious, that the value of life, once considered so inestimable, has actually undergone a considerable diminution, merely because of the ease with which it may be enjoyed. It is now no longer necessary to watch the various diagnostics of an obdurate disease through their origin and development; it is no longer important that the unfortunate patient should be bolstered up in bed for months, and his stomach annihilated by a nauseous diet of mush and water gruel. This was but the quackery of the rapacious cormorants, who grew rich upon the credulity of their dupes. The patient may be on his feet in half an hour, by the salutary operation of some harmless medicine, which produces no other evil effect than a remarkable elongation of the visage, and divers contortions of the abdominal viscera! Instead of first ascertaining to what extent the body of the patient has been debilitated by the ravages of his disorder, it is only requisite to refer to a mystical talisman, vulgarly called a *teetotum*, which entirely supersedes the necessity of thought or reflection; and whose final position, after performing sundry gyrations on its point, informs the practitioner with unerring certainty, whether his patient should be *puked, sweated, or blistered!* The result is certain. The most complicated case of pulmonary consumption is instantly and thoroughly cured by *steam*; and an obstinate fever, produced by a superabundance of bile upon the stomach, is effectually extirpated by an injection of *cayenne pepper!* As revolutions never retrograde, these important changes in medical jurisprudence will only terminate in the actual resuscitation of a dead body, by an external application of camphorated salts! a "consummation devoutly to be wished," and most certain to be effected, by the rejection of all mineral medicines,—

which the "March of Mind" has demonstrated to be hurtful,—and the substitution in their stead of a few simple vegetable remedies, accurately arranged, classified, and *numbered*!

But enough. No man can reflect upon these things, without applying, as I do, the trite quotation, "*tempora mutantur*," &c. Although it has been used for the ten thousandth time, by the whole tribe of newspaper scribblers and juvenile poetasters, yet it has never been more *apropos*. Times *are* changed; and "oh, *how* changed!" What mind does not expand at the delightful contemplation of these grand revolutions; and who does not look forward with eagerness to the memorable era when all the vulgar *bourgeois* qualities of common sense, common decency, and common virtue, will fade into nothingness before the resistless and all powerful "March of Mind!"

V.

Lynchburg, Oct. 30, 1834.

For the Southern Literary Messenger.

THE VILLAGE ON FOURTH JULY 183—.

A TALE.

Ergo agite, et lætum cuncti celebremus honorem.—*Virgil*.

Risum teneatis amici?—*Horace*.

I do not know that the celebration of a Fourth of July in a country village has ever been thought worthy of appearing in print; nor do I know that a tale, founded on such a celebration, has ever been written; and I doubt whether the fancy of any of our geniuses has ever pictured

such a subject, either with the pen or pencil. Many of your readers will perhaps be amazed at the thought of such a subject for a tale; but permit me to ask, why not a tale of the Fourth of July as well as any other? Is it because the hearts of a free people, rejoicing on the anniversary of the day which gave them liberty, throb in harmony, and therefore can afford neither novelty nor variety? Granted. But are there not various modes of manifesting, more or less appropriately, the inward emotions of our hearts? Are not our ideas dissimilar as to the manner of exhibiting our feelings, according to our various means, situations and vocations in life—high or low—in cities, towns and country? Then wherefore not? We have read of tales of woe, and tales of bliss, and tales of neither; and, this being the case, I am imboldened to this undertaking, leaving to the better judgment of the reader to assign it to whichever class it properly belongs.

At the foot of a slope, and on the right of a stream compressed between two abrupt and craggy hills, covered with oaks and pines, stands a small village, remarkable only for the rude and romantic scenery which surrounds it. Access to it from the left side of the stream can only be gained by a rocky, rugged and declivous road, the greater part of which seems to have been either blasted or hewed out of the side of a hill, around which it winds at a considerable height above the water—and, at its termination is a neat frame bridge, which when crossed admits you into the village. This stream bounds a conterminous portion of two counties bordering upon the Potomac, into which it empties itself at about five miles below the village, where the influx and reflux of the tides are felt. Although there is considerable depth of water at the village sufficient to float vessels of a large size, yet the clayey alluvion brought down by the stream, and reacted upon by the river at their junction, becomes a deposite which forms a kind of bar, over which none but small crafts can pass. The number of inhabitants may be estimated at from two to three hundred, the greater part of whom are attached to a cotton factory but recently erected, and the remainder, with the exception of a few families of consideration, are more or less connected with the country and merchant mills, established many years since, from which the village has its origin and perhaps its name.

The beating of a drum, and the shrill and false tones of a fife, at dawn of day, betokened to the villagers who still reposed upon their pillows, that the glorious birthday of independence was likely not to be passed unobserved,

as hitherto it had been. This novel, and, in effect, startling ushering of the day, soon brought them upon their feet, and ere the sun had peered over the eastern, or crested the brows of the western, mounts, the streets, such as they are, had become quite enlivened. Most of the villagers had never heard the sounds of martial music, and the greater number of those who had, were indebted to the troops that had passed through the village during the late war. Those who had never seen nor heard the sounds of a drum and fife, disclosed their amazement by their gazing eyes and mouths agape. To a looker on, the performers could not but be remarkable. A European, tall, erect, lank, and already tipsy, thumped away upon a drum, the vellum of the nether end of which was rent,—followed by a stout, awry necked, crumped backed and limping African, as *fifer*—a contrast at once striking and ludicrous, hobbled along, most earnestly occupied with their *reveille*, heedless of the gaze of the wonderstruck multitude—the din of their music echoing and reverberating from the surrounding hills. The *drummer* had been such in the United States Marines, and had but recently quitted the service—and though not sober, his performance was far from being bad. The *fifer* had served in that capacity during the revolutionary war. His finger, stiff from long disuse of the instrument, which he had preserved with religious care since that epoch, did not allow him to give but an imperfect specimen of his store of marches and quicksteps in vogue at that time, and his recollection of them was scarcely better; the tunes of the present times he knew nothing about. The drum used upon this occasion had been *put hors de combat* during the late war, as the troops passed through the village. This, together with the hallowed fife and veteran *fifer*, in connection with the day, did not fail to give rise to associations eminently calculated to excite enthusiasm.

It appears that the celebration of the day had originated with, and was suggested by, an honest son and follower of St. Crispin, (who had lived in a city and had acquired some knowledge of *l'art militaire*,) whose ambition to command a corps had led him to the most indefatigable exertion to inspire the villagers with the spirit of *amor patriæ*, and success having crowned his exertion, application had been made for commissions as well as for arms, in order to organize themselves in time for a parade on the approaching festival. In this however they were disappointed; for they had obtained

neither when the day arrived, and having determined to celebrate it, in spite of their disappointment they would.

This resolution soon circulated through the adjacent country called the *forest*—its inhabitants *foresters*, who, anxious to witness the parade—"the *spree*," as they termed it, came flocking into the village on foot and horseback, singly and doubly, et cetera, by every byroad and pathway which led to and terminated there. By meridian the gathering was so great that the oldest inhabitants declared that such an influx was not within their recollection. As regards the character of the *foresters*, men and women, they are an honest, hardy, industrious and independent people, and on Sundays, high-days and holydays, cut a very respectable figure in the way of apparel and ornaments—and for this occasion particularly, no pains had been spared to make an *eclat*.

In consequence of the disappointment alluded to, every firearm that could be found was put under requisition, and the entire forenoon was consumed in collecting and preparing them for use, during which the music to arms continued without intermission. It was in this interval that the buzzing of an expected oration was heard, which swelled into a report, and heightened not a little the pre-existing enthusiasm.

Discharges of guns repeated at irregular intervals on the skirts of the village, was an indication that the parade was about to commence, and at a little after twelve o'clock the soldiery made their appearance. They wore no uniform, but were clad in their best "Sunday go to meetings;" and in the ranks were many of the foresters who had joined them—

"The rustic honors of the scythe and share"

being given up for the time, for the warlike implements then to be used.

Their arms were of divers descriptions; double barrelled guns, deer guns, ducking guns, and a blunderbuss, with powderflasks and horns swung round their shoulders,—and, volunteers in number exceeding arms, poles were substituted. A cutlass distinguished the captain; a horsewhip the lieutenant; a cane the second lieutenant. These three, together with the soldierly appearance of some, the rigidity of others, the apparent

nonchalance of a few, and the deformity of several, presented a *tout ensemble* the most grotesque and diverting.

In the midst of this band was a small man, the stiffness of whose carriage and the peculiarity of whose countenance attracted the attention of the crowd. His eyes were small—appeared to be black and twinkling, and were set into the deep recesses of sockets which projected considerably, and surmounted by dark shaggy brows; his face was contracted—his features small—and his forehead, though retreating, was not sufficiently so to denote the entire absence of the reflective faculty, according to phrenology. In his hand he bore a scroll, and the dignity which his stiffness was meant to affect, was reasonably enough imputed to the importance which he attached to the part he was to act. The scroll was the Declaration of Independence, which was to be read by him; and from the peculiarly reverential manner with which it was held in his hand, he seemed to feel that it was an instrument coeval with the birth of, and coexisting with, a free and powerful nation, and demanded deference even from the very touch of his hand. This man was not altogether devoid of talent, for he had succeeded in earning for himself among the villagers a reputation of high literary acquirements; and on hearing the report of an expected oration, (suspicion fixed on him the origin of it,) had spontaneously proposed to verify it. Of course the proposition was well received, and dissipated at once any uncertainty. The spot at which it should be delivered was soon decided upon and designated—well known—and but a short distance out of the village. Thither the multitude repaired in advance of the military, who were not to arrive there until all the necessary arrangements for their reception had been made. This duty devolved upon a self-constituted committee of arrangement, who discharged it with all the zeal and ability which the briefness of the notice would allow.

The locality was well chosen, and seemed to have been designed by nature for the scene for which it was now appropriated. From the village and around the foot of the hill, winds a path that leads by an easy ascent to the summit of another hill, capped by a grove or cluster of huge pines and oaks, which overshadow a surface clear of undergrowth and interspersed with rocky prominences. These prominences, though rough, answered admirably well the purpose of seats for the auditory, and one of them being flat and

overswelling the rest, was pitched upon as a rostrum from which the orator should hold forth. On one side of it, which might be called the rear, was planted a staff, to which was tacked an old bunting American ensign or flag, pierced with holes, received at the battle of Plattsburg. At the end of the staff hung a red woollen cap, the symbol of liberty—its color emblematic of the ardor of its spirit, as explained by the committee. At the foot of the staff stood a cask of "*old corn*," for the refreshment and entertainment of the *corps militaire*, in honor of the day and orator.

The village and country belles and beaux, attired in their gayest possible manner, by way of regard, were suffered to have precedence in the selection of places, and the former had possessed themselves of those crags which might best suit them to the convenient hearing of the oration. The assembled people were now impatiently awaiting the arrival of the orator and escort, when they were at length descried wending their way up hill, at the tune of *Molbrook*, sent forth to the air from the fife in fragments—and having arrived, the orator was conducted in form to the rostrum by the committee, which he mounted with unfaltering steps.

The bustle and buzz incident to the choosing of convenient places amid the rugged area having subsided, the *coup d'oeil* presented was well worthy the pencil and genius of a Hogarth; the pen can convey but a faint idea. The gay females, elevated upon the asperated crags, overtopping every other object, seemed to shed lustre and life upon every thing around. Their attendants or beaux, resting in various postures at their feet, or lolling against a tree hard by, proved that the village and sylvan belles command the devotions of the rude sex no less than those of courts and cities. The boys were perched upon every oaken bough that overhung the spot that could bear their weight, and the military and the rest were strewn about thickly and promiscuously on the ground—sitting, squatting, kneeling; in fine, in every position indescribable which the human frame is susceptible of when adapting itself to some particular locality for its comfort.

The speaker being about to commence, many who had kept on their hats or caps were bid to uncover; the greater number of whom did so cheerfully; a few reluctantly; and several, more independent and less tractable, kept on theirs. To have insisted upon this point of decorum might have been

attended with consequences to mar the rejoicing—so the point was very wisely given up. Silence obtained, nothing was heard but the rustling of the leaves, through which the breeze that prevailed passed and refreshed all below. The orator bowed and addressed his attentive auditory. His voice was clear and audible, and his words were carefully noted by a chirographer, and are here inserted.

"Citizens of the village and farmers of the forest!—I will not offer any excuse for the peramble that I will speak subsequent to the reading of this *glorious* document (holding up the scroll) of our ancestors. The honor with which you have extinguished me this day, by making me the reader on it, is duly depreciated.

"When you have heard the sentiments contained upon it, you will find your hearts in trepidation at the conjointure at which your forefathers dared to put their fists to it.

"While they was employed in this business, the immortal Washington, called the *frater pater*, because he had a brotherly and fatherly love for his countrymen, was commanding an army made up of such soldiers as *you* are. (Cheers.) It was with the like of you—such powerful men as you—with such courageous souls as yours, that John Bull was fighting with, running before and falling dead. (Great cheering.) The great Thomas Jefferson and John Adams was driving the quill in peace and comfort in Philadelphia, about this grand production, (stretching forth and unfolding the scroll,) because they knowed, and all that was there with them knowed too, that such soldiers as *you*, fighting for liberty, barefoot, bareback and half starved, just as you are now when you are all at home hard at work, was irresistible and unvincible. (The deafening and reiterated cheers interrupted the speaker for a short time.)

"Without you, what would have become to them, and this now free, brave and happy nation? Shall I tell you? Why they should have all been hanged or shot, and this nation would have been made up of slaves. They worked with their heads, and you with your arms; to use a learned expression, they physically and you bodily: and if it had not a been for your arms and bodies, they could never—they would never have dared to do nothing with

their heads. You was the strong ramparts behind which they retrenched themselves to save their necks. (Cheers.)

"Your beloved Washington could work with either his hand or his arm, but he showed his wisdom by choosing to work with his arm—that is, by flourishing the sword instead of driving the pen—by putting himself at your head in battle—facing the cannons of the enemy, and leading you to *victory* or *death*! (Tremendous cheering.) To make this plainer still to your understandings, which is very good,—suppose a man was to abuse you and call you hard names? Why, you would up fist and knock him down at once, if you could, in course; and if you did you would be safe enough, and the matter would end. This was Washington's maxim, and he acted up to it. Now-a-days, amongst them who drives the quill, when one abuse another, they go to writing, and when they have lost a heap of time to prove one another in the wrong—mind you, because they don't want to come up to the sticking point, they are at last obliged to end the difference by shooting at one another, or one murdering the other. Now what does it all amount to in the end? All their writing did no good, and they might as well have fight it out 'right off the reel' at first—not with pistols and the like of that, but the arms that God gave them—their fists, (clenching his fist.) In times of war men fight with firearms and the like, because they can't come in contact man to man. (Cheers.)

"It was your worthy fathers and the like on 'em, who atchieved the freedom of your beloved country. Tom Jefferson and Jack Adams wrote down what they fought about, that you might have it in black and white—that you might never forget what your forefathers fought for, and that you might stimulate their actions. This is all that writing is fit or good for. Many of you don't know A from a bull's foot, but which amongst you could'nt take up a gun and shoot the crows that would come to your cornfields to destroy your crops. The British came here like crows to destroy what was yours, and you shot them down like crows and drove away the rest.(Cheers.)

"My brave friends! your present conditions is a proof of your being the ascendants of those naked and half starved warriors. You have turned out this day to prove to the world that you can depreciate the yearly anniversary of this fourth of July. You are now enjoying the blessings which they got for

you by their lives, and at the peril of them who has outlived the revolution. You are now resting at ease, and listening to me, (for which I am complimented,) but they never rested at all—they was always on the go; they went through thick and thin—sunshine and rain—dust and mud—snow and ice—*fire and sword*—DEATH AND DESTRUCTION, (tremendous cheering,) and made less of it than you do now, for I can see that some of you is getting mighty restless. (A shriek from a female at this instant spread consternation in the assembly, which turned into a simultaneous burst of laughter as soon as it was discovered she had fallen from a crag, being unable to endure any longer the pain caused by its asperity.)

"I will not keep you any longer in restraint; but I cannot finish without saying a few words to the lovely gathering of our fair countrywomen, which has complemented me this day with their smiles.

"Your sex too, gentle hearers! had a helping hand in this glorious revolution. Your foremothers was industriously employed at home for your forefathers, while they was fighting for their country, their wives and their offstrings. With such lovely being as I see now gathered around me, this happy country need never fear of being in want of warriors. (Cheers.) Sweet lasses! may heaven send down upon you such partners as will make my prophecy come to pass."

The peal of applause which ensued and continued for some minutes, rung through the woods and welkin, and resounded from hill to hill, until lost in the distance, after which the orator proceeded to the reading of the Declaration of Independence. When he had read that part in these words—"To secure these rights governments are instituted among men, deriving their just powers from the *consent* of the *governed*. That whenever any form of government becomes destructive of these ends, it is the RIGHT of the PEOPLE to *alter* or *abolish* it, and to institute new governments,"¹ &c. in which his feelings were deeply enlisted, he concluded the clause by giving vent to them in the following fervid comments: "*Behold* Americans!" cried he, "*behold* the *whole* of *your* rights explained. Do you not *see* the figure which EVERY *one* of you cuts?! Out of you *the* power comes, and *nothing* can be done *without* you. Don't this prove what I said in my extempore

address, '*that their heads cannot work without you?*'" (Here a voice was heard to cry, "By jingo, Jack, clap on your hat; ding it, do as I do!")

¹ In the extract the words are in italics and small capitals on which much stress was given by the reader.

The reading ended, the assemblage broke up and dispersed, leaving the military to honor the day and orator in the manner already intimated, during which many national and sentimental toasts were drunk; after which they returned into the village in the military order they had left it for the purpose of parading.

Various evolutions were performed; among them occasionally a left wheeling for a right—a countermarch for a right or left face—keeping time with right or left foot indifferently. They carried arms either upon the right or left—trailing, supporting, sloping, advancing—just as it suited their own whim; in other words, *will*. In vain did their commander command, threaten or entreat. A volunteer, bolder than the rest, went so far as to ask the captain, "If he had forgot what they had heard from the Declaration?" and hinting at his being commander so long as they willed it. They felt that they were the sovereign people and only citizen soldiers.

At the order "halt!" they came to a stand, and were drawn out in a line, facing the stream, for the purpose of firing their *feu de joie*—an apt simile, by the way, of the state of their minds after the closing scene of the hill. The orders for execution were simply, "prime and load—ready—fire!" which was executed with tolerable precision. Three rounds being fired, they were ordered to "right face!" in order to file off and resume their march; but few only obeying the order, some confusion took place in the ranks. "*Right face!*" again vociferated the captain, whose impatience for shaking off his brief authority was very apparent. Still the contumacious kept their position, declaring that they would not "*budge*" until they had received the word to fire a fourth round, for which they had already loaded. A dispute arose between the officers and men—the former asserting and endeavoring to enforce their authority—the latter denying and obstinately determined not to move until they had received the word to discharge their pieces, considering the reservation of their fire until the order be given a sufficient evidence of their subordination. The captain finally yielded, and crying out,

"make ready—fire!" the fourth round went off, and the men filed off without further hesitation; some at a common time—some at a quickstep—some skipping, and one hopping; the captain brandishing his cutlass over the *drummer's* pate for not "*treading in a straight line*"—the *fifer* blowing off fractions of marches and quicksteps, and the lieutenants endeavoring to keep order in the ranks. In this style they once more marched out of the village, to partake for the last time of the refreshment at the hill, and crown the celebration.

The sun was just reclining upon the western mount when they made their third and final entry into the village, in a march, technically known as the "rout march," thereby showing that the effect of the "old corn" was predominating.

The omission of testifying their respect in a military manner to the chief magistrate of the village during their first parade, had occurred to them at the hill, and concluding that it had better be done late than never, they had returned to the village, contrary to their intention when they had left it, in the manner described, and drawing up in front of the dwelling of that excellent man, they commenced and kept up a tremendous firing, shouting and huzzaing until nightfall, when all who were able dismissed themselves, (their officers having abandoned them,) leaving many on the ground as it were *dead—pro tempore*.

Thus terminated the village celebration of the anniversary of the day out of which a great and virtuous nation was ushered into being. However much our mirth may have been excited by the description given, yet none will deny that the feeling which actuated them in their celebration, was the identical feeling that dictates the observance of the same day throughout the cities of the union—with this difference only, that *this* savours of the pomp and circumstances of wealth, pride and refinement, while *that* is perfectly in character with nature,—true, simple and unsophisticated. I will conclude with a quotation from Boileau.

"La simplicité plaît sans étude et sans art.
Tout charme en un enfant dont la langue sans faïd,
A peine du filet encor débarrassée,
Sait d'un air innocent bégayer sa pensée.

Le faux est toujours fade, ennuyeux, languissant:
Mais la nature est vraie, et d'abord on la sent;
C'est elle seule en tout qu'on admire et qu'on aime."

T. P.

Alexandria, November 1834.

EXTRACT FROM LACON.

Mental pleasures never cloy; unlike those of the body, they are increased by repetition, approved of by reflection, and strengthened by enjoyment.

University of Virginia, Nov. 13th, 1834.

To the Editor of the Southern Literary Messenger.

SIR—If you think the following verses worthy of an insertion in the Messenger, you will gratify me by giving them a place. They were written two or three years ago, by a young lady of this state; and it certainly never was her intention to publish them, but I am induced to offer them to the public eye, because I think they are creditable, and that they will not appear disadvantageously in the Messenger.

R.

TO D——.

I'll think of thee—I'll think of thee
In every moment of grief or of glee;
The memory will come of these fleeting hours,
Like the scent that is wafted from distant flow'rs;
Like the faint, sweet echo that lingers on
When the tones that waken'd it are gone.

There's many a thought I may not tell,
Hidden beneath the heart's deep swell;
There's many a sweet and tender sigh
Breath'd out when only God is nigh;
And each familiar thing I see,
Is blended with the thought of thee.

Thy form will be miss'd from the social hearth,
Thy voice from the mingling tones of mirth;
When the sound of music is poured along—
When my soul hangs entranced on the poet's song—
When history points from her glowing page,
To the deathless deeds of a former age—
When my eye fills up and my heart beats high,
I shall look in vain for thine answering eye.

When the winds are lulled in the quiet sky,
And the sparkling waters go surging by,
And the cheering sun invites to walk,
I shall miss thine arm and thy pleasant talk:
My rustling step—the leafless tree—
The very rock will speak of thee.

I'll think of thee when the sunset dyes
Are glowing bright in the western skies;
When the dusky shades of evening's light
Are melting away into deeper night—
When the silvery moon looks bright above,
Raising the tides of human love—

When the holy stars look bright and far,
I'll think of thee—my *guiding star*!

When all save the beating heart is still,
And the chainless fancy soars at will,
When it lifts the dark veil from future years,
And flutters and trembles with hopes and fears,—
When it turns to retrace the burning past,
And the blinding tears come thick and fast—
And oh! when bending the humble knee
At the throne of God—I will *pray* for thee!

And wilt thou sometimes think of me,
When thy thoughts from this stormy world are free?
When thou turnest o'erwearied from toil and strife
The warring passions of busy life,
May a still, small whispering, speak to thee,
Like a touch on thy heartstring—Love, think of me.

E.

For the Southern Literary Messenger.

INVOCATION TO RELIGION.

Come blest Religion, meek-eyed maid,
In all thy heavenly charms arrayed,
Descend with healing in thy wing,
And touch my heart while yet I sing.

Heaven's own child of simple truth,
The stay of age, the guide of youth,
All spotless, pure and undefiled,

How blest are those on whom you've smiled.

Oh! come, as thou wert wont, and bless
The widow and the fatherless—
Temper the wind to the shorn lamb,
Pour on the wounded heart thy balm;

Strew softest flowers, where e're they stray,
And pluck, oh! pluck the thorns away.
Come like the good Samaritan,
Bind up the sick and wounded man;

Not like the Priest thy love display—
Just look devout, and turn away.
Oh! no—the bruised with kindness greet,
And set the mourner on his feet.

Teach me with warm affections pure,
That holy Fountain to adore,
From whence proceeds or life or thrift—
The source of every perfect gift:

Teach me thy fear—thy grace impart,
And twine thy virtues round my heart;
With pity's dew suffuse my eye,
And teach me heavenly charity—

That blessed love, which will not halt,
Or stumble at a brother's fault;
But with affection's tender care,
Will still pursue the wanderer.

Oh! teach my heart enough to feel,
For human woe and human weal.
Not that mad zeal, which works by force,
And poisons goodness, at its source;

But that mild, pure, persuasive love,
Which thou hast brought us from above.
Thro' thy fair fields, oh! fatal change,
Let no distempered *maniac* range,—

No frantic bigot spoil thy bowers,
And blight thy pure and spotless flowers.
Still, still, thou pure and heavenly dove,
Still speed thy work of perfect love.

Pursue the pilgrim on his road,
And oh! take off his heavy load.
Peace whisper to the troubled breast,
And give the weary mourner rest—

And when in that last awful hour,
Death shall exert his fatal power,
Oh! blunt the print of his keen dart,
And sooth the pangs that rend the heart.

When the last vital throb shall cease,
Oh! be then present, with thy peace:
Then let thy healing grace be given
To light and waft our souls to Heaven.

L.

Pittsylvania.

For the Southern Literary Messenger.

BEAUTY AND TIME.

[Written under a vignette, representing a branch of roses
with a scythe suspended over it, in a Lady's Album.]

Emblem of woman's beauty,
This blooming rose behold!
Time's scythe is hanging o'er it,
While yet its leaves unfold.

Alas! that Time is ever
To Beauty such a foe!
How can she shun his power?
How ward his withering blow?

Has she no art to foil him,
And turn his scythe aside?
Must she, who conquers others,
To him yield up her pride?

Yes, yes, there is a conquest
That Beauty gains o'er Time:
Forget it not, ye fair ones,
But prize the homely rhyme.

For every charm he pilfers
From Beauty's form or face,
Upon the mind's fair tablet,
Some new attraction trace.

Thus, Time's assaults are fruitless,
For, when her bloom is o'er,
Woman, despite his malice,
Is lovelier than before.

S.

For the Southern Literary Messenger.

ANTICIPATION.

When life's last parting ray is shed,
And darkness shrouds this pallid form;
When I have laid this aching head,
Secure from ev'ry earthly storm—

Oh! then how sweet it is to think
That some fond heart yet warm and true,
Will cherish still the severed link
Which death's rude hand has snapt in two.

Who oft, at evening's pensive hour,
From all the busy crowd will steal,
To dress the vine and nurse the flower
That deck my grave, with pious zeal.

And ling'ring there, will lightly tread,
As fearful to disturb my sleep,
And oft relieve the drooping head
Upon her slender hand, and weep.

And oh! if in that world which rolls
Sublime beyond this earthly sphere,
That love still warms departed souls,
Which once they fondly cherished here.

Oh! yes, if in such hour is given,
And parted souls such scenes may see,
At that pure hour I'd leave e'en heav'n,
And kiss the heart that wept for me.

L.

Pittsylvania.

For the Southern Literary Messenger.

HINTS TO STUDENTS OF GEOLOGY.

BY PETER A. BROWNE, ESQ.

No. I.

The word "*science*," in its most comprehensive sense, means "knowledge." In its general acceptation, it is "knowledge reduced to a system;" that is to say, arranged in regular order, so that it can be conveniently taught, easily remembered, and readily applied to useful purposes. An *art* is the application of knowledge to some practicable end,—to answer some useful or ornamental purpose. The sciences, are sometimes divided into the *abstract* and the *natural*; by the former we are taught the knowledge of reasons and their conclusions; by the latter we are enabled to find out causes and effects, and to study the laws by which the material world is governed. To the abstract sciences belong, first, language, whether oral or written, including grammar, logic, &c.; secondly, notation, including arithmetic, algebra, geometry, &c. Philosophy inquires into the laws that regulate the phenomena of nature, whether in the material or immaterial world; it is generally divided into three classes, two of which are material and one immaterial. The material are, first, those which relate to number and quantity; secondly, those which relate to matter. The immaterial are those which relate to mind. The second class of the material is called "natural philosophy" or "physics," and sometimes the "physical sciences." Natural philosophy, in its most comprehensive sense, has for its province the laws of matter, whether organic or inorganic. These laws may regard

either the motions or properties of matter, and hence arises their division into two branches—first, those which regard the *motions* of matter, which are called *mechanics*; and secondly, those which regard the *properties* of matter, which are subdivided, and have various names, according to the different objects of investigation. When the inquiry is confined to organized bodies and life, it is called physiology; which is again subdivided into zoology and botany. When it treats of inorganic matter, it is subdivided into chemistry, anatomy, medicine, mineralogy and geology. The principles of natural philosophy rest upon *observation* and *experiment*. Observation is the noticing of natural phenomena at they occur, without any attempt to influence the frequency of their occurrence. Experiment consists in putting in action causes and agents, over which we have control, for the purpose of noticing their effects. From a comparison of a number of facts, obtained from either observation or experiment, the existence of general laws are proved. The laws of man are complicated; to understand their objects, we are often obliged to take the most circuitous routes; but the laws by which nature governs all her works are beautifully simple, and they are found to lead directly to the end she has in view. To study them, therefore, according to the rules that have been laid down, viz: from observation and experiment, is pleasant and easy. The principal difficulties that have arisen, are owing to the improper manner in which the subjects connected with natural history have often been treated. Natural philosophy regards what was the condition of natural bodies: but many persons exert the whole force of their genius to discover what they *might have been*. And as there is no department of natural philosophy into which this erroneous method of procedure has made greater inroads than geology, nor any science that has suffered so severely in such conflicts, it may not be amiss to appropriate half an hour to the inquiry whence this error has arisen; and, if possible, point out the best method of avoiding its dangerous tendency. The word geology is derived from two Greek words, signifying "the earth" and "reason;" and it is that science which teaches the structure of the crust of the earth, and ascertains its mineralogical materials, and the order in which they are disposed, and their relations to each other. Geognosy is used by the French as synonymous to geology, but in English is generally understood to be synonymous to cosmogony; which is an inquiry, or rather a speculation, as to the original formation or creation of the world; hence geognosy has sometimes been called "speculative geology." In pursuing the examinations

to which geology leads, we reason from facts, as is done in other branches of natural science. The strata of the crust of the earth, owing to the disturbed manner in which we now find them, are in a great measure open to our examination; their composition, formation, deposition, eruption, depression, succession, and mineralogical contents, are all objects of sensation. The objects of geognosy (in the English sense of the word) are, on the other hand, for the most part, ideal, visionary and delusive. We are sensible that this earth exists and that it is material, and therefore we know that it must have been created. We know that it was not created by man, who hath not the power to add to it one single atom, nor diminish it by a single grain—so that it is manifest that it was created by a superior and omnipotent power; but by what process it was done is a mystery, and the more we seek to discover it the more we expose our ignorance. The geologist, like the mathematician, deals with the understanding; his advance is wary, admitting no conclusion until his premises are fully established. The professor of geognosy, on the contrary, addresses himself entirely to the imagination, and he delights in hypothesis and suppositions. The progress of the geologist is necessarily slow; he is like the patient miner, making his laborious but determined way into the solid rock: but the professor of geognosy will make a world or even a universe in an hour, for he deals in fancy and works in visionary speculations. The geologist delves into the bowels of the earth in search of useful metals, earths and combustible matters, which nature has kindly placed within his reach, and he strives to turn them to the best advantage in administering to the wants and increasing the comforts and convenience of his fellow creatures; but all the labors of the professor of geognosy are directed to discover a secret which appears to be hidden from human ken; a secret, the discovery of which would not, as far as we can judge, add any thing to the sum of human happiness. It excites our astonishment therefore, that so many persons of fine genius and brilliant talents should have wasted so much time in forming what are called theories of the earth, who might have been so much better employed in investigating the secondary causes by which the materials composing the crust of this earth obtained their present forms, and in examining the changes which those materials are daily undergoing. But so it is; the curiosity so natural to our species opens the way—the vanity of being supposed to have penetrated deeper than others into the abstruse mysteries of nature urges them forward—the silly pride of having in their own

estimations discovered the hidden ways of Providence quickens their zeal; and, such is the love of the marvellous, that if they exhibit only a tolerable degree of ingenuity, and embellish their performances with a few flowers of rhetoric, they are sure to command more attention and praise from the general mass of readers, than can be extorted by the most laborious examination of nature's works. While Martin Lister was ridiculed by Doctor King for the laudable minuteness with which he described the different natural objects he met with in his journey through France, Mr. Thomas Burnet, for a fanciful theory of the earth, was extravagantly lauded by a writer in the Spectator. Saussure crossed the Alps in fourteen places; Humboldt traversed nearly one half of the habitable globe; Cuvier spent seven years in the study of comparative anatomy, as subservient to the study of fossil remains; and Hauy studied geometry for the sole purpose of obtaining a knowledge of crystallography; but neither of these distinguished philosophers have been able to win the laurels that have been heaped upon the brow of Count Buffon for a visionary hypothesis which he calls a theory of the earth.

The substitution of these hypotheses for knowledge, unfortunately, has not been confined to the early and dark ages of geology. One entirely new theory of the earth was published as lately as the year 1825—another in 1827—and a third in 1829. It is proper therefore that the student should be warned against their fascinating and baneful influence.

For the Southern Literary Messenger.

ESSAY ON LUXURY.

Of the various researches, which engage this enlightened age, there is not one perhaps more important, whether we consider the public weal, or the

general interest of humanity, than that which concerns *luxury*. It is regarded by some as the source of the greatest calamities; by others as a source of opulence and industry. It has been said and repeated thousands of times, that we often dispute, because we do not understand each other, and that we give a different meaning to words we use, because we do not define them with sufficient precision. This is frequently true; but cases will often arise where, though the words of a proposition are taken in precisely the same acceptation, and those who employ them reason alike, yet the result of their reasonings are diametrically opposite. Luxury has at all times been considered as a cause of the corruption of morals, and the destruction of empires; but in the last ages, it has not wanted its advocates—nay, they have even pretended, that it was necessary to render empires flourishing, to favor commerce, industry, circulation, manufactures; and that *it* alone would redress the inequality of various conditions, by making the superfluities of some contribute to relieve the necessities and wants of others. The contrary has always been held as an irrefragible axiom. But still its advocates maintain, that it nourishes all the refinements of good taste, and developes the talents of the artist, whose art and genius are encouraged by the profusion and prodigality which it produces. This is indeed the favorable side of the picture; but how often is it, that what we see in an object, is not all we might see there, and that one truth by intercepting the view of others, conducts us often to error. It is possible by considering the subject more attentively, though we may find all we have said, true to a certain degree, yet on the other hand, the evil, which excessive luxury produces, is infinitely more dangerous;—and speculation will confirm what the experience of all ages has demonstrated. It is an historical and invariable truth, that excessive luxury has always been the harbinger of the destruction of a state. I may add, it has always been the fatal cause. Labor and economy are the principles of true prosperity—the eclat of pomp and magnificence without them, is only a false splendor, which conceals inward misery. But it is here, we must stop for a moment, before we further advance, in order to have a precise idea, of what we understand by the word *luxury*. If by it, we mean every thing which exceeds the physical necessities of life, I should apologize to the learned. But I do not mean to fix the boundary by the laws of Lycurgus. I agree farther, that what may be luxury at one time, is not so at another; but it is in this gradation, which may be extended to infinity, that we ought wisely to seize that degree of the scale, where it degenerates into

vice—I mean political vice, which far from being useful becomes prejudicial to a state. This distinction is still local, individual, and subject to different times and eras. What is a ruinous luxury in one country, would perhaps be useful or indifferent in another. A destructive and indecent luxury in one order of society, is honorable, indispensable and useful in another; and in short, in a country where a certain degree of luxury is necessary, there may be times, when sumptuary laws would be useful. If we proceed to analyze its principles, we shall see that though abstractedly, luxury may appear to produce certain advantages, yet in general it is the cause of the greatest disorders. If the expense or luxury of each individual were the thermometer of his fortune, the degree of luxury would certainly be the symptom of power, riches, industry and opulence of a state, but it would not on this account, be the cause; for what must be the consequence, when vanity and self-love excited by opinion, by custom and by pride, make us aspire at an external show far beyond our condition in life, and run into extravagancies, which we cannot support? This is to sap a commodious edifice in order to build a larger, which we can never erect. The state loses the house and does not gain the palace. In a country where luxury reigns, this example may be seen every day and in every order of the state. The "Luxury" then of which I speak, is that which prompts many to run into expenses, beyond what their circumstances will admit, by the respect attached to it, and by that contempt, with which those are treated, who do not maintain a similar profusion; by the universality of the custom; and by the opinions of others, which render the superfluous, the useless, the frivolous, almost necessary and indispensable. It is on this account, that the felicity, or apparent power, which luxury appears sometimes to communicate to a nation, is comparable to those violent fevers, which lend for a moment, incredible nerve to the wretch, whom they devour, and which seem to increase the natural strength of man, only to deprive him at length of that very strength and life itself. It is likewise physically true, that excessive luxury impairs the body and destroys courage. Effeminacy enervates the one, and artificial wants blunt the other; wants multiplied become habitual, nor by diminishing the pleasures of possession, do they always diminish the despair of privation. Let us not say that the misfortunes of individuals, do not concern the public; when many suffer, the public must feel it. If it were true, that the possessions of those who are ruined, are found dispersed among other individuals, the ruin of the unfortunate would

still be prejudicial to the state; because it is the number of individuals in easy circumstances, which create its wealth. But it is absolutely false, that those possessions are found in the mass of the public; if the possession of each individual consisted in silver, this might be so; but property for the most part is fictitious or artificial: industry, credit, opinion, form a great part of the riches of each individual,—which vanish, and are annihilated with the ruin of his former possessions, and are forever lost with respect to the state. Besides, lands are best cultivated, when divided among many hands. An hundred husbandmen in easy circumstances, are infinitely more useful to a state, than an hundred poor ones, or ten powerfully rich. It is the quantity of consumers, who regularly make an honest, well supported and permanent expense,—which augments industry, circulation, commerce, manufactures, and all the useful arts. But when excessive luxury causes, that the arts are lucrative in the inverse ratio of their utility, the most necessary become the most neglected, and the state is depopulated by the multiplication of subjects, who are a charge to it. It is then we fall precisely into the case of him, who cuts down the tree to get the fruit: what weakens each member of a body, must necessarily weaken the body itself; but excessive luxury weakens, without contradiction, each member of a body politic, physically and morally,—consequently it must undermine and destroy the constitution of that body. Another inconvenience attending luxury is, that according to the order of nature, the propagation of the species ought continually to increase in a country, if some inherent vice, either physical or moral, do not prevent it. We have seen in those times, when luxury prevailed only among the superior class, swarms issue from the state, without depopulating it, in order to establish themselves in other places. But the luxury of parents, whose baleful example is often the sole inheritance of their offspring, forces them necessarily into a state of celibacy; whereas it is evident, that by a division of property among their children, the latter might, with industry and care, having a principal to begin with, increase their hereditary wealth and enrich the state. Every thing conspires, where luxury reigns, to corrupt the morals. It eclipses, stifles, or rather destroys the virtues. It knows no object but the gratification of certain imaginary pleasures, more illusory than the honor, which it attracts. Mankind are born perhaps with no particular bias to fraud or injustice. It is want, either real or artificial, which creates the robber or the murderer; but for the most part, those crimes, which are most dangerous to society, take

their origin from artificial wants, which ensue from "Luxury." The brother violates the strongest ties of nature—the patriot plunges the dagger into the bosom of his country. It was "Luxury," which called from Jugurtha his celebrated observation on Rome. It would be endless to attempt to enumerate the examples of ruin, and of those calamities, which have ever followed in its train. But how is this most dangerous of evils to be guarded against? Sumptuary laws would not always be efficacious. They do not always answer the end proposed. They are eluded by refinements upon "Luxury" until it becomes "Luxury" in excess. It must be the province of the legislature to prevent this abuse. The most effectual laws would be those, which would remove that ridiculous respect, which is paid to frivolous exteriors, and would attach real respect to merit alone; which would destroy that unjust contempt into which modest simplicity has fallen by a depravity of taste and reason. He, who by a wise legislation would discover the secret of banishing those prejudices, would render an essential service to humanity. Virtue and emulation would flourish—vice and folly no longer appear. After all, I would not have it forgot, that I have agreed, that what would be "Luxury" at one time, and for one order of people, is not so for another. The "Luxury" which destroys a republic, would not perhaps destroy a large kingdom; but there is a degree of "Luxury" prejudicial to the most opulent monarchy. The universal use of wine would be ruinous to this country, but not so to France. The detail and analysis of those distinctions, are perhaps the most important object to humanity. I am persuaded, that the public good, the repose of families, and the happiness of the present and future generations depend upon it.

B. B. B. H.

For the Southern Literary Messenger.

TO —

"Agite Mais Constant."

"Though the speed with which we are hurried through the immensity of space, is not perceptible to our vision; yet the *truth* that '*Time* is ever on the wing,' should teach us to be wise while it is called '*to-day*.'"

Pleasures of *time* and *sense* can give
No hope or real joy;
They leave an aching void behind,
Are mixed with base alloy.

Say, wouldst thou twine a lasting wreath
To deck thy forehead fair,
Go—wipe away the *widow's* tear,
And sooth the *orphan's* care.

Wouldst thou be meet to join the choir
Who sing in endless bliss,
Go—drink at that Eternal Fount,
Whose stream shall never cease.

Wouldst thou improve the talents here,
Transmitted from above;
Go—turn the sinner from his way,
And prove a Saviour's love.

POWHATAN.

EXTRACT.

Men will wrangle for religion; write for it; fight for it; die for it; any thing
but—*live* for it.

For the Southern Literary Messenger.

ELOQUENCE.

In the long list of powers and endowments, we can select no faculty or attainment more useful and ennobling than that of eloquence. Brightening the gloom of intellect, and awakening the energies of feeling, it holds reason mute at its will and enkindles passion with its touch. The soldier on the tented field is incited to the charge, and animated in the conflict, and his last moments sweetened, by the magic of its influence. The cries of injured innocence it converts into notes of gladness, and the tears of sadness and sorrow into smiles of pleasure and rejoicing. The miser, gazing on the beauty of his coin, and living on the manna of its presence, and kneeling to its power as his idol, is taught to weep over his error, bow to his Creator, and despise the degrading destroyer of his peace. The infidel, unswayed by the voice of divinity, and ignorant of its attributes, and doubtful of its existence, enraptured with the glowing efforts of ethereal eloquence, is convicted of his depravity, and yields to the resistless current, which swelling in its onward course, dispels the cloud that obscures the mind, and leaves it pure and elevated. In the courts of justice, the criminal, his heart imbibed with torturing despair, and his soul torn with agonizing anguish, beholds his arms unshackled, his character unsullied by even suspicious glance, and futurity studded with honors, station and dignity. In the halls of legislation, corruption is unmasked, intrigue is exposed, and tyranny overthrown. Where is its matchless excellence inapplicable? The rich and the poor experience its effects. The guilty are living monuments of its exertion, and the innocent hail it as the vindicator of its violated rights and the preserver of its sacred reputation. In the cause of mercy it is ever omnipotent; bold in the consciousness of its superiority, and fearless and unyielding in the purity of its motives, it destroys all opposition and defies

all power. The godlike Sheridan, unequalled and unrivalled, swayed all by its electric fire, charmed and enthralled the weak and the timid, and chained and overpowered the profound and the prejudiced. Burke, the great master of the human heart, deeply versed in its feelings and emotions, "struck by a word, and it quivered beneath the blow; flashed the light'ning glance of burning, thrilling, animated eloquence"—and its hopes and fears were moulded to his wish. Curran, whose speeches glitter with coruscations of wit, and sentiment, and genius, and whose soul burned with kindred feelings for its author, and teemed with celestial emanations, astonished, elevated and enraptured. Pitt, and Fox, and Henry, and Lee, and other great and gifted spirits of that golden age, have all unfolded the grandeur of its sublimity, the richness of its magnificence, and the splendor of its sparkling beauties.

At a later period, when the rising generation caught the living spark as it fell from the lips of their giant fathers; a Phillips has pleased and fascinated by the grace and vigor of his action, the strength and fervor of his imagination, and the dignity and suavity of his manner; by the warmth of his feelings and the quickness of his perceptions. A Canning, by the brilliance of his mind, beaming with gems of classic literature; the perspicuity of his diction, rich in the beauties of our language; and the commanding force of his voice, now surpassing in its deep sternness the echoing thunder, and now, soft, and sweet, and mellow as the dying cadence of a flute, has never failed to arouse, and enliven, and convince. And a Brougham, with a profound and comprehensive intellect, deep and capacious as ocean's channels, with great powers of close and sound reasoning; with an extensive knowledge of the past and the present, with untiring energies and unremitted industry, wields a concentrated mass of overwhelming argument, and hurls a thunderbolt of eloquence, subduing and crushing in its impetuous course. In our own country, so fertile in the highest orders of mind, and so successful in nurturing, and expanding, and invigorating its faculties, we may point to Calhoun, and Webster, and Clay, and McDuffie, as the master spirits of the age. Their varied endowments; their chaste language; their pure and sublime style; their bitter and withering irony; their keen and searching sarcasm; their vast range of thought and unequalled condensation of argument, command the admiration and excite the wonder of men.

That eloquence has been productive of immense good, no one can deny or doubt. From the earliest ages it has been assiduously cultivated, and ranked among the highest attainments of the human mind. So great and elevated was it deemed by the Athenians—so grand the results of its application, and so distinguished in their councils were those who possessed it—that the young Demosthenes, inspired with quenchless ardor for its acquisition, bent all the energies of his gifted intellect to the task—opposed and triumphed over every obstacle that nature presented to his advancement—heeded not the scoffs and hisses of the multitude on the decided failure of his first endeavors—and at length as the recompense for his toils, reached the pinnacle of renown—received the gratulations of an admiring age, and beheld his brow encircled with the wreath of victory, immortal as his glory, and unfading as the memory of his deeds. While language continues to exist, and breathe in beauty and vigor the conceptions of mind, his phillippics, rich in forcible and magnificent expression, in sublime thought, and bold and resistless eloquence, will survive. And the fervent, and holy, and incorruptible patriotism that speaks in every line, must elicit unbounded veneration. His matchless powers, never exerted but for the public good, inspired his enemies with respect and fear, and forced the mighty Philip to acknowledge, "that he had to contend against a great man indeed." Cicero too, entitled by a contemporary philosopher and orator,¹ one by no means addicted to flattering or giving even unnecessary praise, "The Father of his Country," has proved by a long and active career of usefulness and honor, the beneficial effects of this inestimable power. Who can conceive any thing more thrilling and overwhelming than his orations against Cataline? We can see the patriot orator, sternly bold, from the magnitude of his cause—for the lives of millions depended upon his success—hatred and abhorrence depicted in his face; indignation flashing from his eye—for love of country was his impelling motive; energy and passion in his every action, and the living lava bursting from his lips;—and the victim, shrinking awe-stricken away—his baseness exposed—his treacherous schemes unfolded to public gaze; he flies a blasted and withering thing—a reckless and degraded outlaw. This is but one of his numerous triumphs, which, stamped with the seal of immortality, have secured to him a fame as imperishable as time itself. It was by eloquence that the apostle of christianity so aroused the apprehensions and pierced the hardened conscience of the heathen Agrippa, that in the fulness of contrition he exclaimed, "thou almost persuadest me to

be a christian." With it, the fisherman² of Naples declared to the populace the sanctity of their rights—explained the violation of their chartered privileges, and pointed out the means of securing justice—denounced their rulers as tyrants, and swore upon the altar of his country to revenge them. The multitude, through instinctive esteem for intellectual capacities, however humble the station of their possessor, and urged by the enthusiasm he had excited, obeyed his every word. Passive in his hands, he guided them to the maintenance of their freedom and the expulsion of domestic foes. To its influence we may ascribe the commencement of our Revolution, and the tameless spirit which animated our fathers in the struggle. Even now its effects are visible every where around us. We see that the seducer is lashed into remorse and contrition, and the traitor has received the reward for his crime. In the chambers of congress its fire burns with increasing lustre, and sheds unending sparks of brilliancy and strength. When properly directed, it is the inseparable companion of liberty; and so long as it continues thus—so long as its efforts are characterized by purity and patriotism, the prosperity, union, and above all, the freedom of these states, will remain secure.

¹ Cato of Utica.

² Massaniello.

H. M.

LETTERS FROM NEW ENGLAND.—NO. 2.

Our readers will participate with us in the pleasure of reading the second letter from *New England*, by an accomplished Virginian, whose easy and forcible style is so well employed in depicting the manners and character of a portion of our countrymen, separated from us not more by distance, than by those unhappy prejudices which too often spring up between members of the same family. The acute observation of men and things which these letters

evinced, will entitle them to be seriously read and considered,—and they will not have been written in vain, if they serve to remove the misconceptions of a single mind. We repeat what we stated in our last number, that although they were originally published in the Fredericksburg Arena, they have since undergone the revision and correction of the author expressly for publication in the Messenger.

Northampton, Mass. July 25, 1834.

Of *Yankee hospitality* (curl not your lip sardonically—you, or any other Buckskin,)—of *Yankee hospitality* there is a great deal, *in their way*—i.e. according to the condition and circumstances of society. Not a tittle more can be said of Virginia hospitality. Set one of our large farmers down upon a hundred, instead of a thousand, acres; let him, and his sons, cultivate it themselves; feed the cattle; rub down and feed the horses; milk the cows; cut wood and make fires; let his wife and daughters alone tend the garden; wash, iron, cook, make clothes, make the beds, and clean up the house; let him have but ten acres of wood land, in a climate where snow lies three, and frosts come for seven, months a year; surround him with a dense population—80, instead of 19, to the square mile; bring strangers, constantly, in flocks to his neighborhood; place a cheap and comfortable inn but a mile or two off; give him a ready and near market for his garden stuffs, as well as for his grain and tobacco—and ask yourself, if he could, or would, practise our "good old Virginia hospitality?" To us, who enjoy the credit and the pleasure of entertaining a guest, while the drudgery devolves upon our slaves; the larger scale (wastefully large) of our daily *rations*, too, making the presence of one or more additional mouths absolutely unfelt;—hospitality is a cheap, easy, and delightful virtue. But put us in place of the yankees, in the foregoing respects, and any man of sense and candor must perceive that we could not excel them. Personal observation and personal experience, make me "a swift witness" to their having, in ample measure, the kindliness of soul, which soothes and sweetens human life: a kindliness ready to expand, when occasion bids, as well towards the stranger, as towards the object of nearer ties. No where have I seen *equal* evidences of public spirit; of munificent charity; of a generous yielding up of individual advantage to the common good. No where, more, or lovelier, examples of domestic affection and happiness—evinced by tokens, small it is true, but

not to be counterfeited or mistaken. And no where have I had entertainers task themselves more to please and profit me, as a guest. Yet, as *you* know, few can have witnessed more of Virginia hospitality than I have. It would be unpardonable egotism, and more *personal* than I choose to be, even in bestowing just praise; besides "spinning my yarn" too long—to do more than glance at the many kindnesses, which warrant the audacious heresy, of comparing our northern brethren with ourselves, in our most prominent virtue. Gentlemen, some of them of advanced years, and engaged in such pursuits, as make their time valuable both to themselves and the public, have devoted hours to shewing me all that could amuse or interest a stranger, in their vicinities—accompanying me on foot, and driving me in their own vehicles, for miles, to visit scenes of present wonder, or of historic fame: patiently answering my innumerable questions; and explaining, with considerate minuteness, whatever occurred as needing explanation, in the vast and varied round of moral and physical inquiry. In surveying literary, charitable, and political institutions—in trying to ascertain, by careful, and doubtless, troublesome cross-questionings, the structure and practical effects of judicial, and school, and pauper systems—in examining the machinery (human and inanimate) of manufactories—in probing their tendencies upon minds and morals—in 'stumbling o'er recollections,' in Boston, on Bunker's hill, and around Lexington—I found guides, enlighteners, and hosts, such as I can never hope to see surpassed, if equalled, for friendliness and intelligence. A friend of ours from Virginia, who was in the city of Boston with his family when I was, carried a letter of introduction to one of the citizens. "This gentleman, for three days," said our friend, "gave himself up entirely to us; brought his carriage to the hotel, and carried us in it over the city, and all its beautiful environs; in short, he seemed to think that he could not do enough to amuse and gratify us." To enjoy such treatment as this, one must, of course, in general, come introduced, by letter or otherwise. Then—nay, according to my experience, in some instances without any introduction,—the tide of kindness flows as ungrudgingly as that of Virginia hospitality, and far more beneficially to the object: at an expense, too, not only of money, but of time—which here, more emphatically than any where else in America, *is money*. When travelling on foot, I had no letters to present—no introduction, except of myself. Still, unbought civilities, and more than civilities, usually met me. A farmer, at whose house I obtained comfortable quarters on the first night

of my walk, refused all compensation, giving me at the same time a hearty welcome, and an invitation to stay to breakfast. Next day, a man in a jersey wagon, overtook me, and invited me to ride with him. I did so, for an hour, while our roads coincided: and found him intelligent, as well as friendly. Whenever I wanted, along the road, refreshing drinks were given me;—cider, switchell, and water—the two first always unasked for. One *gudewife*, at whose door I called for a glass of water, made me sit down, treated me abundantly to cider; and, finding that my object was to see the country and learn the ways of its people, laid herself out to impart such items of information as seemed likely to interest me: wishing me 'great success' at parting. Many similar instances of kindness occurred. It is true, none of the country people invited me to partake of their meals, except my first host just mentioned—an omission, however, for which I was prepared, because it arose naturally from the condition of things here. One testimonial more you shall have, to New England benevolence, from a third person. A deserter from the British navy—moneyless, shoeless, with only yarn socks on; feet blistered—and actually suffering from a fever and ague—told me that he had walked all the way from Bath, in Maine, to the neighborhood of Hartford, where I overtook him, entirely upon charity; and *had never asked for food or shelter in vain*. A lady that day had given him a clean linen shirt. There was no whining in this poor fellow's tale of distress: his tone was manly, and his port erect: he seemed, like a true sailor, as frank in accepting relief, as he would be free in giving it.

The result of all my observation is, that the New Englanders have in their hearts as much of the *original material* of hospitality as we have: that, considering the sacrifices it costs them, and the circumstances which modify its application, they *actually use* as much of that material as we do; and that, although their mode of using it is less *amiable* than ours, it is more *rational*, more *salutary*—better for the guest, better for the host, better for society. And most gladly would I see my countrymen and countrywomen exchange the ruinous profusion; which, to earn, or preserve, a vainglorious name, pampers and stupifies themselves and impoverishes their country, for the discriminating and judicious hospitality of New England: retaining only those freer and more captivating traits of their own, which are warranted by our sparser settlements, our ampler fields, and our different social organization.

Yet, while such praise is due to the general civility and kindness of the New Englanders, it must be qualified by saying, that several times, I have experienced discourtesy, which chafed me a good deal: but always from persons who, in their own neighborhoods, would be considered as vulgar. The simplest and most harmless question, propounded in my *civilest* manner, has occasionally been answered with a gruffness, that would for half a minute upset my equanimity. For example—"Good morning sir" (to a hulking, rough, carter-looking fellow, one hot morning, when I had walked eight miles before breakfast)—"how far to Enfield?" "Little better 'an a mile,"—was the answer; in an abrupt, surly, unmodulated tone, uttered without even turning his head as he passed me. Two or three of "mine hosts," at inns, were churlishly grudging in their responses to my inquiries about the products, usages, and statistics, of their neighborhoods. For these, however, I at once saw a twofold excuse: they were very busy and my questions were very numerous—besides the irritating circumstance, that answers were not always at hand—and to be *posed*, is what flesh and blood cannot bear. And it makes me think no worse than before, either of human nature in general, or of Yankee character in particular, that such slights occurred, nearly in every instance, whilst I was a somewhat shabby looking way-farer on foot; scarcely ever, while travelling in stage, or steamboat. Such distinctions are made, all the world over: in Virginia, as well as elsewhere.

A Southron, not accustomed to wait much upon himself, here feels sensibly the scantiness of the personal service he meets with. Even I—though for years more than half a Yankee in that respect—missed, rather awkwardly, on first coming hither, the superfluous, and often cumbersome attentions of our southern waiters. Besides having frequently to brush my own clothes, I am put to some special trouble in the best hotels, to get my shoes cleaned. In many village inns, sumptuous and comfortable in most respects, this last is a luxury hardly to be hoped for. This scarcity of menial service arises partly from the nice economy, with which the number of hands about a house is graduated to the general, and smallest possible, quantity of necessary labor; and partly, from a growing aversion to such services among the "help" themselves, caused, or greatly heightened, by the increased demand and higher wages for them in the numerous manufactories throughout the country. Almost every where, I am told of

their asking higher pay, and growing more fastidious, and intractable, as household servants. "*Servants*" indeed, they will not allow themselves to be called. A "marry-come-up-ish" toss, if not an immediate quitting of the house, is the probable consequence of so terming them. The above, more creditable designation, is that which must be used—at least in their presence. By the by, though the gifted author of "Hope Leslie" says that the *singular* plural, "help," alone, is proper, I find popular usage ("*quem penes arbitrium*"—you know) sanctioning the regular plural form "helps," whenever reference is made to more than one.

The spirit, and the habits, which oblige one to do so much for himself within doors, produce corresponding effects without. Useful labor is no where disdained in New England, by any class of society. Proprietors, and their sons, though wealthy, frequently work on the farms, and in the gardens, stables, and barns. Two or three days ago, I saw an old gentleman (Squire ——) a justice of the peace, and for several years a useful member of the Legislature, toiling in his hay harvest. Two of the richest men in this village—possessing habitations among the most elegant in this assemblage of elegant dwellings—I have seen busy with hoe and rake, in their highly cultivated grounds. The wife of a tavern-keeper, in Rhode Island, worth \$40,000, prepared my breakfast, and waited upon me at it, with a briskness such as I never saw equalled. Similar instances are so frequent and familiar, as to be unnoticed except by strangers. Many of New England's eminent men of former days, were constant manual laborers; not only in boyhood, and in obscurity, but after achieving distinction. Putnam, it is well known, was ploughing when he heard of the bloody fray at Lexington; and left both plough and team in the field, to join and lead in the strife for liberty. Judge Swift, of Connecticut, who wrote a law book¹ of some merit, and, I believe, a History of Connecticut, was a regular laborer on his farm, whilst he was a successful practiser of the Law. An amusing story is told (which I cannot now stop to repeat) of his being severely drubbed by the famous Matthew Lyon, then his indented servant; while they worked together in the barn. Timothy Pickering, after serving with distinction through the revolution—being aid to General Washington, Representative and Senator in Congress, and Secretary of State—spent the evening of his unusually prolonged and honored life, in the culture of a small farm of 120 or 130 acres, with a suitably modest dwelling, near Salem, Mass.: literally, and through

necessity, (for he was always poor) earning his bread by his own daily toil. With Dr. Johnson, I deride the hacknied pedantry of a constant recurrence to ancient Greece and Rome—without, however, being quite ready to "knock any man down who talks to me about the second Punic War." But, in contemplating the stern virtues, that poverty and rural toil fostered in those earlier worthies of New England, and that still animate the "bold yeomanry, a nation's pride," who yet hold out against the advancing tide of wealth, indolence, and luxury—I cannot forbear an exulting comparison of these my countrymen, with the pure and hardy spirits that graced the best days of republican Rome:

Regulum, et Scauros, animæque magnæ
Prodigum Paulum superante Poeno,

* * * * *

Fabriciumque,
Hunc, et incomptis Curium capillis
Utilem bello, tulit, et Camillum,
Sæva paupertas, et avitus apto
Cum lare fundus.

¹ On Evidence, and Bills of Exchange and Promissory Notes.

In the household economy of these thrifty and industrious people, it were endless to specify all the things worthy of our imitation. Their use of cold bread conduces to good in a threefold way: a less quantity satisfies the appetite, and it is in itself more digestible than warm bread; thus doubly promoting health: while there is a sensible saving of flour. The more frugal scale upon which their ordinary meals are set forth, is another point in which for the sake of economy, health, and clearness of mind, we might do well to copy them. By burning seasoned wood, kept ready for the saw in a snug house built on purpose, and by the simple expedient of having the doors shut and all chinks carefully closed, they secure warm rooms with half the fuel that would otherwise be necessary. I cannot, however, forgive their bringing no buttermilk to table. The *natives* seem wholly ignorant, how pleasant and wholesome a food it is for man; and give it to their pigs.

The hay-harvest lasts from four to six weeks; it has been going on ever since the 1st of July. Of course, the hay cut at such different periods must vary greatly in ripeness: and here they confirm me in a long standing belief, which I have striven in vain to impress upon some Virginia hay farmers—that the hay, cut before the *seeds* are nearly ripe, is always best. The earlier part of the mowing, (where the crop is about equally forward) is most juicy, sweet and tender. The corn is now in tassel, having attained nearly its full height: the height of about five feet, on rich land! It is a sort differing from ours: small in grain and ear, as well as in stalk; and very yellow grained. It ripens in less time than ours; adapting itself to the shorter summers of this latitude. It is planted very thick: three or four stalks in a hill, and the hills but three feet apart.

With many vegetables and fruits, the season is five or six weeks later here than in Virginia. Thus, garden peas are still, every day, on the tables: I had cherries in Boston last week, of kinds which ripened with us early in June; and it is but a fortnight, since strawberries, both red and white, were given me in Connecticut—by the way, it was *at breakfast*.

On the margin of this village, is a curious agricultural exhibition. It is a large tract of flat land upon Connecticut river, of great fertility and value (one hundred and fifty or two hundred dollars an acre,) containing altogether several thousand acres. With one or two trifling exceptions, it has no houses or dividing fences upon it, though partitioned among perhaps two hundred proprietors. Hardly an opulent, or *middling* wealthy man in Northampton, but owns a lot of five, ten, twenty, or fifty acres, in this teeming expanse. The lots are all in crops, of one kind or other; and being mostly of regular shapes (oblongs, or other four sided figures,) the various aspects they present, accordingly as the crop happens to be deep green, light green, or yellow—mown, or unmown—afford a singular and rich treat, to an eye that can at once survey the whole. Most opportunely, Mount Holyoke (the great lion of western Massachusetts, to scenery-hunters,) furnishes the very stand, whence not only this lovely plain is seen, but the river, its valley, and the adjacent country, for twenty or thirty miles around. Nearly a thousand feet below you, and not quite a mile from the foot of the mountain, the low ground, fantastically chequered into lots so variously sized and colored—dwindling too, by the distance, into miniatures of

themselves—reminds you of a gay bed-quilt. A lady of our party (we ascended the mountain this afternoon, and staid till after sunset,) aptly compared it to a Yankee *comfort*; the elms and fruit trees dotted over the surface, and shrunk and softened in the distance, representing the tufts of wool which besprinkle that appropriately named article of furniture. The whole landscape, seen from Mount Holyoke, it would be presumptuous in me to try to describe. I have said, twenty or thirty miles around: but in one direction, we see, in clear weather, the East and West Rocks, near New Haven—about seventy miles off. Fourteen villages are within view. The whole scene is panoramic: it is as vivid and distinct as reality; but rich, soft and mellow, as a picture. We descended; and as we recrossed the river by twilight, the red gleams from the western sky, reflected in long lines from the dimpling water, forced upon more than one mind that fine passage in a late work of fiction, where the remark, that "no man can judge of the happiness of another," is illustrated by the reflection of moon-beams from a lake. But I am growing lack-a-daisical: and must conclude.

I set off in the stage for Albany, at two o'clock in the morning. Good night.

We copy the following production of Mrs. Sigourney from the "*American Annals of Education and Instruction*," a periodical published in Boston. It is difficult to decide whether the prose or poetry of this distinguished lady is entitled to preference. Her noble efforts in behalf of her own sex deserve their gratitude and our admiration.

ON THE POLICY OF ELEVATING THE STANDARD OF FEMALE EDUCATION.

Addressed to the American Lyceum, May, 1834.

The importance of education seems now to be universally admitted. It has become the favorite subject of some of the wisest and most gifted minds. It has incorporated itself with the spirit of our vigorous and advancing nation. It is happily defined by one of the most elegant of our living writers, as the "*mind of the present age, acting upon the mind of the next.*" It will be readily perceived how far this machine surpasses the boasted lever of Archimedes, since it undertakes not simply the movement of a mass of matter, the lifting of a dead planet from its place, that it might fall, perchance, into the sun and be annihilated; but the elevation of that part of man whose power is boundless, and whose progress is eternal, the raising of a race "made but a little lower than the angels," to a more entire assimilation with superior natures.

In the benefits of an improved system of education, the female sex are now permitted liberally to participate. The doors of the temple of knowledge, so long barred against them, have been thrown open. They are invited to advance beyond its threshold. The Moslem interdict that guarded its hidden recesses is removed. The darkness of a long reign of barbarism, and the illusions of an age of chivalry, alike vanish, and the circle of the sciences, like the shades of Eden, gladly welcome a new guest.

While gratitude to the liberality of this great and free nation is eminently due from the feebler sex, they have still a boon to request. They ask it as those already deeply indebted, yet conscious of ability to make a more ample gift profitable to the *giver* as well as to the *receiver*. It seems desirable that their education should combine more of thoroughness and solidity, that it should be expanded over a wider space of time, and that the depth of its foundation should bear better proportion to the height and elegance of its superstructure. Their training ought not to be for display and admiration, to sparkle amid the froth and foam of life, and to become enervated by that indolence and luxury, which are subversive of the health and even the existence of a republic. They should be qualified to act as teachers of knowledge and of goodness. However high their station, this office is no derogation from its dignity; and its duties should commence whenever they find themselves in contact with those who need instruction. The adoption of the motto, that *to teach is their province*, will inspire

diligence in the acquisition of a knowledge, and perseverance in the beautiful mechanism of pure example.

It is requisite that they who have, in reality, the *moulding of the whole mass of mind in its first formation*, should be profoundly acquainted with the structure and capacities of that mind; that they who nurture the young citizens of a prosperous republic, should be able to demonstrate to them, from the broad annals of history, the blessings which they inherit, and the wisdom of preserving them, the value of just laws, and the duty of obeying them. It is indispensable that they on whose bosom the infant heart is laid, like a germ in the quickening breast of spring, should be vigilant to watch its first unfoldings, and to direct its earliest tendrils where to twine. It is unspeakably important, that they who are commissioned to light the lamp of the soul, should know how to feed it with pure oil; that they to whose hand is entrusted the welfare of a being never to die, should be able to perform the work, and earn the wages of heaven.

Assuming the position that *females are by nature designated as teachers*, and that the mind in its most plastic state is their pupil, it becomes a serious inquiry, *what they will be likely to teach*. They will, of course, impart what they best understand, and what they most value. They will impress their own peculiar lineaments upon the next generation. If vanity and folly are their predominant features, posterity must bear the likeness. If utility and wisdom are the objects of their choice, society will reap the benefit. This influence is most palpably operative in a government like our own. Here the intelligence and virtue of every individual possesses a heightened relative value. The secret springs of its harmony may be touched by those whose birth-place was in obscurity. Its safety is interwoven with the welfare of all its subjects.

If the character of those to whom the charge of schools is committed, has been deemed not unworthy the attention of lawgivers, is not *her* education of consequence, who begins her labor before any other instructor, who pre-occupies the unwritten page of being, who produces impressions which nothing on earth can efface, and stamps on the cradle what will exist beyond the grave, and be legible in eternity?

The ancient republics overlooked the worth of that half of the human race, which bore the mark of physical infirmity. Greece, so exquisitely susceptible to the principle of beauty, so skilled in wielding all the elements of grace, failed to appreciate the latent excellence of woman. If, in the brief season of youth and bloom, she was fain to admire her as the acanthus-leaf of her own Corinthian capital, she did not discover, that like that very column, she might have added stability to the temple of freedom. She would not believe that her virtues might have aided in consolidating the fabric which philosophy embellished and luxury overthrew.

Rome, notwithstanding her primeval rudeness, and the ferocity of her wolf-nursed greatness, seems more correctly, than polished Greece, to have estimated the "weaker vessel." Here and there, upon the storm driven billows of her history, the form of woman is distinctly visible, and the mother of the Gracchi still stands forth in strong relief, amid that imagery, over which time has no power. Yet where the brute force of the warrior was counted godlike, the feebler sex were prized, only in their approximation to the energy of a sterner nature, as clay was held in combination with iron, in the feet of that mysterious image which troubled the visions of the Assyrian king.

To some of the republics of South America, the first dawn of liberty gave a light which Greece and Rome, so long her favored votaries, never beheld. Even in the birth of their political existence, they discovered that the sex whose *strength is in the heart*, might exert an agency in modifying national character. New Grenada set an example which the world had not before seen. Ere the convulsive struggles of revolution had subsided, she unbound the cloistered foot of woman, and urged her to ascend the heights of knowledge. She established a college for females, and gave its superintendence to a lady of talent and erudition. We look with solicitude toward the result of this experiment. We hope that our sisters of the "cloud-crowned Andes," may be enabled to secure and to diffuse the blessings of education, and that from their abodes of domestic privacy, a hallowed influence may go forth, which shall aid in reducing a chaos of conflicting elements to order, and symmetry, and permanent repose.

In our own country, man, invested by his Maker with the "right to reign," has nobly conceded to her, who was for ages a vassal, equality of intercourse, participation in knowledge, guardianship over his dearest possessions, and his fondest hopes. He is content to "bear the burden and heat of the day," that she may dwell in plenty, and at ease. Yet from the very felicity of her lot, dangers arise. She is tempted to rest in superficial attainments, to yield to that indolence which spreads like rust over the intellect, and to merge the sense of her own responsibilities in the slumber of a luxurious life. These tendencies should be neutralized by an education of utility, rather than of ornament. Sloth and luxury, the subverters of republics, should be banished from her vocabulary. It is expedient that she be surrounded in youth with every motive to persevering industry, and severe application; and that in maturity she be induced to consider herself an ally in the cares of life, especially in the holy labor of rearing the immortal mind. While her partner stands on the high places of the earth, toiling for his stormy portion of that power or glory from which it is her privilege to be sheltered, let her feel that to her, in the recesses of the domestic sphere, is entrusted the culture of that knowledge and virtue, which are the strength of a nation. Happily secluded from lofty legislation and bold enterprise, with which her native construction has no affinity, she is still accountable to the government by which she is protected, for the character of those who shall hereafter obtain its honors, and control its functions.

Her place is in the quiet shade, to watch the little fountain, ere it has breathed a murmur. But the fountain will break forth into a stream, and the swelling rivulet rush toward the sea; and she, who was first at the fountain head and lingered longest near the infant streamlet, might best guide it to right channels; or, if its waters flow complaining and turbid, could truest tell what had troubled their source.

Let the age which has so freely imparted to woman the treasures of knowledge, add yet to its bounty, by inciting her to gather them with an unremitting and tireless hand, and by expecting of her the highest excellence of which her nature is capable. Demand it as a debt. Summon her to abandon inglorious ease.—Arouse her to practise and to enforce those virtues, which sustain the simplicity, and promote the permanence of

a great republic. Make her answerable for the character of the next generation. Give her this solemn charge in the presence of "men and of angels,"—gird her for its fulfilment with the whole armor of education and piety, and see if she be not faithful to her offspring, to her country, and to her God!

L. H. S.

We beg our readers to amuse themselves with the following article from Mr. Fairfield's Magazine. We cannot however, whilst we value the importance of having an euphonous and pleasant sounding name, sympathise very sincerely with Mr. Rust in the horror he has conceived towards his own. We had rather be Lazarus in all his misery than Dives in "purple and fine linen."

From the North American Magazine.

MY NAME.

"Quid rides? mutato nomine, de te
Fabula narratur."—*Horace, Sat. 1. Lib. I. 70.*

"Nil admirari" has always been my maxim, yet there is one thing which excites my wonder. It is astonishing, that a man, who leaves his son no other legacy, cannot at least give him a good name. What could have been my father's motive, in inflicting upon me that curse of all curses—my name, I cannot determine. Trifling as so small a matter may appear, it has been my ruin. Bah! I shudder when I think of it! shade of my honored parent! would nothing but a scripture name satisfy thee? Why didst thou not then entitle me Ezra?—Zedekiah?—Nimri?—anything—it must out—but Lazarus!

Yes—LAZARUS RUST—that is my name; and, if any man can now blame me for being a misanthrope, let him come forward. As I said, my name has been my ruin. It has made existence a curse since my childhood; even at school, I was tormented almost to madness. I was the only boy who was not nicknamed. The most malicious were satisfied; they could not improve upon Lazarus.

Of all men, the most impertinent are your stage agents. They have a trick of asking your name, with an insulting coolness, which, to a man of delicate sensibilities, is extremely annoying. I shall never forget my first stagecoach journey. The fellow at the desk looked me full in the face, and calmly asked my name. I felt the blood boiling in my face, and my first impulse was to knock him down. But I was a prudent man, even when a boy; so I satisfied myself with turning contemptuously on my heel. The fellow was by my side in a moment. "Sir," said he, in the silver tones of a lackey, "will you allow me to inquire your name?" This was too much. "Allow me to tell you, sirrah," I cried, almost suffocated with rage, "that you are an impertinent scoundrel."

The bar room was in a roar. That laugh is sounding still in my ears, like the roar of a mighty cataract. What diabolical music some men make of laughing! When the agent explained to me the reason of his inquiry, I felt so consummately silly, that I forgot my usual precaution of giving only my initial, and, in a voice painfully distinct, I answered—Lazarus Rust!

They did not laugh. I could have borne a deafening shout: but that suppressed smile! let me not think of it. Of all mortal sufferings, the keenest is the consciousness of being the object of ridicule, mingled perhaps with pity. O! Heaven! what did I not suffer—what have I not suffered, from this one source?

All this comes of my father's—what shall I call it?—madness, in calling me Lazarus. By the by, they tell me that, when I was baptized, a murmur of laughter arose from the whole congregation; and even the minister, as he uttered the solemn form, could not entirely conceal the smile, which, in spite of his utmost exertions played upon his lips.

A history of my ludicrous misfortunes would fill a volume. Perhaps the most ludicrous of all was at my marriage. "A rose, by any other name, would smell as sweet;" and a Lazarus may love as ardently as a Dives. I confess I did love Phoebe McLarry—(how sweetly the name flows from your lips!) she was not beautiful, but she loved me notwithstanding my name, "and I loved her that she did pity me." So we were married. But, when the priest repeated, "Son, Lazarus, take Phoebe," &c. I could not refrain from laughing myself.

They say that the constitution of our habits is such, that, by degrees, we can become reconciled to anything, but I am not yet satisfied with my name. I still persist in writing it L. Rust. I have seen a good deal of human nature; and, I must think, notwithstanding Shakspeare's opinion, that there is something in a name. Indeed, a man's name tinges his whole character. If it is a good one, he may sign even a mortgage deed with a light heart; and, if he writes a neat hand, he will rise from the desk a happy man. His flowing autograph, and more flowing name, make even poverty tolerable. But your Nimris, and Obadiahs! that which, to some men, is the pleasantest thing in existence—the seeing their names in print, is to them, utter and hopeless agony. And then their officious friends are eternally superscribing their letters with the name written out in full. There is one member of Congress, who, throughout the whole session, most perseveringly franks his dull speeches to Lazarus Rust, esq. One would think L. Rust was sufficiently definite, and it certainly has the advantage in point of euphony. I wish he was in Heaven. I know of no damper to ambition like a bad name. I would not immortalize myself if I could. Lazarus Rust, indeed,—that would look well inscribed on a monument! I say with Emmett, "Let no man write my epitaph." It would perhaps run thus:

"Here lies the body of Lazarus Rust

With what a horrible name the poor fellow was *cust*."

No—not for me is the laurel wreath of immortality. When I die, let me be forgotten. If there is any truth in the doctrine of transmigration, I may yet take my chance. "I bide my time."

After all, I sometimes endeavor to persuade myself that it is a mere matter of taste. We have no reason to suppose that Lazarus was the worst name in

the Hebrew genealogy. It must be confessed, however, that there are some disagreeable associations connected with it, aside from its sound; and, to speak the plain truth, it is a most disgusting appellation, fit only for a monkey. Yet I am compelled to bear it about with me—a thorn in the flesh, from which I cannot escape; it adheres to me like the poisoned tunic of Nessus. I would appeal to the Massachusetts Legislature, but my friends have a decided partiality for Lazarus, and would never know me by any other name. So, as Lazarus I have lived, Lazarus will I die.

I have redeemed my father's error, in naming my own children; I cannot, 'tis true, rub off the Rust: but, for the matter of Christian names, I defy the Directory to furnish a more princely list. When my eldest son was born, I vowed he should never be ashamed of his name, so I called him Henry Arthur Augustus George Bellville—so far, so good—it breaks my heart to add—Rust. The sly rogue has since improved his cognomen, by spelling it with a final e—thus: Henry A. A. G. B. Ruste—how it takes off the romance to add—eldest son of Lazarus Rust, esq.!

Finally, as I have the misfortune, like my namesake of old, to be of that class of mortals, denominated "poor devils," I can say, with the utmost sincerity, "who steals *my* purse, steals trash; and he who filches from me my good name," has decidedly the worst of the bargain.

J. D.

For the Southern Literary Messenger.

The following lines are from the pen of Dr. *J. R. Drake*. Sacred be his memory! A warmer patriot never breathed. The piece was written at the time of the invasion, and but a few days previous to the brilliant victory of the eighth of January. It is addressed to the defenders of New Orleans.

Hail! sons of gen'rous valor!
Who now embattled stand,
To wield the brand of strife and blood,
For freedom and the land;
And hail to him your laurel'd chief!
Around whose trophied name,
A nation's gratitude has twin'd,
The wreath of deathless fame.

Now round that gallant leader,
Your iron phalanx form;
And throw, like ocean's barrier rocks,
Your bosoms to the storm—
Though wild as ocean's waves it rolls,
Its fury shall be low—
For justice guides the warrior's steel,
And vengeance strikes the blow.

High o'er the gleaming columns
The banner'd star appears;
And proud, amid the martial band,
His crest the Eagle rears—
As long as patriot valor's arm
Shall win the battle's prize,
That star shall beam triumphantly—
That Eagle seek the skies.

Then on! ye daring spirits!
To danger's tumults now!
The bowl is fill'd, and wreath'd the crown,
To grace the victor's brow;
And they who for their country die,
Shall fill an honored grave;
For glory lights the soldier's tomb,
And beauty weeps the brave.

For the Southern Literary Messenger.

VALEDICTORY IN JULY 1829,

At the final breaking up of the —— School, in consequence of the ill health of Mrs. ——, the Principal, after it had continued for eight years.

Among the numerous analogies, my young friends, which have been traced between the body and the mind, there is not one that requires more of our attention than the necessity of constantly supplying each with its appropriate food, if we would keep both in sound, vigorous health. Although the nutriment of the first be altogether material, and that of the second spiritual, yet the same want of daily supply is equally obvious in regard to the improvement and preservation of mental as well as bodily qualities. Without our daily bread we must all in some short time sicken and die; without some daily intellectual repasts, the soul must soon become diseased and perish. It is true that in each case the food may be much and often beneficially diversified—although there are some standard articles that cannot be dispensed with on any occasion without inconvenience, if not actual injury. Such for example are bread for the body and some moral aliment for the mind. Upon this principle it is that I have always deemed it essential, every time I have addressed you, to mingle some moral instruction with every thing I have said, since it is *this* which constitutes the true leaven of the bread of life—and *this* it is which will always prove an acceptable part of their mental food, to all whose appetites and tastes have not been depraved by mental condiments, which stimulate and gratify the passions at the expense of the soul.

An irresistible inducement on the present occasion to pursue towards you the course to which I have so long been prompted both by principle and habit, is, that *this* is certainly the last opportunity I shall ever have of addressing you as pupils. The connexion of teachers and scholars which has subsisted for so many years between yourselves and my family, is about to

be dissolved forever. But this circumstance has greatly augmented my solicitude to render the last admonitions I shall ever give you in my character of adviser, of some permanent service to you. They will relate to such endowments of mind and qualities of heart as you will most frequently have occasion to exercise in future life. These are, self-control, gentleness and benevolence of disposition, purity and rectitude of conduct, courtesy and politeness of manner.

The necessity for acquiring self-control arises, not only from the impossibility of gratifying all, even of our lawful wishes—to say nothing of those unhallowed ones which increase in a tenfold proportion from every indulgence—but from the almost continual calls for its exercise in all our intercourse with society. At home or abroad—in the depths of solitude, or in the busiest haunts of men—in all our domestic relations, as well as in those which place us in a more extended sphere of action, this all important quality is in continual demand. In governing ourselves it is indispensable; nor is it much less necessary when duty requires us to govern, direct or persuade others. Even when we are casually brought into the company of strangers, and for a short time only, it often enables us to command respect and to gain esteem, by manifesting the vast superiority of a well regulated mind over one which yields to every impulse of passion that assails it. This inestimable quality of self-control gives additional zest to all our lawful pleasures, and enhances our highest enjoyments, by causing us always to stop short of satiety; while it enables us by God's help, resolutely and undisturbed, to meet all the crosses and trials to which others may subject us. In a word, it arms us against the strongest temptation of our own passions, and empowers us to disregard the worst that can be attempted against us by the passions of other people. It is in fact the *regulator*, (if I may so express myself,) which governs all the machinery of our minds in such a manner as to prevent them from going either too fast or too slow. How many mortifications and disappointments—how much anger, resentment and grief does it not prevent our suffering from the envy, hatred, malice and uncharitableness of the world around us! How often does it save us from the shame and degradation of sensual indulgence; from the turpitude of sin; from the anguish of remorse. It is the effectual check to the depravity of our nature, which a merciful God will enable us always to

apply, if we will only ask it of him as we ought—that is, by continual prayer and supplication.

The other qualities, gentleness, benevolence, purity, rectitude, courtesy and politeness, when accompanied by good sense and a well cultivated mind, constitute the great charm of domestic and social life. Indeed, they may well be called indispensable requisites, since there can be no happiness and very little comfort without them. There never was a greater, a more fatal mistake, than the too common one of supposing that the chief use of such qualities is in society at large; in other words, when we are acting a part before the world, in our ridiculous struggles for distinction and power. Selfishness is the mainspring of all such efforts, and it so sharpens our sagacity as to convince us that our bad qualities *must* be restrained in public, or they will frequently subject us to punishment if we attempt to disturb others by their indulgence. But in private life, and particularly in the family circle, there are few so insignificant or destitute of means to disturb others as not to possess the power of causing much annoyance, if not actual unhappiness. A single individual of a waspish, irritable, jealous, gossiping, envious and suspicious temper, in these situations, may destroy the peace and poison the domestic enjoyments of a large family. No incident is too trivial to excite some one or other of their bad passions; no person too unoffending to provoke them; no conduct so guarded as to escape malignant remark. Their approach, like the sirocco of the desert, produces an irresistible depression of spirits; constraint and embarrassment spread a gloom over every countenance, and the voice of joy and gladness dies away in their presence. On the other hand, the emanations of a gentle, benevolent disposition, produce the same impression on our hearts, that the balmy breezes and sweet smelling flowers of the vernal season do on our senses. It is a something that we feel deeply in the inmost recesses of our bosom, but cannot well describe. It is an atmosphere of delight in which we would gladly breathe during our whole life.

By purity of thought and rectitude of conduct, in which are comprehended the inestimable virtues of truth, candor and sincerity, we secure for ourselves the unutterable enjoyment of an approving conscience, at the same time that we obtain from others their esteem, their admiration, and their love. We may manifest these qualities in every part of our intercourse

with others; for whether we speak or act, occasions continually present themselves to prove that we possess them. By conversation we show the purity of our sentiments; by conduct we manifest the rectitude of our principles—so that in all we either say or do, we supply others with the means of ascertaining what manner of persons we are. True we may deceive some by playing the hypocrite; but the persons whose good opinion is really worth gaining, are not so easily gulled, and our loss, if the game is once seen through, is irretrievable.

In regard to courtesy and politeness, they may justly be called the offspring of benevolence, since their chief object is to promote the ease, the comfort, the pleasure, and happiness of others. It must be admitted there are counterfeit qualities which sometimes pass undetected. But *they* are the base born children of art and selfishness, aiming solely to promote their own interests by deceiving other people into a belief that *their* gratification is the end of all their efforts to please. To say nothing of the continual labor and constraint necessary to enable these circulators of false coin to escape discovery and exposure, the superior ease and safety of genuine courtesy and politeness, should be a sufficient inducement with all young persons to study most assiduously to acquire them, even on the supposition that we had no better guide for all our actions in relation to others. That honesty *in manner*, as well as *in conduct*, will ever be found to be the best policy, amid all the varying forms, fashions and practices of the world, is I believe, as certain as that truth is better than falsehood—virtue preferable to vice. Another argument greatly in favor of genuine courtesy and politeness is, that they are the most current and easily procurable coin you can possibly use, being equally well adapted (if I may keep up the metaphor,) to make either large or small purchases. The articles procured too in exchange, always greatly exceed in real intrinsic value, all that you ever give for them. This is merely the manifestation of a sincere, an earnest desire to please; while the precious return is almost always the cordial expression of truly friendly feeling, the look of pleasurable emotion, and the affectionate regards of a grateful heart, particularly where the intercourse has been of sufficient duration to admit of some little development of character. Let it not be said that a cause apparently so slight is inadequate to produce such strong effects. There lives not a human being who has ever felt the influence of genuine courtesy and politeness, but can testify to the truth of

what has been said in their praise. Nor is it easy to imagine the possibility of any individual's remaining insensible of their value, who like you my young friends, have always been accustomed to the society of ladies and gentlemen. Knowing this as I do, I should consider it somewhat like a work of supererogation to press upon you the absolute necessity of your constantly cultivating these invaluable qualities, if I were not thoroughly satisfied from painful experience, that almost all young persons require at least occasional admonition on this subject. In vain do some parents solicit, persuade—nay, beseech their daughters, never for a moment to forget what is due to the character of a lady, both in manners and deportment; in vain do they implore them with aching hearts to make a better return for all a mother's care and affection; to no purpose do they pray for that purity of heart and rectitude of principle in their offspring, which is the only true source of good manners: their unfortunate, wayward children continue to act, as if the chief purpose of their existence was to prove to the world how little influence their parents have over them. They seem utterly reckless of the parental tie—regardless of all the disparaging inferences which may be drawn from their own conduct in relation to the characters of their connexions—and continue hardened alike against advice or reproof, in whatever language or manner it may be offered to them. God forbid that such should be the moral portrait of any of my present auditors; but you have all sufficient experience to know that it is not a fancy picture, nor one wherein the features are so exaggerated and caricatured, as to be unlike any person who has ever lived. If none of your schoolmates have ever resembled it, you have either seen or heard of some others in the world whom it would fit. Should your own consciences acquit you, as I sincerely trust they do, of all liability to pursue so reckless a course, both in regard to parental and other admonition—let me beseech you, my young friends, not to tax your imaginations with laboring to conjecture whether I aim at any particular individuals, for I do not; but strive most assiduously to examine your own hearts thoroughly as to all these points, and study so to act on all occasions and towards every person with whom you may have any thing to do, that the praise not only of courtesy and politeness may ever be yours, but likewise the far more exalted merit of right minds and pure hearts.

When I look back on the years that have passed away since this school commenced; when I reflect on the many anxious hours which your teachers

have spent in meditating on the most effectual means to render their instructions and admonitions conducive to your eternal as well as temporal welfare; and when I recollect the several instances wherein I am persuaded they had good cause to believe that an all bounteous Providence had favored their humble labors, my heart is filled with gratitude for the past; and I cherish the fond hope that *you too*, my young friends, will be added to the number of those, who by the exemplary character of your future lives, will cause your instructors to rejoice that *you* likewise have once been their pupils. Three or four of you have been so from the first to the last, and the rest have been long enough members of our family to be thoroughly acquainted with the whole course of our instruction. You cannot therefore be ignorant either of the chief objects at which you have always been taught to aim, or of the means recommended to be invariably pursued for their attainment. If you have failed to profit by them the fault must rest somewhere; the awful responsibility attaches to one or both parties; and let us all earnestly pray to God, that the purity and rectitude of our future lives, should it please him to spare us, may avert the punishment justly due to such offences. That none may plead forgetfulness, let me briefly recapitulate once more, and for the last time, what our course has been. The primary objects always most earnestly pressed upon your attention have been, first and above all, to prepare yourselves for another and a better world, by a life of usefulness in the present; by the love and fear of God; by cheerful obedience to his will; and by continually doing good to your fellow creatures whenever you had the means and the opportunity. Your secondary objects have been the study of sciences and languages, physical and intellectual improvement, with a view, not to foster pride and vanity, but solely to increase your power of being useful. Lastly, you have been taught to acquire certain arts usually ranked under the head of "accomplishments," but you have been invariably and perseveringly admonished to consider them merely as *recreations*, innocent if indulged in only occasionally, but sinful when made, as they too often are, the principal business of life. On all occasions too, you have been persuaded never so far to confide in the maxim that "youth is the season for enjoyment," as to forget that, like old age it *may*, and too often *is*, the season of suffering also. A preparation for such contingencies *must* be made by all, or the hour of misfortune, although every human being is destined to meet it, will overwhelm those who are unprepared for it with a degree of misery which admits of neither

alleviation nor cure. Young as you all are, and little as you have yet seen of human life, you have already felt, if not in your own persons, at least in the case of others, something of the effect produced by sudden and unexpected calamity, bursting like a thunderclap on the heads of its devoted victims. But a few days have passed away since you were witnesses to such an event in the case of two of your school companions. The morning on which it happened shone upon them cheerful and happy as any among you, unconscious of any impending misfortune, undisturbed by any anticipations to mar their peace. Yet, in a very few hours from that time, they were both plunged into the deepest affliction; both by a single blow reduced perhaps to poverty; both suddenly called by the most awful death of a parent of one of them, to return to a wretched family bereft of its chief support, and crushed to the earth in all the helplessness of irremediable wo. Alas! my young friends, how few of you ever think of drawing from such occurrences the many salutary lessons they are so well calculated to impart! How many turn away from them as matters to be banished as speedily as possible from your remembrance; as events never likely to happen to yourselves! Yet every hour that we live—every moment that we breathe—not one among us, no not one single individual, can truly say, "*I am free—I am exempt both from present and contingent calamity.*" Far, very far am I indeed, from wishing you to be so constantly absorbed in gloomy anticipations, as to prevent you in the slightest degree from enjoying every innocent gratification suitable to your respective ages and situations in life. But I would have you all to know and to feel in your inmost heart, that "*sweet are the uses of adversity,*" and that none should think themselves fit to live until they feel prepared to die the death of the righteous before God and man. Hard as this requisition may seem, thousands upon thousands, and of your age too, have complied with it to the very letter. Thousands have furnished angelic examples, even to the aged and hoary headed, that the fresh, the blooming, the joyous period of youth may be dedicated to God, as well as that worn out remnant of life when all power of earthly enjoyment is supposed to be dead within us, and nothing remains to be offered to heaven but exhausted faculties and fast decaying intellects. Has not our blessed Saviour himself declared, when speaking of children, that "*of such is the kingdom of heaven;*" and in illustration of this truth, are not all the images of cherubim and seraphim presented to our senses, always represented with juvenile countenances, glowing with all the innocence and loveliness of

youth? Shall the youth then of the present day—the youth of our own country—but especially the female portion of them, ever adopt the fatal delusion that *theirs* is an age too immature for the acquisition and exercise of the highest moral and religious attainments. Shall *they* fall into the ruinous error that it is yet time enough for them to attend to spiritual matters, and that the prime and vigor of their lives are to be wasted in merely temporal pursuits unworthy the characters and disgraceful to the rational creatures formed for a state of eternal happiness? Far better would it be that they never had been born; or that the hand of misfortune—the saddest hours of unmitigated suffering, should continue to press on them with all their weight, until they could be brought to know their duty to God, to their fellow beings, and to themselves. Heaven forbid, my young friends, that such awful discipline should be necessary to bring *you also* to a proper sense of all you owe to the Divine Author of your existence, and to that society of which you may become either the blessing or the curse. Heaven forbid that any of you should so far forget the high destinies for which you were formed—the glorious purposes to which your lives should be devoted—and the everlasting happiness promised in another world to all who fulfil their duties in this, as to neglect for a moment any of the means essential to improve your hearts and minds to the utmost attainable degree. Nothing—no nothing within the range of possibility can enable you to do this, but continual, earnest, heartfelt prayer to God for the aid of his holy spirit in all your undertakings; frequent and deep meditation on all the vicissitudes of life; frequent and serious forethought in regard not only to what you may probably enjoy in the present world, but to what you may possibly be devoted to suffer. Gay and happy as you all now are in the joyous anticipations so natural to youth and health, it *may* be your fate (but God forbid it ever should,) to see one by one of your nearest and dearest connexions drop into the grave—some in the very blossom and promise of juvenile years—others worn down by care, disease and old age. It *may* be your fate to be the very last of your race, reserved to mourn over all who have gone before to another world. All this, my children, and yet deeper affliction may possibly be *your* lot—for it *has been* that of thousands, aye of millions before you. Can it be of *no importance* then; nay, is it not of *the last, the highest, the most vital importance*, that you should make at least some small preparation for such appalling contingencies, lest they befall you utterly unawares? Will you ask me what is that preparation? It is simply so

to use all your good gifts as not to abuse them; so to cherish all the powers both of your bodies and minds that they may last as long as nature intended they should, and fulfil all the purposes for which they were designed; so to divide your time between useful occupation and necessary recreation, that none may be said to be wasted or lost; in a word, *so to live* that you may never be found *unprepared to die*. The joys of heaven should ever be the beacon to guide your course; and the road by which you should travel through the present life to reach them, should be *that* and *that only* which your heavenly Father, through his blessed Son, has commanded and besought you to take. Thousands who have steadily pursued this course have testified that it is "a way of pleasantness and a path of peace" to all who have once attained the dispositions, feelings and principles enjoined upon those who have made it their choice, in preference to all other reputed roads to happiness; while not a solitary human being who has ever tried these other roads, has ever yet been heard to bear witness in their favor, after the experiment has been fully made. Woful then must be your mistake, most fatal your error, in choosing "the way in which you should go," should you rather be led by the sinful allurements of illicit pleasure, than the universally concurring testimony of the good, the wise, and the just throughout the world.

In a few fleeting hours more this school will cease to exist, and your present monitor will have uttered the last words of admonition which he will ever address to you as pupils. Anxiously, most anxiously do I desire to fix them indelibly on your minds. But alas! I feel too sensibly my own inability, as well as the evanescent nature of all language in the form of advice, to hope for more than a temporary impression. If I make even *that*, I shall in part at least have attained the sole object of all that I ever said to you, which has been your own intellectual improvement, your own happiness. Let me entreat you, my dear young friends; let me implore you for the last time, never to forget (whatever other things you may suffer to escape your memories,) any of the various moral and religious instructions which you have received under our care. I feel well assured that they will not fail to come home to your bosoms—probably too with greatly augmented force, should the withering blasts of misfortune ever spread desolation and wo among you. But I pray for something more for you. I would have you bear them continually in remembrance, even in your happiest hours of

prosperous fortune. I would have each of you individually meditate on them "when thou sittest in thy house, and when thou walkest by the way, and when thou liest down, and when thou risest up." Then, but not until *then*, will you be fully prepared both for adversity and prosperity; and then indeed may you confidently trust that the God of all mercy and goodness will vouchsafe to impart to you the true christian's last, best hope, both for time and eternity.

Separated from us all as you will soon be, perhaps forever, and about to enjoy, as I earnestly desire, a happy meeting with the beloved friends and relatives from whom you have been so long withdrawn, accept for the last time our heartfelt assurances that our best wishes, our anxious prayers for your happiness, will accompany you through all the vicissitudes of life; that we shall always sympathise both in your joys and your sorrows; and that our own enjoyments will ever be greatly augmented by hearing that you are all leading exemplary and happy lives. For power to do this, forget not—oh! never for a moment forget, that your sole reliance must be on your heavenly Father and his holy spirit, which hath been promised abundantly to all who ask it in truth and sincerity.

"May the blessing of an all merciful God be ever on you and around you. May his grace be a lamp unto your feet and a light unto your path. May it guide, strengthen and support you in all the troubles and adversities of this life, and bring you, through faith in our Redeemer, to eternal blessedness in that which is to come."—AMEN.

For the Southern Literary Messenger.

THE SEASONS.

The verdant spring, decked in her brightest gems, and arrayed in her most gorgeous vesture, has driven hoary winter to his icy caverns, and leads forth her sportive train to kindle a smile upon the face of nature. The mountain streamlets, revelling in joyous gaiety at their disenthralment from the chains of winter, are playfully meandering among the flowrets which deck their velvet banks; and the smiling vallies, embosomed amid the lofty mountains, put forth their verdure, as if in commemoration of him who "holdeth in his hand the destiny of nations!" The blushing rose has expanded beneath the genial rays of the resplendent god of day, and scents with its fragrance the vernal zephyrs which stoop to kiss it as they pass. The woods, and rivers, and mountains, all clad in their variegated garments, seem to mingle in the celebration of the grand jubilee of nature!

The flowers of spring have faded. The refulgent sun has ascended yet higher in his brilliant pathway through the heaven; the gay vesture of the earth is yellowing beneath his scorching rays. The fruit, of which the vernal blossoms gave such fair and glorious promise, has ripened into maturity under his golden influence. Voluptuous summer has been ushered in upon the stage of time, accompanied and heralded by myriads of gleesome fairies, wantonly disporting upon the rich carpets, rivalling in splendor the purple of ancient Tyre, which nature has spread over the earth for her reception. The chaste Diana holds her nocturnal course through the blue expanse of ether, studded with countless gems, the brightest jewels in heaven's diadem, shedding her mild and mellow light over the sombre forests, and gilding the sparkling streamlets, which placidly repose beneath her beams. Earth, sea and air, encompassed by a heavenly serenity, seem to

blend their beauties into one rich picture of loveliness, and offer up their united orisons to the sovereign Lord of all!

The revolving wheels of time, in their ceaseless and eternal gyrations, have rolled away the glories of the regal summer into the vast charnel house of the past—and the demon of decay, like the fiend consumption, breathing its fatal influence upon the roseate cheek of youthful beauty, has withered the tresses which hung in wild luxuriance upon the bosom of the earth, and has stamped upon her brow the impress of his iron signet, as if to shadow forth her approaching doom. The limpid streams which veined her surface, and under the mild sway of the queenly summer, danced and sparkled in the sun's meridian beam, now roll lazily along in their channels, as if performing the funeral obsequies of the buried past. The vallies, but lately decorated in the blooming apparel of spring, have now assumed a more variegated and gorgeous hue, which like the hectic flush which fitfully crimsons the pallid cheek of consumption's hopeless victim, only indicates the accelerated progress of decay. A deep, monotonous, unbroken stillness reigns o'er the hills and vallies, but lately teeming with life and animation. A creeping, deathlike, insidious languor, the sure precursor of winter's despotic reign, pervades the works of nature, hushing the breezes which ripple o'er the surface of the placid lake, and fettering the whole earth in supine inertness. The face of nature is robed in melancholy sadness, as if mourning over the faded glories of the declining year!

Onward, in cold and gloomy grandeur, advance the frowning heralds of the despot winter! Every vestige of vernal beauty has faded from their presence. The mountains, vales and rivulets, as if anticipating his hateful arrival, have veiled themselves in a frigid, chilling vesture of white! Even the tears which sympathising heaven sheds upon the bosom of the earth, become congealed and frozen beneath his blighting influence. The volcanic fires which rage in the bosom of the towering mountain cower in dismay from his terrific glance. At length the tyrant, with his iron sceptre and icy crown, is seated on his throne. His attendant ministers rush to assist in the frightful coronation, and amid the demoniac yells which announce the termination of the loathsome ceremony, the harsh old Boreas shrieks forth the requiem of the departed year!

For the Southern Literary Messenger.

BYRON'S LAST WORDS.

BY D. MARTIN.

Summer was in its glory. Night came down,
With a light step upon the virent earth;
Sepulchral silence reigned on every side;
And the winds—those heralders of storm
Which curl the billows on Old Ocean's brow,
In their low breathings were inaudible,—
When a gifted son of Genius sought his home,
And threw himself upon a lowly couch,
And as his being's star went slowly down,
He thus communed in low and faltering tone:—

Oh! it is hard to die!
To leave this world of amaranthine green,
Whose glittering pageantry and flowery sheen,
Vie with the glorious sky!

But alas! the hand of Death,
Has laid its icy grasp upon me now;
The cold sweat rests upon my feverish brow,
And shorter grows my breath!

Well be it so!
And I will pass away like light at even,
Unto the Houri's amethystine heaven,
Where all immortal go!

Yet I have drank
Unto its very dregs, the cup of Fame,
And won myself a green, undying name,
In Glory's rank!

And yet!—oh, yet,
"Break but one seal for me unbroken!
Speak but one word for me unspoken!
Before my sun is set!"

Oh, for one drop
Of the black waters of that stream sublime,
Which follows in the stormy track of Time,
This breath to stop!

It may not be!
Yet I would pray that Memory might rest,
Like the wan beauty of the sunlit west,
In dark oblivion's sea!

Thus did he commune—and when the god of day
Rose like a monarch from his sapphire throne,
His spirit had passed away like morning mist—
And winged its way unto that far off land,
Where burns fore'er eternity's bright star!

For the Southern Literary Messenger.

TO A YOUNG LADY.

How beautiful, fair girl, art thou,
All robed in innocence and truth!
Upon thy calm and snowy brow,
Beam, like a crown, the smiles of youth;
Heaven's sunshine falls and lights thy way,
As one too pure and bright for sorrow—
And virtue's soft and seraph ray
Flings lustre on thy dawning morrow,—
Giving a promise, that thy life
Will ever be, with pleasure, rife!

Upon those dark, bright eyes of thine,
That soft, like moonlit waters, beam,
I love to gaze, and, as they shine,
Of those ethereal beings dream,
That oft, on us, have smiled, in sleep,
Then quickly flown, and made us weep,
That e'er to man, so much of heaven
Should just be shown,—ah! never given!

How soft the rose upon thy cheek,
Blent with the lily's milder hue,
Whose mingling tints of beauty speak
A sinless spirit—calm and true!—
The smile, that wreathes thy rosy lip,
Is young affection's radiant token—
Beauty and Truth in fellowship!—
The symbol of a heart unbroken;
Within thy bosom, holy thought,
As in a temple, hath its shrine,
Refulgent with a glory caught
From the pure presence of thy mind,
Whose lustre flings a hallowing ray,
Around thee, calm as orient day!

Oh! may thy life be ever bright,
As aught thine early dreams have framed,

And not a shadow dim its light,
Till heaven, in mercy, shall have claim'd
Thee, as a being fit for naught
That earth can boast, all sorrow-fraught
As are its brightest visions. May
Thy life be one long dream of love,
Unbroken 'til the final day,
When heaven shall waft thy soul above,
And crown thee, as an angel *there*,
Who wast indeed an angel *here*!

A. B. M.

Tuscaloosa, Alabama.

For the Southern Literary Messenger.

LINES IN AN ALBUM.

As sets the sun upon the wave,
At twilight, when the day is done,
Casting a glory round his grave,
That lingers, though his race be run;—
A glory, that attracts the gaze
Of many a bright, uplifted eye,
Leading the spirit, where his rays
Blend with the quiet, azure sky,
Till evening's star, with diamond beam,
Mirrors his last effulgent gleam;—

So I would now, upon this page,

At parting, *this* memorial leave,
O'er which, perhaps, in after age,
Some pensive eye may kindly grieve,
And mourn the loss of him, who though
His life was all unknown to fame,
Left still behind a feeble glow,
Hallowing, in friendship's sky, his name,—
A light, that, like a star, will beam,
Long, long, he trusts, in memory's dream!

* * * * *

And now my wish for happiness
To thee, I mingle with mine own,—
A wish—a *prayer*, that heaven may bless,
And keep thee, kind and gentle one,
Free from all sorrow, care and strife,—
A being far too pure and bright
To wander 'mid the storms of life,
That dim affection's vestal light,—
A seraph form'd like those above,
For only joy, and peace, and love!

I need not tell thee, time can ne'er
Thy name from memory's tablet blot,
For thou art to my heart too dear,
To wrong its worship, by the thought;
No! though the world may sorrow bring,
And bear thee far away from me,
It from remembrance ne'er can wring
The thoughts, that aye will turn to thee,
As Chaldea's maiden to the star,
She worships in its sphere afar!

A. B. M.

For the Southern Literary Messenger.

PARTING.

Farewell!—my hand is trembling yet,
With the last pressure of thine own;
Oh! could my troubled heart forget
The sadness, 'round that parting thrown,—
Could memory lose the imaged smile,
Bright sparkling through thy gushing tears,
Which played upon thy cheek, the while
Hope struggled with her prophet fears,
That love and bliss no more would throw
Their beams around us, as of erst,
Or happiness, with seraph glow,
Upon our rapturous *meetings* burst,—
I then might lose a sorrowing thought,
But one, with deep affection fraught!

Yet go!—I would not keep thee here,
When "it is best to be away,"—
Go, seek thy distant home, and ne'er
Let memory 'round these visions stray,
When happiness, and love and joy,
Unto our mingling hearts were given;—
Oh! go, and ne'er may pain annoy,
Or sorrow dim thine eye's blue heaven,
But peace and pure affection hold
Their vigils 'round thine angel way,
And blessedness thy form enfold,
And keep thee, 'til "the perfect day,"

When heaven shall join the hearts of those,
Who here have loved, through countless woes!

Go!—and I will not ask, or give
A sigh,—a tear,—a single token,
To prove our cherished love will live,
Forever true, in faith unbroken;—
Though wayward fate has severed far
Our fortunes, by a cruel lot,
Yet love will live, with being's star,
And never,—never be forgot;—
God's blessings on thee!—if the smile
Of heaven e'er lights a seraph's path,—
Protecting it from blight the while
It wanders here, 'mid sin and wrath,—
Its smiles upon *thy* path shall beam,
And light it, like an Eden dream!

A. B. M.

Tuscaloosa, Alabama.

For the Southern Literary Messenger.

LINES SUGGESTED ON VIEWING THE RUINS AT JAMESTOWN.

Monuments of other years, on ye I gaze
As yonder sun sheds forth its dying rays;
And as I read these marbles, reared to tell
Who lived beloved, and much lamented fell;
A feeling sad comes o'er my soul, and then

My fancy brings their tenants back again.
Not these alone, but those whose footsteps trod
The soil before, and worshipp'd nature's god
Free from scholastic trammel, and adored
Him thro' his works, without the zealot's sword
To force belief. Where are ye now? Bright star
That shed'st thy soft light thro' the skies afar,
Art thou the same that didst thy pale beams shed
O'er the last broken-hearted Indian's bed?
When death was glazing fast his eagle eye,
Say, didst thou gleam from yonder deep blue sky
O'er his dim vision, and point out the way
Thro' death's dark vestibule to endless day?—
How did he die? With curses loud and deep
(Startling the panther from his troubled sleep,)
All wildly bursting from his soul for those
Who came as friends, but—proved the worst of foes?
Say, did he breathe his untamed spirit out,
With the stern warrior's wild unearthly shout
Quiv'ring along his lip, all proudly curled,
Which seem'd to say, "defiance to the world?"
Or was the lion quiet in his heart?
And did a gush from feeling's fountain, start
Adown his swarthy cheek, when o'er his soul
Came tender feelings he could not control.
Thoughts of the past perhaps; his aged sire;
His mother bending o'er the wigwam's fire;
His brothers, sisters, and the joyous chase;
The stream he used to lave in oft, to brace
His manly sinews; and perchance the maid,
With whom in brighter days he oft had strayed
Mid the hoar forest's over spreading shade.
Came there a group past mem'ry's straining eye
To teach the *brave* how hard it was to die?
What boots it now to know? Yet fancy warms
With strange imaginings, and the gaunt forms
Of forest heroes pass her eye before,

As a strange feeling steals the spirit o'er.
Is that Apollo¹ with his polish'd bow
And quiver—with rich locks that freely flow
Adown his neck of graceful form—whose eye
Seems like some bright orb beaming from the sky?
O! shade of Powhatan! I would not dare
To breathe one word upon this balmy air
To make thee sad—for as I look around,
I *feel* this mournful spot is sacred ground!
If thou dost mark my footsteps, where I tread
Unthinking, o'er those warrior's mounds, who bled
Contending bravely for their own green hills,
Their sunny fountains and their gushing rills,
Their fields, their woods, their partners and their sons,
This noble stream which to the ocean runs,—
Shade of the mighty Werowance² forgive!
No trifling thoughts within this bosom live;
No throb unhallowed thrills my bosom here,
As o'er these mounds I drop a mournful tear.
But day declines; the hosts of heaven ride
All brightly—while the moon, pale as a bride
When at the altar her young vows are given,
Smiles sweetly from her altitude in heaven.

The red man and the white, together sleep
That dreamless slumber, and the waves' hoarse sweep
Awakes them not—and I a wandering boy,
Will not with my sad song their manes annoy.

I drop a parting tear, thou sacred pile,
To thy strewn columns and thy moss grown aisle;
Thy broken pavement, and thy ruined arch,—
How rapid Time, thy desolating march!

Farewell! farewell! thou sacred, solemn spot;
What I have felt shall not be soon forgot:

Rest, rest, ye slumberers! would that I could sleep;
Your's is all calm, but *I* must live to weep.

SYLVANUS.

August, 1834.

¹ It is said of West, the celebrated painter, that on being shown an Apollo, he exclaimed, "My God, how much like a young *Mohawk warrior*."

² Indian term for a great man.

For the Southern Literary Messenger.

ODE WRITTEN ON A FINE NIGHT AT SEA.

How softly sweet this zephyr night!
To Venus sends her brilliant light!
And Heav'n's inhabitants unite
Each kindly beam,
To put fell darkness' train to flight,
With gentle gleam.

The vessel's sides the waters wake,
And waveless as the bounded lake,
A solemn slumber seem to take
Extending wide;—
Along the ship they sparkling break
And gem the tide.

Midst such a scene, no thoughts can find
An entrance in the pensive mind,

But such as virtue has refined,
The past must smile—
And flatt'ring fancy will be kind,
And hope beguile.

Blest silence! solitary friend—
My thoughts with thee to *home* I send;
And *there* absorbed my sorrows end—
In vain I roam—
As blossoms to the day-star tend,
So I to home.

Not more I owe that glorious ray
That beams the blessing of the day;
Not more my gratitude I pay
For air and light—
Than for that Home now far away—
First, best delight.

A little while, and that blest spot,
From mem'ry shall raze each blot,
And all my wand'rings there forgot,
At last I'll rest—
No sorrow shall disturb the cot
So loved, so blest.

For the Southern Literary Messenger.

AUTUMN WOODS.

A deep ton'd requiem's in the sigh
Of the moaning blast, as it hurries by
 Yon fading forest;
Upon its rushing wings is borne
A voice sad as the anthem's tone
 Above the dead:
It is the wild wind's hymn of death,
Which pours in plaintive strains its breath
 O'er autumn woods;
When hurl'd to earth by the fitful storm,
Some frail leaf's wan and wither'd form
 Sinks to its tomb.
Sad relics of the dying year;
Thy springtide glories now are sear,
 And all departed:
Where now's thy fairy robe of spring,
The sunbeam and the zephyr's wing
 Once wove for thee?
Say, where's that gush of melody
Thy sylvan minstrels pour'd for thee
 In thy summer bowers?
Or where's the Æolian song thou wouldst wake
When some sporting zephyr's breath would shake
 Thy rustling leaves?
Thy robe—thy song have past away,
And the funeral pall and the funeral lay
 Alone are thine!
How oft when summer's azure sky
Was bath'd in the golden, gorgeous dye
 Of sunset's glow,
I've lov'd to wander through thy bright
And verdant bowers, gilt with light
 Of parting day;
To list to the soft, faint melody
Of thy vesper hymn, as it floated by
 On the passing breeze—
Or view, when on the stream's bright sheen

Was pictured all thy fairy scene
 In mimic art;—
How calm that stream, in its slumber seeming,
Of thee and all thy pageant dreaming
 Reflected there.
But thro' thy shades 'twas not alone
I stray'd. With me there wander'd one
 Of gentler mould,
Around whose seraph form awakening,
Young beauty's morning light was breaking
 In roseate beam—
And round whose stainless brow fond Love,
And Hope and Joy a wreath had wove
 Of freshest bloom.
Thou sad memento of the tomb!
Say, shall that wreath, with its sunny bloom,
 E'er fade like thee?
Shall Time's chill mildew on it light,
Or sorrow breathe its *autumn* blight
 Upon its flowers?
A voice is in each falling leaf
Which says, "earth's brightest joys are brief"—
 Thus fade its hopes!
Then mid that wreath of fading flowers
Fond pleasure weaves, to deck her bowers,
 Oh! twine that flower
Whose fadeless hue, whose springtide bloom
Immortal lives, beyond the tomb—
 Bright SHARON'S ROSE.

H.

We extract the following sprightly effusion from the *North American Magazine*, published in Philadelphia. It bears a strong resemblance to the grace and freedom, and *piquancy* which distinguish the muse of Halleck, one of the most highly gifted poets in America. We hope our fair readers, however, will not suppose that the author's satire is adapted to our meridian. The BEAUTIES of our southern clime, are too generous and disinterested to be won by the sordid allurements of splendid edifices, bank shares and gold eagles!—at least we hope so, and should be sorry to find ourselves mistaken.

THE DECLARATION.

The lady sat within her bower,
Where trellissed vines hung o'er her,
With flashing eye and burning cheek,
Down knelt her fond adorer;
He took her soft white hand, and in
Her bright eye fondly gazing,
Sought for a look, to show that he
An equal flame was raising;
Yet still her eyes were turned away,
And as his heart waxed bolder,
And he devoured her lily hand,
The lady's look grew colder.

And then he swore by all the stars,
That in the sky were shining—
By all the verdant vines that o'er
Her gentle bower were twining—
By mountains, valleys, seas and streams,
And by the moon above her,
And everything therein that e'er
Sophi or saints discover—
He never could know peace again
On earth, till he had won her;
Yet still she answered not the look
Of love he cast upon her.

And then he swore, at her command,
To show his love, he would do
What never mortals did before,
And none but lovers could do,
That he would climb up to the moon,
Or swim the ocean over—
Would dine one day at Sandy Hook,
And sup next night at Dover;
Then jump from thence to London, and
Alight on St. Paul's steeple—
Then pull the Premier's nose, and make
O'Connell damn the people.

Or that he would put armour on,
And, like a knight of yore, he
Would fight with giants, castles scale,
And gain immortal glory.
Then go and build a kingdom up,
And be a mighty winner;
Bowstring the Sultan Mahmoud—and
His TURKEY eat for dinner.
Then follow Lander's dismal track,
And on the Niger's banks
An Empire of the Darkies found,
And merit Tappan's thanks!

If HARDER tasks she did demand,
He would reform the nation,
Make talent, honesty, and worth,
Essentials to high station—
Make politicians tell the truth,
Give consciences to brokers,
And put upon the temperance list
An army of old soakers—
Make lawyers "keep the people's peace,"
Physicians kill them CHEAPER—
A cloud was on the lady's brow,

Which, as he spoke, grew deeper.

He swore she had the brightest eyes,
That ever look'd on mortal;
And that their light was like the rays
That stream from Heaven's own portal;
That by her cheek, the opening rose
Would look but dim and faded;
And darker than the raven's wing,
The hair her fair brow shaded;
That Venus by her side would look
A common country dowdy;—
The lady blushed and smiled, and then
Her brow again grew cloudy.

Up sprung the lover then, and said,
"Will you be Mrs. Popkins—
Miss Julia Jane Amelia Ann
Matilda Polly Hopkins?
I have a house four stories high—
We'll live in splendid style, and
A handsome countryseat upon
Lake George's sweetest island—
Ten thousand eagles in the mint,
Bankshares, untold, percented"—
The lady bent her cheek to his,
Her gentle heart relented!

For the Southern Literary Messenger.

FROM MY SCRAP BOOK.

You ask me B——ty, why I mourn,
Yet dry'st the tearful eye?
You ask me why I look with scorn,
And check the heaving sigh?
Time was, when I could carol forth,
To tune of lively glee;
But dark despair has left no hope—
Nor sigh—nor tear—for me.
Like me—perchance some wayward sprite,
Might dazzling lead astray;
Then leave you on the giddy height,
To perish far away:
Take heed while yet you have the choice,
Avoid the Syren's way;
Nor listen to the artful voice,
Which calls—but to betray;
For sigh from him that is deceived,
Or tear from eye that once believed,
Is sought in vain—tho' fill'd with grief,
Nor sigh nor tear can bring relief;
'Tis *time* alone can steel the heart,
And foil the Syren's pointed dart.

POWHATAN.

Petersburg, Dec. 19, 1834.

For the Southern Literary Messenger.

THE MECHANICIAN AND UNCLE SIMON.

About the period of what "*I am gaun to tell*," the ancient aristocracy of Virginia had passed through its death struggle; the times when the rich were every thing and the poor nothing, had passed away; and the high pretensions of the sons of the Cavaliers had yielded to the more levelling opinions of the Roundheads. The badges of distinction, such as coats of arms and liveries, had become too odious to be generally kept up; occasionally however the latter were seen, but so rarely, that they looked like the spectres of departed greatness, and excited a feeling of contempt or pity for the weakness of the master, rather than respect for his wealth and rank. There was one class of people nevertheless, who retained all their attachment to these distinctive marks; and indeed they do so to this day: I mean the class of servants who belonged to the old families. They were the veriest aristocrats upon earth, and hated with the most unrelenting hatred all the ignoble blood of the land, and deeply deplored the transition of property from the nobles to the serfs. Though their own "*ancient but ignoble blood*" had literally almost "*crept through scoundrels ever since the flood*," they detested the poor and adored the rich. I shall never forget the Fall of the year ——. I had just graduated at one of our northern colleges, and received my two diplomas, with their red ribbons and seals attached. They were deposited by my good friend Andrew McMackin, the most expert diploma rigger in all the village, in a plain cylindrical case of pasteboard, for safe keeping, and would have remained there probably to this day unmolested, had not the rats made an inroad upon them, and in a single night demolished sigillum and signature—all that it had cost me years of hard labor to obtain—aye, and twenty dollars to boot. Not satisfied, I suppose, with the attestation of the president and venerable board of trustees, they were desirous of adding their own ratification of my pretensions to science. Be that as it may; full of delightful anticipation at the prospect of returning to my native state, after an absence of four years, I took my seat in the mail stage, and travelled three hundred miles without once going to bed. Such a journey at this day of steamboat and railroad car would be nothing, but at that time it was a great undertaking, and attended with much fatigue. The vehicles were crazy and often broke down, and the passengers had the pleasure of paying dearly for the privilege of walking many a mile through the mud. At length I arrived at the little town of F——, the end of my journey on the great mail route, where I expected to meet with some kind of conveyance to take me into the country to my uncle's. As I leaped from the

carriage to the pavement, where many loiterers were gathered to witness the arrival of the stage, I found myself suddenly locked in the arms of some one, who exclaimed, "*There he is, the very moral of his grandpapa!* God bless your honor, how do ye do? I'm so glad to see you." Extricating myself with some degree of embarrassment, because of the crowd around me, I perceived that the salutation proceeded from one of our old servants, who stood gazing upon me with the most benevolent smile. His appearance was quite outré to one who had lived so long at the north. His old and faded livery, was blue turned up with yellow; he held in his hand a horseman's cap, without the bearskin; his boots had once been white-topped, but could no longer claim that distinctive epithet; like Sir Hudibras, he wore but one spur, though probably for a different reason; his high forehead glistened in the sun, and his slightly grey hair was combed neatly back, and queued behind with an eelskin so tight that he could hardly wink his eyes, exhibiting a face remarkably intelligent and strongly marked, with a nose uncommonly high and hawkbilled for a negro. Perceiving my embarrassment, he drew back with a very courtly bow, and begged pardon, declaring he was so glad to see me, he had forgotten himself and made too free. I made haste to assure him that he had not—gave him a hearty shake by the hand—called him Uncle Simon, a name he had been always accustomed to from me, and drawing him aside, overwhelmed him with questions about every body and every thing at home. Tell me, said I, how is my uncle? "I thank you sir, quite hearty, and much after the old sort—full of his projecks, heh! heh! perpechil motion, and what not." What, said I, is he at that still? "Oh yes—oh yes—and carridges to go without hawses; God love you, Mass Ned, I don't think they ken go without animel nater." And how does my aunt like all this? "Ah!" said he, putting up his hands with an air of disgust, "She can't abide it—things go on badly. You 'member my four greys? So beautiful!—my four in hand!—all gone, all sold. Why, sir, I could whistle them hawses to the charrut jest as easy as snap my finger. Our fine London charut too! *that's gone*—and my poor Missis your aunt, has nothin to ride in, but a nasty, pitiful push phaton." I am sorry to hear it, Simon. "Why, Mass Ned, what mek you all let them Demmy Cats sarve you so? What you call 'em? Publicanes? Yes, *I'd* cane 'um as old master used to do." But Simon, how is cousin Mary? "Miss Mary? Oh, Miss Mary is a beauty; gay as a young filly, and she walks upon her pasterns ——." Well, well, said I, interrupting him, Simon let us be off; what have you brought

for me to ride? "Old Reglus, sir, your old favorite." Having taken some refreshment, and transferred my clothes to the portmanteau, I mounted Regulus, who still shewed his keeping. He was a bright bay, and his hair was as glossy as silk under Simon's management; his eye still glanced its fire, and his wide nostrils gave token of his wind. He knew me, I shall ever believe it, for my voice made him prick his ears, as if listening to the music of former days. It seemed to inspire him with new life; he flew like an arrow, and Simon found it impossible to keep up with me, mounted as he was on a high trotting, rawboned devil, that made the old man bound like a trapball, whenever he missed his up-and-down-position movement. His figure, thus bobbing in front of a monstrous portmanteau and bearskin, was so ludicrous, I could not forbear laughing; and reining up my steed, I told him I would ride slower for the sake of conversation with him. "Do, my good sir," cried he, "for this vile garran will knock the breath out of my body. If I had but my old hawse Grey Dick alive agin—that hawse, Mass Ned, was the greatest hawse upon the face of the yearth; I rod him ninety miles the hottest day that ever come from heaven, and when I got through our outer gate, he seized the bit between his teeth, and run away with me, and never stopped till he got clean into the stable. Whenever I fed him, I was 'bliged to shet the stable door and go away, for if he heard me move or a stirrup jingle, he would'nt eat another mouthful, but stood with his head up and his eyes flying about, impatient for me to mount." I knew this was the moment to put in a leading question to bring out a story I had heard a thousand times. That was not the horse that ran away with you when a boy? "No—no—that was Whalebone; *your* grandpapa used always to go to court in his coach and six; I can see him now, in his great big wig, hanging down upon his shoulders, and powdered as white as a sheet. I was then a little shaver, and always went behind the carridge to open the gates. Waitinman George rod the old gentleman's ridin horse Bearskin, and led Mass Bobby's hawse Whalebone; Mass Bobby rod in the carridge with old master. Well, one day what should George do but put me up upon Whalebone, as big a devil as ever was; soonever I got upon him, off he went by the coach as hard as he could stave; old master hallooed and bawled—he'll kill him—he'll kill him—George how dare you put Simon upon Whalebone? Pshey! the more he hallooed the more Whalebone run. I pulled and pulled till I got out of sight, and turned down the quarter stretch, and then *I did give him the timber*—Flying Childers was nothin to him. When old master got home,

there I was with Whalebone as cool as a *curcumber*. I made sure I should get a caning, but all he said was, D—n the fellow! I 'bieve he could ride old Whalebone's tail off—heh! heh! heh!"

I am sorry I cannot do more justice to the eloquence of Simon, who excelled in all the arts of oratory. His eyes spoke as much as his tongue; his gestures were vehement, but quite appropriate; he uttered some words in as startling a voice as Henry Clay, and his forefinger did as much execution as John Randolph's. As to his political opinions, he was the most confirmed aristocrat, and thought it the birthright of his master's family, to ride over the poor, booted and spurred. It was his delight to tell of his meeting one day, as he swept along the road with his smoking four in hand, a poor man on horseback, whom he contemptuously styled a *Johnny*. He ordered the man to give the road; but as he did not obey him as readily as he desired, he resolved to punish him. By a dexterous wheel of his leaders, he brought the chariot wheel in contact with the fellow's knee, and shaved every button off as nicely as he could have shaved his beard with a razor. But enough of Simon. I beguiled the way by drawing him out upon his favorite topics, until we got within sight of my uncle's house, a fine old mansion, with an avenue of cedars a mile in length. They had been kept for several generations neatly trimmed, and he who had dared to mar their beauty with an axe, would have been considered a felon, and met his fate without benefit of clergy. I have lived to see them all cut down by the ruthless hand of an overseer, who sees no beauty in any thing but a cornstalk. However, this is wandering from my present theme. Then they were in all their evergreen loveliness, and I hailed them as my ancient friends, as I galloped by them, with a joyous feeling at approaching the scene of my childhood. The folding doors soon flew wide open, and the whole family rushed out to meet me with true-hearted old fashioned Virginia promptitude. I must not attempt to describe a meeting which is always better imagined than described. Let it suffice, that after the most affectionate greeting, which extended to every servant about the premises, I was ushered to my bed room at a late hour, with as much of state as could be mustered about the now decaying establishment, and soon sunk into a profound slumber, well earned by the toils and fatigues of my journey. Early the next morning, before I left my room, my excellent and revered uncle paid me a visit, and ordered in the never failing julep,—*such a one as would have done honor to*

Chotank. At the same time he suggested to me that he would greatly prefer my taking a mixture of his own, which he extolled as much as Don Quixotte did his balsam to Sancho, or Dr. Sangrado his warm water to Gil Blas. It was a pleasant beverage, he said, compounded of an acid and an alkali. He had discovered by close observation, that all diseases had their origin in acid, and that alkali of course was the grand panacea; even poisons were acids, and he had no doubt that he should be able to form a concrete mass, by means of beef gall and alkali, which would resemble and equal in virtue the mad stone. If I felt the slightest acidity of stomach, I would find myself much relieved by one of his powders. He had written to Dr. Rush on the subject, and he shewed me a letter from that gentleman, at which he laughed heartily, and in which the Doctor protested he might as well attempt to batter the rock of Gibraltar with mustard seed shot as to attack the yellow fever with alkali. I could not help smiling at the earnestness of my dear uncle, and assured him that I had no doubt of the virtues of his medicine, but as I was quite well, I would rather try the anti-fogmatic; and if I should feel indisposed, would resort to his panacea; although I secretly resolved to have as little to do with it as Gil Blas had with water. Having dressed myself and descended to the breakfast room, I there met my aunt and cousin, who soon made me acquainted with the present condition of the family. Every thing was fast declining, in consequence of the total absorption of the mind of my uncle in his visionary schemes; and I saw abundant evidence of the wreck of his fortune, in the absence of a thousand comforts and elegancies which I had been accustomed to behold. He soon joined us, and such was his excellence of character, that we most carefully avoided casting the smallest damp upon his ardor. Indeed, he was a man of great natural talent and much acquired information, and was far above the ridicule which was sometimes played off upon him by his more ignorant neighbors. I almost begin to think that we were the mistaken ones, when I look around and see the perfection of many of his schemes, which I then thought wholly impracticable. When old Simon thought that a carriage could never go without *animel nater*, he certainly never dreamed of a railroad car, nor of the steam carriages of England; and when my uncle gravely told me that he should fill up his icehouse, and manufacture ice as he wanted it in Summer, by letting out air highly condensed in a tight copper vessel, upon water, I did not dream of the execution of the plan by some French projector. I must not be thus diffuse, or I shall weary the

patience of my reader. A ride was proposed after breakfast, and my uncle immediately invited me to try his newly invented vehicle which could not be overset. I have constructed, said he, a carriage with a moveable perch; by means of which the body swings out horizontally, whenever the wheels on one side pass over any high obstacle or ground more elevated than the other wheels rest upon; and I shall be glad to exhibit it to a young man who is fresh from college, and must be acquainted with the principles of mechanics. I readily accepted his proposal, although I trembled for my neck; but declared I had no mechanical turn whatever, and could not construct a wheelbarrow. He was sorry to hear this, as he was in hopes I would be the depositary of all his schemes, and bring them to perfection in case of his death, for the benefit of his family. We soon set off on our ride; and Simon was the driver. As I anticipated, in descending a hill where the ground presented great inequality, the whole party were capsized, and nothing saved our bones but the lowness of the vehicle. Never shall I forget the chagrin of my uncle, nor the impatient contemptuous look of Simon, as he righted the carriage; he did not dare to expostulate with his master, but could not forbear saying that he had never met with such an accident when he drove his four greys. "Ah, there is the cause," said my uncle, much gratified at having an excuse for his failure; "Simon is evidently intoxicated; old man, never presume to drive me again when you are not perfectly sober; you will ruin the most incomparable contrivance upon earth." Simon contented himself with a sly wink at me, and we made the best of our way home; my uncle promising me another trial in a short time, and I determining to avoid it, if human ingenuity could contrive the means. The next day, as I was amusing myself with a book, my uncle came in from his workshop, with a face beaming with pleasure; and entering the room, proceeded in the most careful manner to close all the doors; and producing a small crooked stick, said to me with a mysterious air, "My boy, this stick, small and inconsiderable as it seems to be, has made your fortune. It is worth a million of dollars, for it has suggested to me an improvement in my machine for producing perpetual motion, which puts the thing beyond all doubt." Is it possible, cried I, that so small a stick can be worth so much? "Yes, depend upon it—and I carefully closed the doors, because I would not be overheard for the world. Some fellow might slip before me to the patent office, and rob me of my treasure." I observed that nobody was there who could possibly do so. "Yes, somebody might be casually passing, and I

cannot be too vigilant. I take it for granted," he resumed, "that you are apprised of the grand desideratum in this business. You do not imagine, with the ignorant, that I expect to make matter last longer than God intended; the object is to get a machine to keep time so accurately, that it may be used at sea to ascertain the longitude with precision. Do you know that a gentleman has already constructed a time piece, for which the Board of Longitude paid him fifty thousand pounds; but owing to the metallic expansion, it would not be entirely accurate." I answered that I had not so much as heard of the Board of Longitude—and he proceeded to explain his improvement, of which I did not comprehend a syllable. All that I felt sure of, although I did not tell him so, was that he would not succeed in realizing the million of dollars; and, accordingly, when admitted as a great favor into his sanctum sanctorum, the work shop, to witness his machine put in motion, it stood most perversely still after one revolution, and "*some slight alteration*" remained to be made to the end of the chapter,—until hope became extinct in every breast save that of the projector. I could fill a volume with anecdotes of this sort, but will add only one, as descriptive of the very great height to which visionary notions may be carried. My uncle was a federalist, and of course hated Buonaparte from the bottom of his soul. He told me as a most profound secret, that he had discovered the means of making an old man young again, by removing from him the atmospheric pressure, and that nothing deterred him from patenting his discovery, but the fear that Buonaparte would attach his machinery to a body of soldiers and fly across the British Channel, and thus light down in the midst of England, and make an easy conquest of the only barrier left upon earth to secure the liberties of mankind. Eheu! jam satis! thought I. In this way did my poor uncle spend his time, to the utter ruin of a fine estate, which was surrendered to the management of that most pestilent of the human race, an overseer,—who would not at last be at the trouble of furnishing the old gentleman with wood enough to keep him warm in his spacious edifice. The means he resorted to, to reprove the overseer, were not less characteristic and laughable than many of his singular notions. One very cold day he sent for him; the man attended, and was ushered with much solemnity into an apartment where a single chump was burning feebly in the chimney place, and a table was standing in the centre of the room, covered with papers, pen and ink. My uncle received him with unusual courtesy, and ordered the servant to set a chair for Mr. Corncob by

the *fire*,—with a peculiar emphasis on the word. "I have sent for you, Mr. Corncob," said he, "to get you to witness my will. You see, sir," pointing at the same time to the fire—"you see, sir, how small a probability there is that I shall survive the present winter. I am anxious to settle my affairs previous to my being attacked by the pleurisy, and have therefore sent for you to aid me in doing so." This was a severe reproof, and the man having done as he was bid, retired with an air the most sheepish imaginable. I fill up the picture by stating that I married my cousin, and inherited the estate in due course of time; but a mortgage swallowed it up as effectually as an earthquake—and poor old Simon died of a broken heart when Regulus was knocked off at the sale of his master's property at twenty dollars, to the man whom he hated of all others, Christopher Corncob, Esquire.

NUGATOR.

For the Southern Literary Messenger.

LINES WRITTEN IMPROMPTU,

On a Lady's intimating a wish to see some verses of mine in the Messenger.

A Lady requests me to write
Some lines for your Messenger's muse,
And I cannot be so impolite,
By any means, as to refuse.

So I scribble these words in my way,
In spite of Minerva, you see;
But Venus will smile on my lay,
And that is sufficient for me.

A. B.

For the Southern Literary Messenger.

THE PEASANT-WOMEN OF THE CANARIES.

Beautiful Islands, how fair you lie
Beneath the light of your cloudless sky,
And the light green waves that around you play,
Seem keeping forever a holiday;—
Beautiful Islands, how bright you rise
'Twixt the crystal sea and the sunny skies!

The luscious grape, with its royal hue
Veil'd in a tint of the softest blue,
Hangs on the vine in its purple prime
As proud to garnish its own sweet clime,
And the olive sports in your soft, sweet air
Its pale green foliage—a native there.

Music is ceaseless your trees among,
Thou Island-home of a choral throng;
Music unheard on a foreign shore;—
Songs of the free—which they will not pour
When exile-minstrels compelled to roam—
They're sacred songs to their sweet isle-home.

Why, though it's light in the Olive-bower,
And fragrance breathes from the Orange-flower,
And the sea is still and the air is calm
And the early dew is a liquid balm—
Why are the young ones forbade to roam,
Or stray from the door of their Cottage-home?¹

In the light that plays through the Olive-bower,
In the scent that breathes from the Orange-flower,
In the liquid balm of the early dew,
In the smooth, calm sea with its emerald hue,
Can the Peasant-mother no charm descry
To protect from the curse of the "evil eye."

While they shall loiter the trees among,
Echoing the wild Canary's song,
The "*mal de ajo*" may on them rest
And blight the pride of the mother's breast;
Her bosom throbs with a secret dread,
Though paths of Eden her loved ones tread.

Lo, from the Peak, with its hoary crown,
The "*el a pagador*" sails down,
And over the Cot in the moon-light floats,
Foreboding death in its awful notes—
Who in that Cottage but pants for breath,
And hears that voice as the voice of death?

Richly the vine with its deep green leaf,
Girdles the base of the Teneriffe,—
Yet there, in the prime of the sunny day,
The Peasant-maiden dares not to stray,
Till the secret charm to her arm is set,
And her bosom throbs to an amulet.

When, oh! when, shall darkness flee,
From the rosy Isles of the sunny sea?
The light of Truth with its living ray,
Pour on their dwellers a clearer day,
And *Mind* from the chain of its darkness rise,
Like a bird set free, to its native skies?

ELIZA.

Maine.

¹ D. Y. Brown's Superstitions of the Canary Islands.

For the Southern Literary Messenger.

THE HEART.

Man's heart! what melancholy things
Are garner'd up in thee!—
What solace unto life it brings
That none the heart can see—
'Tis shut from every human eye,
Close curtain'd from the view;
The scene alike of grief or joy—
Man's Hell and Heaven too.

Should all mankind combine to tear
The curtain, thrown around,
Their labor would be spent in air—
It is his hallow'd ground:
Within thy magic circle, Heart!
So potent is his spell,
No human hand hath strength to part
Or turn aside the veil.

In sadness, there's a pleasure soft,
"Which mourners only know;"
My heart affords this treasure oft,
And there I love to go;
It is the chosen spot where I

Can live my life anew—
My Home!—my Castle!—my Serai!
Which none must dare break through.

In thee, my Heart! I am alone
Quite unrestrained and free,
Thou'rt hung with pictures all my own,
And drawn for none but me;
All that in secret passes there,
Forever I can hide;
Ambition—love—or dark despair—
My jealousy—or pride.

Yes, when ambitious—ardent—young—
I thought the world my own,
My glowing portraits there were hung;
How have their colors flown!—
Some are by Time, defaced so far
I look on them with pain;
But Time nor nothing else can mar
The portrait of my JANE.

I placed her there who won my soul;
No creature saw the maid;
I gazed in bliss, without control,
On every charm displayed:
It was a sweet, impassion'd hour,
When not an eye was near
To steal into my lonely bower,
And kiss her image there.

Earth held not on its globe the man
Who breathed that holy air;
No mortal eye but mine did scan
My folly with my fair;
Sole monarch of that silent spot,
All things gave place to me;

I did but wish—no matter what—
Each obstacle would flee.

And did she love? She loved me not,
But gave her hand away;
I hied me to my lonely spot—
In anguish passed the day;
And such a desolation wide,
Spread o'er that holy place,
The stream of life itself seemed dried,
Or ebbing out apace.

But what I did—what madly said—
I cannot tell to any—
Her portrait in its place hath staid,
Though years have flown so many;
Nor can each lovely lineament
So deep impress'd, depart,
Till Nature shall herself be spent,
And thou shalt break, MY HEART.

For the Southern Literary Messenger.

MR. WHITE,—I send you a Parody upon Bryant's Autumn, apparently written by some disconsolate citizen of Richmond after the adjournment of the Legislature in time past. If the picture be faithfully drawn, it may perhaps amuse the members of the assembly who are now in your city.

NUGATOR.

PARODY ON BRYANT'S AUTUMN.

The very dullest days are come, the dullest of the year,
When all our great Assembly men are gone away from here;
Heaped up in yonder Capitol, how many bills lie dead,
They just allowed to live awhile, to knock them on the head;
Tom, Dick, and Harry all have gone and left the silent hall,
And on the now deserted square we meet no one at all—
Where are the fellows? the fine young fellows that were so lately here
And vexed the drowsy ear of night with frolic and good cheer.
Alas! they all are at their homes—the glorious race of fellows,
And some perhaps are gone to forge, and some are at the bellows.
Old Time is passing where they are, but Time will pass in vain;
All *never* can, though *some* may be, *transported* here again:
Old "*What d'ye call him,*" he's been off a week, or maybe more,
And took a little negro up, behind and one before;
But *What's his name* and *You know who*, they lingered to the last,
And neither had a dollar left and seemed to be downcast;
Bad luck had fallen on them as falls the plague on men,
And their phizzes were as blank as if they'd never smile again;
And then when comes December next, as surely it will come,
To call the future delegate from out his distant home,
When the sound of cracking nuts is heard in lobby and in hall,
And glimmer in the smoky light old Shockoe Hill and all,
An old friend searches for the fellows he knew the year before,
And sighs to find them on the Hill Capitoline, no more;
But then he thinks of one who her promise had belied,
The beautiful Virginia, who had fallen in her pride.
In that great house 'twas said she fell where stands her gallant chief,
Who well might weep in marble, that her race had been so brief—
Yet not unmeet it was he thought—oh no, ye heavenly powers!
Since she trusted those good fellows, who kept such shocking hours.

For the Southern Literary Messenger.

Audire magnos jam videor duces
Non indecoro pulvere sordidos.—*Hor. Car. L. ii. 1.*

I stood upon the heights above Charlestown, and was silently contrasting the then peaceful aspect of the scene with that which it presented on the day of wrath and blood which had rendered the place so memorable in story, as my fancy filled with images of the past and once more crowded the hill—not indeed with knights and paladins of old,

Sed rusticorum mascula militum
Proles, Sabellis docta ligonibus
Versare glebas, et severae
Matris ad arbitrium recisos
Portare fustes.—*Hor. Lib. iii. Car. 6.*

As the silent hosts arose in imagination before me, I thought of the complicated feelings which on that day must have stirred their hearts; I thought of the breasts which kindled under the insult of invasion and were nerved with the stern determination to play out the game upon which was staked their all of earthly hope or fear, and it struck me that the gallant Warren, whose voice had often made the patriot's heart to glow and nerved the warrior's arm, might perhaps have addressed them in sentiment something as follows:

THE BATTLE OF BREED'S HILL.

Look down upon the bay, my men,
As proudly comes the foe;
Ah! send them back their shout agen,
That patriot hearts may glow.

They come to us in pomp of war—
The tyrant in his gold;

Our arms are few—they're stronger far,
But who will say as bold?

No Briton ever forged the chains
Shall bind our hands at will;
The Pilgrim spirit still remains,
Out on the western hill.

Their power may awe the coward slave,
But not the stalwart free;
Their steel may drive us to the grave,
But not from liberty.

Our fathers spirit boils along
Impetuous through our veins;
We ask to know, where are the strong,
To bind us in their chains?

Then let the foe look to his steel,
And count his numbers strong;
We bide him here for wo or weal,
As he shall know ere long.

We'll dare him to the last of death—
We've sworn it in our hearts;
We stand upon our native heath—
We'll hold till life departs.

Oh! what is death to slavery!
The dead at least are free:
And what is life for victory!
We strike for *liberty*!

This sod shall warm beneath our feet,
All reeking in our gore,
And hearts that gladly cease to beat,
The foe must trample o'er.

Our boys are bold—their mothers stern,
Will rear them true and brave,
And many noble hearts shall burn
To free a father's grave.

Let every tongue be hushed and still,
Each soldier hold his breath—
They're marching up the sloping hill,—
And now prepare for death.

ALPHA.

For the Southern Literary Messenger.

TO A LADY.

Oh! do not sing—my soul is wrung
When those sweet tones salute mine ear;
Thou canst not sing as *thou hast* sung—
As *I have heard*, I cannot hear.
Then do not breathe to me one strain
Of those I loved in years gone by;
Their melody can only throw
A darker cloud upon my sky.

Speak not to me!—thine accents fall
By far too sadly on my ear;
They *told* of love, and hope, and joy—
They *tell* of life made lone and drear.
No word speak thou! The tones are changed
That breathed to me thy young heart's vow
Of all-enduring fondness; aye!

Thou canst but speak in *kindness* now.

And worse than all would be the smile
Which once was mine, and only mine;
Thou wert my hope—thy love my pride—
Thy heart my spirit's chosen shrine.
But *now*—oh! smile not on me *now*;
'Tis insult—worse, 'tis mockery!
Estranged, and cold, and false, thou art;
Smile if thou wilt—but not on me.

M. S. L.

For the Southern Literary Messenger.

TO IANTHE.

Think of me when the morning wakes,
With a smile that's bright and a blush that's new;
And the wave-rocked goddess gently shakes
From her rosy wings, the gems of dew.

Think of me, when the day-god burns
In his noon-tide blaze and his purest light;
And think of me when his chariot turns
To the sombre shades of silent night.

Think of me, when the evening's store
Of brilliance, fades on the wondering eye;
And think of me, when the flowers pour
Their incense to the star-lit sky.

Think of me when the evening star,

Through the deep blue sky shall dart his beams;
And think of me when the mind, afar,
Shall chase the forms of its joyous dreams.

Think of me in the hour of mirth—
Think of me in the hour of prayer—
Aye! think amidst each scene of earth,
You feel my spirit is mingling there.

For morning's beam—nor evening's light—
Nor days of woe—nor hours of glee—
Nor e'en religion's holiest rite,
Can steal or force my thoughts from thee.

FERGUS.

For the Southern Literary Messenger.

SONNET.

FROM THE PORTUGUES OF CAMOENS.

BY R. H. WILDE, *Of Georgia.*

Sonnet xliii. of the edition of 1779-1780.

"O cysne quando sente ser chegada," &c.

They say the Swan, though mute his whole life long,
Pours forth sweet melody when life is flying,
Making the desert plaintive with his song,
Wondrous and sad, and sweetest still while dying;
Is it for life and pleasure past he's sighing,

Grieving to lose what none can e'er prolong?
Oh, no! he hails its close, on death relying
As an escape from violence and wrong:
And thus, dear lady! I at length perceiving,
The fatal end of my unhappy madness,
In thy oft broken faith no more believing,
Welcome despair's sole comforter with gladness,
And mourning one so fair is so deceiving,
Breathe out my soul in notes of love and sadness.

For the Southern Literary Messenger.

EPIGRAMME FRANCAISE.

Lit de mes plaisirs; lit de mes pleurs;
Lit on je nais; lit on je mours;
Tu nous fais voir combien prochains
Sort nos plaisirs de nos chagrins.

TRANSLATION.

Couch of Sorrow; Couch of Joy;
Of Life's first breath, and Death's last sigh;
Thou makest us see what neighbors near
Our pleasures and our sorrows are.

The above was the execution of a task proposed by a French gentleman, who, boasting the piquant terseness of his language, said that the original could not be rendered into English.

For the Southern Literary Messenger.

TRUE CONSOLATION.

He had wept o'er the honored, in age who die;
O'er the loved,—in beauty's bloom;
O'er the blighted buds of infancy:
Till all earth was to him a Tomb.

And sorrow had drunk his youthful blood,
And hastened the work of Time;
And the cankering tooth of ingratitude
Had withered his manhood's prime.

But he turned from earth, and he looked to the sky,
His sorrow by faith beguiling;
Where Mercy sits enthroned on high,
With his loved ones round her smiling.

He looked to Eternity's bright shore,
From the wreck of perished years;
And Mercy's voice, through the storm's wild roar,
Came down to sooth his fears.

That gentle voice has charmed away
The frenzy from his brain;
And his withered heart, in her eye's mild ray,
May bud and bloom again;

And her smile has chased the gloom from his brow,
So late by clouds o'ercast;

And his cheek is bright with the sun-set glow,
That tells that the Storm is past.

And his heart returns to the world again,
But forgets not the world above;
For Heaven sends love to sooth earthly pain,
But Heaven's whole bliss is Love.

For the Southern Literary Messenger.

SONNET.

BY R. H. WILDE, *Of Georgia.*

Thou hast thy faults VIRGINIA!—yet I own
I love thee still, although no son of thine;
For I have climb'd thy mountains, not alone—
And made the wonders of thy vallies mine,
Finding from morning's dawn 'till day's decline
Some marvel yet unmarked—some peak whose throne
Was loftier; girt with mist, and crown'd with pine,
Some deep and rugged glen with copse o'ergrown,
The birth of some sweet valley, or the line
Traced by some silver stream that murmured lone;
Or the dark cave where hidden crystals shine,
Or the wild arch across the blue sky thrown;¹
Or else those traits of nature, more divine
That in some favored child of thine had shone.

¹ The Natural Bridge.

[The following letter, written by a distinguished President of the oldest College in Virginia, has been already or rather formerly before the public;—but no apology is necessary for transferring it to the columns of the "Messenger." Its elegant style and still more excellent sentiments, will always command admiration,—and we doubt whether we could render a more essential service to society than to republish it annually, in order that every young married lady (at least within the range of our subscription) should receive the benefit of its precepts. Certain we are, that more wholesome advice conveyed in more agreeable language, we have seldom seen contained in the same space. It is of itself a volume of instruction, and we do most cheerfully recommend it to the softer sex, whether married or single; for the married may profit by it even after years of conjugal tranquillity—and the single may at least *expect* to profit. It is more especially applicable, however, to her who has just sworn her vows on the altar of hymen—whose life of bliss and peace, or misery and discord, may depend upon the first six or twelve months of "prudent, amiable, uniform conduct."

Let it not be understood, however, that we are believers in the doctrine, that the pleasures of the matrimonial voyage are wholly dependant upon the conduct of the lady. She is but the second in command, and still greater responsibilities rest upon him who stands at the helm and guides the frail bark of human happiness. We should indeed be thankful if some of our highly gifted and experienced friends would prepare a *counterpart* to this valuable letter of advice, designed more particularly for the edification of such of us lords of creation as have either contracted or are likely to contract the nuptial bond. As to the old bachelors they are an incorrigible race, upon whom such advice would be wasted, and therefore they need not trouble themselves to read it.]

ADVICE FROM A FATHER TO HIS ONLY DAUGHTER.

WRITTEN IMMEDIATELY AFTER HER MARRIAGE.

My dear Daughter,—You have just entered into that state which is replete with happiness or misery. The issue depends upon that prudent, amiable, uniform conduct, which wisdom and virtue so strongly recommend, on the one hand, or on that imprudence which a want of reflection or passion may prompt, on the other.

You are allied to a man of honor, of talents, and of an open, generous disposition. You have, therefore, in your power, all the essential ingredients of domestic happiness; it cannot be marred, if you now reflect upon that system of conduct which you ought invariably to pursue—if you now see clearly, the path from which you will resolve never to deviate. Our conduct is often the result of whim or caprice, often such as will give us many a pang, unless we see beforehand, what is always the most praiseworthy, and the most essential to happiness.

The first maxim which you should impress deeply upon your mind, is, never to attempt to control your husband by opposition, by displeasure, or any other mark of anger. A man of sense, of prudence, of warm feelings, cannot, and will not, bear an opposition of any kind, which is attended with an angry look or expression. The current of his affections is suddenly stopped; his attachment is weakened; he begins to feel a mortification the most pungent; he is belittled even in his own eyes; and be assured, the wife who once excites those sentiments in the breast of a husband, will never regain the high ground which she might and ought to have retained. When he marries her, if he be a good man, he expects from her smiles, not frowns; he expects to find in her one who is not to control him—not to take from him the freedom of acting as his own judgment shall direct, but one who will place such confidence in him, as to believe that his prudence is his best guide. Little things, what in reality are mere trifles in themselves, often produce bickerings, and even quarrels. Never permit them to be a subject of dispute; yield them with pleasure, with a smile of affection. Be assured that one difference outweighs them all a thousand, or ten thousand times. A difference with your husband ought to be considered as the greatest calamity—as one that is to be most studiously guarded against; it is a demon which must never be permitted to enter a habitation where all should be peace, unimpaired confidence, and heartfelt affection. Besides, what can a woman gain by her opposition or her differences? Nothing. But she loses

every thing; she loses her husband's respect for her virtues, she loses his love, and with that, all prospect of future happiness. She creates her own misery, and then utters idle and silly complaints, but utters them in vain. The love of a husband can be retained only by the high opinion which he entertains of his wife's goodness of heart, of her amiable disposition, of the sweetness of her temper, of her prudence, and of her devotion to him. Let nothing upon any occasion, ever lessen that opinion. On the contrary, it should augment every day: he should have much more reason to admire her for those excellent qualities, which will cast a lustre over a virtuous woman, when her personal attractions are no more.

Has your husband staid out longer than you expected? When he returns, receive him as the partner of your heart. Has he disappointed you in something you expected, whether of ornament, or furniture, or of any conveniency? Never evince discontent; receive his apology with cheerfulness. Does he, when you are housekeeper, invite company without informing you of it, or bring home with him a friend? Whatever may be your repast, however scanty it may be, however impossible it may be to add to it, receive them with a pleasing countenance, adorn your table with cheerfulness, give to your husband and to your company a hearty welcome; it will more than compensate for every other deficiency; it will evince love for your husband, good sense in yourself, and that politeness of manners, which acts as the most powerful charm! It will give to the plainest fare a zest superior to all that luxury can boast. Never be discontented on any occasion of this nature.

In the next place, as your husband's success in his profession will depend upon his popularity, and as the manners of a wife have no little influence in extending or lessening the respect and esteem of others for her husband, you should take care to be affable and polite to the poorest as well as to the richest. A reserved haughtiness is a sure indication of a weak mind and an unfeeling heart.

With respect to your servants, teach them to respect and love you, while you expect from them a reasonable discharge of their respective duties. Never tease yourself, or them, by scolding; it has no other effect than to render them discontented and impertinent. Admonish them with a calm firmness.

Cultivate your mind by the perusal of those books which instruct while they amuse. Do not devote much of your time to novels; there are a few which may be useful in improving and in giving a higher tone to our moral sensibility; but they tend to vitiate the taste, and to produce a disrelish for substantial intellectual food. Most plays are of the same cast; they are not friendly to the delicacy which is one of the ornaments of the female character. HISTORY, GEOGRAPHY, POETRY, MORAL ESSAYS, BIOGRAPHY, TRAVELS, SERMONS, and other well written religious productions, will not fail to enlarge your understanding, to render you a more agreeable companion, and to exalt your virtue. A woman devoid of rational ideas of religion, has no security for her virtue; it is sacrificed to her passions, whose voice, not that of GOD, is her only governing principle. Besides, in those hours of calamity to which families must be exposed, where will she find support, if it be not in her just reflections upon that all ruling Providence which governs the Universe, whether animate or inanimate.

Mutual politeness between the most intimate friends, is essential to that harmony, which should never be once broken or interrupted. How important then is it between man and wife!—The more warm the attachment, the less will either party bear to be slighted, or treated with the smallest degree of rudeness or inattention. This politeness, then, if it be not in itself a virtue, is at least the means of giving to real goodness a new lustre; it is the means of preventing discontent, and even quarrels; it is the oil of intercourse, it removes asperities, and gives to every thing a smooth, an even, and a pleasing movement.

I will only add, that matrimonial happiness does not depend upon wealth; no, it is not to be found in wealth; but in minds properly tempered and united to our respective situations. Competency is necessary; all beyond that point, is ideal. Do not suppose, however, that I would not advise your husband to augment his property by all honest and commendable means. I would wish to see him actively engaged in such a pursuit, because engagement, a sedulous employment, in obtaining some laudable end, is essential to happiness. In the attainment of a fortune, by honorable means, and particularly by professional exertion, a man derives particular satisfaction, in self applause, as well as from the increasing estimation in which he is held by those around him.

In the management of your domestic concerns, let prudence and wise economy prevail. Let neatness, order and judgment be seen in all your different departments. Unite liberality with a just frugality; always reserve something for the hand of charity; and never let your door be closed to the voice of suffering humanity. Your servants, in particular, will have the strongest claim upon your charity;—let them be well fed, well clothed, nursed in sickness, and never let them be unjustly treated.

ORIGINAL LITERARY NOTICES.

VATHEK—An Oriental Tale, by Mr. Beckford, author of *Italy*, &c. Philadelphia: Carey, Lea & Blanchard. 1834.

The publishers of this *fashionable* romance, by way of smoothing its path to general reception and favor, have attached to the title page various opinions expressed by English journalists,—to wit: The *Quarterly Review* says, "a very remarkable performance. It continues in possession of all the celebrity it once commanded." The "*Printing Machine*" (a paper we presume of that name) says, "As an Eastern story, we know nothing produced by an European imagination that can stand a comparison with this work." The *Morning Post* exclaims, "The finest Oriental tale extant!" and the "*Gentleman's Magazine*," pronounces it "a creation of genius that would immortalize its author at any time, and under any taste." These are very imposing authorities, and superadded to them all, it is said that Mr. Beckford is now living, is one of the richest men in England, and occupies so high a rank in social life, that royalty itself has been known to court his society. Nor is this all. Lord Byron pronounced "Vathek" to be a most

surpassing production—far superior as an Eastern tale, to the "Rassalais" of Johnson,—and whatever has been said by Lord Byron, especially in matters of taste, will pass with some persons as incontrovertible orthodoxy. We have not examined particularly to ascertain what our own critics have said on the subject; but we believe that some of them at least, have echoed the plaudits of the British periodicals. Be this as it may, we happen to have an honest opinion of our own, and we must say, in our poor judgment, that a more impure, disgusting, and execrable production, than this same "Vathek," never issued from the English or American press. That the author was a youth of extraordinary genius, is acknowledged; (he wrote before twenty years of age)—but it was genius totally perverted and poisoned at its source. The work could have been written by no one whose heart was not polluted at its very core. Obscene and blasphemous in the highest degree, its shocking pictures are in no wise redeemed by the beauty and simplicity of Oriental fiction. We should pronounce it, without knowing any thing of Mr. Beckford's character, to be the production of a sensualist and an infidel—one who could riot in the most abhorred and depraved conceptions—and whose prolific fancy preferred as its repast all that was diabolical and monstrous, rather than what was beautiful and good. We shall not even attempt a detailed account of this volume—but when such works are recommended to public favor, we think it is time that criticism should brandish its rod, and that the genius of morality—if there be such a spirit in our land—should frown down the effort.

LEISURE HOURS, or the American Popular Library; conducted by an Association of Gentlemen. Boston: *John Allen & Co.* 1835.

Here is another contribution to the constantly increasing store of popular literature. If the present generation does not surpass all its predecessors in the acquisition of knowledge in its various forms, it will not be from any deficiency of intellectual food. In England, the Family Library, the Libraries of Useful and Entertaining Knowledge, the Penny Magazine, and

innumerable other productions of the same class, are employed to diffuse through every portion of society, sound and valuable instruction; and many of these excellent publications are not only reprinted in the United States, but the time is not distant when we may justly boast of others of entirely domestic origin. The work before us seems to have been commenced under favorable auspices, and with laudable objects. The editors in their advertisement, which we quote at length for the benefit of our readers,

"propose to publish, at convenient intervals, a series of volumes of standard merit, calculated to interest and instruct every class of the community. Although they have chosen for the title of the series, the name of the American Popular Library, it is not to be understood that it is to consist wholly, or even principally, of American works. Nor, on the other hand, will any work, however popular, be introduced into the series, unless, in the opinion of the editors, it shall possess such a character as will secure to it a continued reputation, after it shall have ceased to interest by its novelty. In their selections they do not propose to be limited to any one class of works, but to include such books in each department, as shall appear to them to be most deserving of a place in the library of an enlightened christian family.

"It seems to them important, that the attention of our reading community should be turned to works of more *permanent* value, than belongs to most of the periodical literature of the day, or at least that it should not be confined exclusively to works of only a temporary interest. The spirit of the times appears also to demand, that the separation, which has too often been made between elegant literature and pure christianity, should cease to exist, and that a christian literature should take the place of that, which has, in many cases, begun and ended in infidelity. It is the design of the editors of this publication to promote, so far as shall be in their power, the union of polite literature, sound learning and christian morals. Beyond this they do not suppose it necessary that they should pledge themselves to the public. A sufficient security for their patrons seems to be provided, in leaving it optional with the purchaser to take only such part of the series as he may choose.

"It is intended that a volume of nearly uniform size shall be issued every two or three months, or in such a manner that four or five volumes shall appear annually."

As a specimen of the work, we select at random the following story of

MY TWO AUNTS.

Philosophers tell us that we know nothing but from its opposite; then I certainly know my two aunts very perfectly, for greater opposites were never made since the formation of light and darkness; but they were both good creatures—so are light and darkness both good things in their place. My two aunts, however, were not so appropriately to be compared to light and darkness as to crumb and crust—the crumb and crust of a new loaf; the crumb of which is marvellously soft, and the crust of which is exceedingly crisp, dry and snappish. The one was my father's sister, and the other was my mother's; and very curiously it happened that they were both named Bridget. To distinguish between them, we young folks used to call the quiet and easy one aunt Bridget, and the bustling, worrying one, aunt Fidget. You never, in the whole course of your life, saw such a quiet, easy, comfortable creature as aunt Bridget—she was not immoderately large, but prodigiously fat. Her weight did not exceed twenty stone, or two-and-twenty at the utmost—but she might be called prodigiously fat, because she was all fat; I don't think there was an ounce of lean in her whole composition. She was so imperturbably good natured, that I really do not believe that she was ever in a passion in the whole course of her life. I have no doubt that she had her troubles: we all have troubles, more or less; but aunt Bridget did not like to trouble herself to complain. The greatest trouble that she endured, was the alternation of day and night: it was a trouble to her to go up stairs to bed, and it was a trouble to her to come down stairs to breakfast; but, when she was once in bed, she could sleep ten hours without dreaming; and when she was once up, and seated in her comfortable arm-chair, by the fireside, with her knitting apparatus in order, and a nice, fat, flat, comfortable quarto volume on a small table at her side, the leaves of which volume she could turn over with her knitting needle, she was happy for the day: the grief of getting up was forgotten, and the trouble of getting to bed was not anticipated. Knowing her aversion to moving, I was once saucy enough to recommend her to make two days into one, that she might not have the trouble of going up and down stairs so often. Any body but aunt Bridget would have boxed my ears for my impertinence, and would, in so doing, have served me rightly; but she, good creature, took it all in good part, and said, "Yes, my dear, it would save trouble, but I am afraid it would not be good for my health—I should not have exercise enough." Aunt Bridget loved quiet, and she lived in the quietest place in the world. There is not a spot in the deserts of Arabia, or in the Frozen Ocean, to be for a moment compared for quietness with Hans-place—

"The very houses seem asleep;"

and when the bawlers of milk, mackerel, dabs, and flounders, enter the placid precincts of that place, they scream with a subdued violence, like the hautboy played with a piece of cotton in the bell. You might almost fancy that oval of building to be some mysterious egg, on which the

genius of silence had sat brooding ever since the creation of the world, or even before Chaos had combed its head and washed its face. There is in that place a silence that may be heard, a delicious stillness which the ear drinks in as greedily as the late Mr. Dando used to gulp oysters. It is said that, when the inhabitants are all asleep, they can hear one another snore. Here dwelt my aunt Bridget—kindest of the kind, and quietest of the quiet. But good nature is terribly imposed upon in this wicked world of ours; and so it was with aunt Bridget. Her poulterer, I am sure, used to charge her at least ten per cent. more than any of the rest of his customers, because she never found fault. She was particularly fond of ducks, very likely from a sympathy with their quiet style of locomotion; but she disliked haggling about the price, and she abhorred the trouble of choosing them; so she left it to the man's conscience to send what he pleased, and to charge what he pleased. I declare that I have seen upon her table such withered, wizened, toad-like villains of half-starved ducks, that they looked as if they had died of the whooping-cough. And if ever I happened to say any thing approaching to reproach of the poulterer, aunt would always make the same reply,—“I don't like to be always finding fault.” It was the same with her wine as it was with her poultry: she used to fancy that she had Port and Sherry; but she never had any thing better than Pontac and Cape Madeira. There was one luxury of female life which my aunt never enjoyed—she never had the pleasure of scolding the maids. She once made the attempt, but it did not succeed. She had a splendid set of Sunday crockery, done in blue and gold; and, by the carelessness of one of her maids, the whole service was smashed at one fell swoop. “Now, that is too bad,” said my aunt; “I really will tell her of it.” So I was in hopes of seeing aunt Bridget in a passion, which would have been as rare a sight as an American aloe in blossom. She rang the bell with most heroic vigor, and with an expression of almost a determination to say something very severe to Betty, when she should make her appearance. Indeed, if the bell-pull had been Betty, she might have heard half the first sentence of a terrible scolding; but before Betty could answer the summons of the bell, my aunt was as cool as a turbot at a tavern dinner. “Betty,” said she, “are they all broke?” “Yes, ma'am,” said Betty. “How came you to break them?” said my aunt. “They slipped off the tray, ma'am,” replied Betty. “Well, then, be more careful another time,” said my aunt. “Yes, ma'am,” said Betty.

Next morning, another set was ordered. This was not the first, second, or third time that my aunt's crockery had come to an untimely end. My aunt's maids had a rare place in her service. They had high life below stairs in perfection; people used to wonder that she did not see how she was imposed upon: bless her old heart! she never liked to see what she did not like to see—and so long as she could be quiet she was happy. She was a living emblem of the Pacific Ocean.

But my aunt Fidget was quite another thing. She only resembled my aunt Bridget in one particular; that is, she had not an ounce of lean about her; but then she had no fat neither—she was all skin and bone; I cannot say for a certainty, but I really believe, that she had no marrow in her bones: she was as light as a feather, as dry as a stick, and, had it not been for her pattens, she must have been blown away in windy weather. As for quiet, she knew not the meaning of the word: she was flying about from morning till night, like a fagot in fits, and finding fault with every body and every thing. Her tongue and her toes had no sinecures. Had she weighed as many pounds as my aunt Bridget weighed stones, she would have worn out half-a-dozen pair of shoes in a week. I don't believe that aunt Bridget ever saw the inside of her kitchen, or that she knew exactly where it was; but aunt Fidget was in all parts of the house at once—she saw every thing, heard every thing, remembered every thing, and scolded about every thing. She was not to be imposed upon, either by servants or trades-people. She kept a sharp look out upon them all. She knew when and where to go to market. Keen was her eye for the turn of the scale, and she took pretty good care that the butcher should not dab his mutton chops too hastily in the scale, making momentum tell for weight. I cannot think what she wanted with meat, for she looked as if she ate nothing but raspings, and drank nothing but vinegar. Her love of justice in the matter of purchasing was so great, that when her fishmonger sent her home a pennyworth of sprats, she sent one back to be changed because it had but one eye.

She had such a strict inventory of all her goods and chattels, that, if any one plundered her of a pin, she was sure to find it out. She would miss a pea out of a peck; and she once kept her establishment up half the night to hunt for a bit of cheese that was missing—it was at last found in the mouse-trap. "You extravagant minx," said she to the maid, "here is cheese enough to bait three mouse-traps;" and she nearly had her fingers snapped off in her haste to rescue the cheese from its prison. I used not to dine with my aunt Fidget so often as with my aunt Bridget, for my aunt Fidget worried my very life out with the history of every article that was brought to table. She made me undergo the narration of all that she had said, and all that the butcher or poulterer had said, concerning the purchase of the provision; and she used always to tell me what was the price of mutton when her mother was a girl—two pence a pound for the common pieces, and twopence-halfpenny for the prime pieces. Moreover, she always entertained me with an account of all her troubles, and with the sins and iniquities of her abominable servants, whom she generally changed once a month. Indeed, had I been inclined to indulge her with more of my company, I could not always manage to find her residence; for she was moving about from place to place, so that it was like playing a game of hunt the slipper to endeavor to find her. She once actually threatened to leave London altogether, if she could not find some more agreeable residence than hitherto it had been her lot to meet with. But there was one evil in my aunt Fidget's behavior, which disturbed me more than any thing

else; she was always expecting that I should join her in abusing my placid aunt Bridget. Aunt Bridget's style of house-keeping was not, perhaps, quite the pink of perfection, but it was not for me to find fault with it; and if she did sit still all day, she never found fault with those who did not; she never said any thing evil of any of her neighbors. Aunt Fidget might be flying about all day like a witch upon a broomstick; but aunt Bridget made no remarks on it; she let her fly. The very sight of aunt Fidget was enough to put one out of breath—she whisked about from place to place at such a rapid rate, always talking at the rate of nineteen to the dozen. We boys used to say of her that she never sat long enough in a chair to warm the cover. But she is gone—*requiescat in pace*;¹ and that is more than ever she did in her life-time.

¹ May she rest in peace.

EDITORIAL REMARKS.

In presenting the fourth number of the "Messenger" to the public, we are gratified in announcing the continued support of our friends and correspondents, and the increasing ardor with which the work is patronized. Far more to the great cause of southern literature, than to our own humble efforts, is it owing that we are encouraged from a variety of quarters to persevere in our labors; and our generous well wishers may rely, that we are not disposed to look back or falter in our course,—borne as we are upon the "full tide of successful experiment." Let but our friends continue to take an interest in our cause, and this work will soon be placed beyond contingent evils. It will become the arena, where southern minds especially, may meet in honorable collision; and when we say *southern* minds, let us not be understood as slighting or undervaluing the rich and valuable aid which we hope to receive from our northern and eastern brethren. Far from it. We desire to emulate their own noble efforts in behalf of American literature,

and to stir up our more languid countrymen, to imitate their industry, and to hope for their success.

The rights and duties of the editorial chair, especially in the infancy of a literary work, are extremely delicate. Taste is so subtle, variable and uncertain a quality, that, for an editor to establish his own, as a fixed and immutable standard—would seem invidious, if not absolutely odious. On the other hand, some judgment and discrimination must be exercised, or the consequences might be still more injurious. The indiscriminate admission of *all* pretenders, would be disparaging and unjust to those whose claims are unquestionable. The true view of the subject we take to be this—not to exclude all contributions which do not display a high degree of merit—especially if their authors are young and evince a desire to excel. One object of a work like the "Messenger," is to *improve* the exercise of thought and the habit of composition. A literary novice, when he sees himself in print, and contrasts his productions with those of more mature minds and more practised hands, will rouse himself to greater effort. It may encourage and stimulate him to more decided and brilliant exertion. Fine writing is not the acquisition of a day or a year; it requires, in order to the full attainment of success,—long, continued and unwearied application.

We make these remarks, because we are not entirely satisfied ourselves, with *all* the articles either in prose or verse, admitted into the present number. We did not think, however, that any of them deserved exclusion. In some of those which are published, may be perceived undoubted indications of genius,—and in the rest, evidences of high capacity to excel.

In noticing some of the pieces, we hope it will not be supposed that we pass sentence of inferiority upon such as we omit to mention. Our object is to ask the particular attention of the reader to those which have afforded us peculiar pleasure.

It is with unalloyed satisfaction, that we continue the very able and interesting account of "*Tripoli and the Barbary States*." The author has thrown around authentic narrative, all the charms of romance; and we perfectly agree with a contemporary editor in this city, that he has reached in a very high degree the interest and dignity of the true historic style.

The description of *Howard's Bottom*, under the head of "*Western Scenery*," will be at once recognized as the production of a practised and polished pen.

If the "*Hints to Students of Geology*," by an able proficient in the science, shall serve to stimulate the languor which prevails in Virginia on that subject, we shall be more than gratified.

In the "*March of Intellect*," by V, there is a singular mixture of the serious and comic—of truth and caricature—which may not perhaps be agreeable to all readers. All, however, will concede to the author, vigor and fertility of mind,—with much of the "*copia verborum*" in style. We should have taken the liberty to apply the pruning knife to the luxuriant foliage of the "*Seasons*," from the same pen,—had we not feared doing some injury to the fruit. The author has only to cultivate his fine talents, in order to attain a high rank in the art of composition.

There is a good deal of humor in the description of a Virginia "*Fourth of July*,"—and we hope the writer will repeat his effort. In the local and distinctive traits of our national manners, there is a wide field for the pencil.

With the "*Essay on Luxury*," by B. B. B. H. we have taken some liberties, and crave his indulgence if we have been too free. Sometimes the finest thoughts and strongest reasoning, suffer injustice by inattention to style.

The author of "*Eloquence*" has our earnest exhortations to press on in the path which leads to renown. If we mistake not, he is actuated by the noble ambition to acquire distinction.

The "*Valedictory in July 1829*," now for the first time published, will command attention for the excellence of its precepts and doctrines upon the all important subject of female education. No one could be better qualified than the author, to enforce serious truths in a graceful and agreeable manner.

We beg the reader's particular attention to the original tale of "*Uncle Simon and the Mechanician*." The author's admirable sketches derive additional

value from the fact that they are not the mere creations of fancy, but exact copies from nature.

Some of our readers may perhaps complain, that more than a due proportion of the present number is devoted to the Muses. It may be so; but our apology is, that some of the pieces have been so long on hand, that to delay their publication would almost amount to exclusion. If all the poetry is not of equal quality, there is still enough which is excellent; enough to demonstrate beyond all question, that if our Bards would only take courage, and rise superior to the fear of foreign rivalry, the highest success would crown their efforts. Among the pieces which have afforded us more than ordinary pleasure, we may be allowed to enumerate the "*Peasant-Women of the Canaries*," "*The Heart*," and that which we have taken the liberty to designate by the title of "*True Consolation*." The oftener that we read these, the more we like them; but we shall restrain the ardor of our own feelings, lest our readers should suppose we indulge the presumptuous thought of influencing their judgments.

It is with real pleasure that we insert two productions from the pen of the *Hon. R. H. Wilde*. These would be enough of themselves to disprove the charge of plagiarism preferred against that gentleman during the Georgia election, in respect to the charming lines which appeared in our first number, and which we stated were generally ascribed to him. It is to us passing strange, that the sacred repose of the republic of letters, should be disturbed by the agitations and conflicts of party politics. Notwithstanding that the authorship of "*My Life is like the Summer Rose*," has been confidently claimed by some for O'Kelly, an Irish poet,—and by others for an ancient Greek bard named Alceus, we still adhere to the opinion that that beautiful effusion is the bona fide and genuine offspring of Mr. Wilde's muse. Upon this subject, however, we shall reserve a more particular expression of our sentiments for a future number.

We have already expressed our opinion of the bards of Mobile and Tuscaloosa. May we not expect a continuance of their favors?

The humorous "*Parody on Bryant's Autumn*," or rather on his piece called the "*Death of the Flowers*," will strike every one acquainted with the productions of the New York bard, as an admirable imitation of his style. It

is the more excellent, as Bryant's sombre imagery has been made to assume a light and sportive dress.

We could say much in commendation of many of our other poetical contributors, if it were not somewhat improper to invade too much the province of our readers. We hope, therefore, that they will not for a moment believe that we slight or undervalue their favors.

EXTRACTS FROM THE LETTERS OF CORRESPONDENTS.

FROM AN EMINENT LITERARY GENTLEMAN, NOW A RESIDENT OF LOUISIANA.

"I am domiciliated in the south for the residue of my days; and so far as residence, pursuit, and the home of those most dear to me may be supposed to impress local preferences, I am and long have been a southern man. But we all love our dear common country better than all that belongs to district and climate; and so loving my country, and so being proud of its best fame and honor, its literary advancement, I was decidedly pleased with your periodical. The writing, the printing, *the revision of the proofs*, the *ensemble*, are all unquestionably creditable to you. I am too old and too much hackneyed in the style of periodicals to compliment. The Richmond Messenger gives respectable promise. Periodicals have to me a kind of physiognomy. Some look sickly and death-doomed from their birth. Yours give signs of a vigorous and healthful vitality. May it live long and prosper."

FROM A DISTINGUISHED LITERARY LADY IN NEW YORK.

"I owe you a very humble apology for not having earlier acknowledged your first communication and the receipt of the first

number of your work, which you were so kind as to send me. I was absent on a very long journey when they reached my residence, and then my reply fell into the ever open grave of deferred duties. I have since been gratified to hear from various sources that your enterprise was succeeding. It could hardly be otherwise, if you could once rouse the minds in your beautiful state, where inspiring subjects every where abound. Your request is very flattering to me, and I should most willingly comply with it, but that I have at present more work on my hands than I have energy to accomplish. At some future time, should you continue to desire my services, it will give me pleasure to render them."

FROM EASTERN VIRGINIA.

[A correspondent from whom we have received many favors, indulges in the following sportive strain. So far from being willing that he should "*sail before the mast*," we would rather see him take rank as OUR POST CAPTAIN.]

"I sincerely rejoice in the success thus far of your undertaking, and trust you have now been sustained long enough to give time to abler men to come to your assistance. I wish you a good crew and a pleasant voyage for your little frigate. I shall still occasionally sail with you before the mast as a common sailor, until somebody gives me the cat-o'-nine-tails, and then perhaps I shall stay at home and mind my business, which is *clodhopping*, and which is perhaps more suitable than the occupation I have lately been following."

"To read your paper is the *only one thing needful* to enlarge its circulation, to attract the attention, and to gain the affections of the reading part of the community. It is a work peculiarly interesting to southern literature, as its appeals are direct to the love of letters, to the generous pride, and to the chivalric patriotism of southerners. The monotonous sound of politics cannot but be disgusting."

ACKNOWLEDGEMENTS TO CONTRIBUTORS, CORRESPONDENTS, &c.

We tender our thanks to the editor of the *Farmer's Register* for setting us right in respect to Mr. Peter A. Browne's letter on the mineral resources of Virginia. The republication of that letter in the Register had escaped our recollection entirely. We shall be much gratified in having the able co-operation of Mr. Ruffin upon a subject we have much at heart, to wit: a geological and mineralogical survey of the state. When the legislature shall have settled the exact limits of federal power, and the precise boundaries of state rights—if indeed these things can be done in our time—or when we shall have laid the broad and permanent foundation of a system of internal improvement,—we hope then at least to see Virginia treading in the paths of other states, and turning her attention to her own vast, and in some respects, hidden resources.

We owe a similar acknowledgement to Mr. Fairfield, editor of the North American Magazine, who informs us that Mr. Browne's letter also appeared in one of his numbers, but which in like manner escaped our notice.

The "*Remarks Delivered to the Law Class at William and Mary*," upon a subject deeply interesting to the south, shall appear in our next number.

The "*Letters from a Sister*," we have only had opportunity to glance at. We have no doubt that they will furnish a rich store for the entertainment of our readers.

The *Selections from the Manuscripts of Mrs. Wood*, are reluctantly but unavoidably excluded from the present number, but shall certainly appear in

our next.

We have on hand a variety of poetical contributions, from which we shall cull liberally for our pages. As some literary appetites however, are cloyed by too many dainties, we must be somewhat particular in the arrangement of our table.



 The *Publisher* offers an apology to his patrons for the delay in the publication of the present number. The close of the year being, by common consent, a season of holiday recreation rather than of business, all just allowances will be made. He promises (always excepting unforeseen accidents and contingencies) to be more punctual hereafter. It is his desire to issue the Messenger, if possible, regularly between the 20th and last day of each month. Contributors ought to be governed accordingly. He tenders the compliments of the season to his patrons.

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